

AN APPRAISAL REPORT
OF A

RETAIL/SHOP BUILDING

Located At
65 South 500 East
American Fork, Utah

Report #25.062.C

DATE OF VALUATION
December 01, 2025

PREPARED FOR
Mr. Mark Butler
Jones Leasing LLC
1250 West 100 North
Provo, Utah 84601

PREPARED BY
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December 16, 2025

Mr. Mark Butler
Jones Leasing LLC
1250 West 100 North
Provo, Utah 84601

SUBJECT: An appraisal report on the "as is" market value of a retail/shop building located at 65 South 500 East, American Fork, Utah.

Dear Mr. Butler:

At your request, I have prepared the following appraisal report on the above referenced property. The purpose of the appraisal report is to determine the "as is" market value. The "as is" valuation date is December 01, 2025. This report will be utilized by Mr. Butler and/or Jones Leasing LLC for internal management purposes.

As per your request, the appraisal report has been prepared in a manner to conform to the Uniform Standards of Professional Appraisal Practice (USPAP) adopted by the Appraisal Standards of the Appraisal Foundation.

The "as is" subject property represents a retail/shop building of average quality Class "S/C" construction. The building has 15,700 square feet of gross building area which has been demised into 5,718 square feet (36.4%) of office space and 9,982 square feet (63.6%) of warehouse/shop space. The building was constructed new in 2003. The building improvements are situated within a 1.36 acre, or 59,242 square foot improved site. The building-to-land ratio is 26.5 percent. This ratio is typical and it is concluded that there is no excess land. Details of the building and site improvements can be found in the body of this report.

Mr. Butler
December 16, 2025
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The building is owner occupied and the valuation will pertain to the fee simple estate. In the valuation of the fee simple estate, only the Sales Comparison Approach is considered to be applicable. Because of the age of the subject building, the Cost Approach is not considered to be applicable. In the fee simple valuation, it was determined that the Income Approach was not needed to produce credible results. As such, this approach has not be expanded. The estimated exposure/marketing time is 12 months.

After careful consideration of the information and analysis contained within this report, I am of the opinion that the "as is" market value of the subject, with fee simple estate property rights, as of December 01, 2025, is:

\$3,970,000

"THREE MILLION NINE HUNDRED SEVENTY THOUSAND DOLLARS"

This letter of transmittal is not to be misconstrued as an appraisal report, but merely indicates the final value estimate developed in the following report. The following report provides supporting data, assumptions, and justifications for my final value conclusions. The appraisal is made subject to the general assumptions and limiting conditions stated at the end of the report. Please feel free to call if there are any questions.

Respectfully submitted,



Bradford B. Dyreng, MAI

Utah State - Certified General Appraiser License # 6168334-CG00 (Exp. 11/30/27)
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SUMMARY OF IMPORTANT CONCLUSIONS

SUBJECT:	Retail/Shop Building
LOCATION:	65 South 500 East, American Fork, Utah
ASSESSOR'S PARCEL NO.:	13:056:0088 and :0089
HIGHEST AND BEST USE:	
Land as if Vacant -	Office/retail and/or light industrial uses
Property as Improved -	To maintain the existing retail/shop building
LAND/SITE:	A 1.36 acre, or 59,242 square foot site. The site is improved with asphalt paved parking.
EXCESS LAND:	None
IMPROVEMENTS:	A retail/shop building of average quality Class "S/C" construction designed for retail and warehouse/shop use. The building has 15,700 square feet of gross building area. The build out represents 5,718 square feet (34.6%) of office space and 9,982 square feet (63.6%) of warehouse space. The warehouse/shop areas have a range in clear height from 14 to 16 feet. Access is provided by 3 overhead doors, none of which provide for dock high loading.
FRONTAGE/ACCESS:	500 East
ZONING:	GC-1, (General Commercial, American Fork City)
OWNER OF RECORD:	Jones Leasing LLC
YEAR BUILT:	2003
APPRAISED INTEREST:	Fee Simple Estate
VALUATION DATE:	December 01, 2025
DATE OF REPORT:	December 16, 2025

SUMMARY-CONTINUED

VALUATION CONCLUSIONS:

Cost Approach:	\$	n/a
Sales Comparison Approach:	\$	3,970,000
Income Capitalization Approach:	\$	n/a

CONCLUDED FINAL VALUE:	\$	3,970,000
Site/Improvement Value:	\$	3,970,000
Personal Property Value:	\$	n/a

EXPOSURE/MARKETING TIME:	Twelve months
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IDENTIFICATION OF THE PROPERTY

The subject property represents a retail/shop building located at 65 South 500 East, American Fork, Utah. The subject is identified by the Utah County Recorder with tax parcel numbers 13:056:0088 and :0089. A legal description of these tax parcels, as provided by the Utah County Recorder, can be found in the addendum.

PURPOSE AND USE OF THE APPRAISAL

The purpose of the appraisal is to estimate the "as is" market value taking into account the fee simple property rights. The appraisal has been ordered by Mr. Mark Butler with the Jones Leasing LLC, in Provo, Utah. The appraisal will be used by Mr. Butler and Jones Leasing LLC for internal management purposes.

SCOPE OF THE APPRAISAL ASSIGNMENT

I have performed an extensive investigation in the local marketplace for valuation of the subject property. My research included, but was not limited to, talking with local property owners, city and county officials, brokers, appraisers, and local business owners. All of the sales data has been verified.

In the valuation of the fee simple estate, only the Sales Comparison Approach is considered to be applicable. Because of the age of the subject building, the Cost Approach is not considered to be applicable. In a fee simple valuation, the Income Capitalization Approach is a hypothetical valuation. As such, this approach has not been expanded.

To report the assignment results, we use the Appraisal Report option of Standards Rule 2-2(a) of the 2024-2025 edition of the Uniform Standards of Professional Appraisal Practice (USPAP). USPAP gives appraisers the flexibility to vary the level of information in an Appraisal Report depending on the intended use and intended users of the appraisal. In this report, the analysis is performed at a moderate level of detail. It summarizes the information analyzed, the appraisal methods employed, and the reasoning that supports the analyses, opinions, and conclusions. It meets or exceeds the former Summary Appraisal Report requirements that were contained in the 2012-2013 edition of USPAP.

Understanding that Utah is a non-disclosure state, information used in this report is as reliable as practical.

DEFINITION OF MARKET VALUE

"MARKET VALUE" as defined in this report is as follows:

"The most probable price which a property should bring in a competitive and open market under all conditions requisite to a fair sale, the buyer and seller each acting prudently and knowledgeably, and assuming the price is not affected by undue stimulus. Implicit in this definition is the consummation of a sale as of a specified date and the passing of title from seller to buyer under conditions whereby:

1. Buyer and seller are typically motivated;
2. Both parties are well informed or well advised, and each acting in what they consider their own best interests;
3. A reasonable time is allowed for exposure in the open market;
4. Payment is made in terms of cash in U.S. dollars or in terms of financial arrangements comparable thereto; and
5. The price represents the normal consideration for the property sold unaffected by special or creative financing or sales concessions granted by anyone associated with the sale."¹

DEFINITION OF "AS IS" PREMISE

The definition of "AS IS" as used in this report is based on the following:

"Market Value "as is" on appraisal date means an estimate of the market value of a property in the condition observed upon inspection and as it physically and legally exists without hypothetical conditions, assumptions, or qualifications, as of the date the appraisal is prepared."²

¹ *Federal Register*, Volume 55, Number 163, (August 22, 1990), 34228 and 34229; also quoted in the Definitions Section of the *Uniform Standards of Professional Appraisal Practice*, 1996 ed., and *The Appraisal of Real Estate*, 11th ed. (Chicago: Appraisal Institute, 1996), 23.

² Appraisal Policies and Practices of Insured Institutions and Service Corporations, Federal Home Loan Bank Board, "Final Rule, 12 CFR Parts 563 and 571, December 21, 1987.

PROPERTY RIGHTS APPRAISED

The subject is owner occupied, therefore, the valuation will pertain to the fee simple estate. The definition of fee simple estate is as follows:

Fee Simple Estate

"Absolute ownership unencumbered by any other interest or estate; subject only to the limitations imposed by the governmental powers of taxation, eminent domain, police power, and escheat."³

DATE OF APPRAISAL

The effective date for the "as is" value of the appraisal is December 01, 2025.

REPORT COMPLETION DATE

The report completion date is December 16, 2025.

STATEMENT OF OWNERSHIP

According to the Utah County Recorder's office, the subject property is currently vested in the name of Jones Leasing LLC.

HISTORY OF THE PROPERTY

The subject has been owned by Jones Leasing LLC for over three years. During this ownership, the subject has been owner occupied.

The aforementioned represents the only know market activity involving the subject in the past three years.

³ Appraisal Institute, *The Appraisal of Real Estate*, 11th ed. (Chicago: Appraisal Institute, 1996), 137.

NEIGHBORHOOD DATA

The neighborhood analysis is an essential and critical section of the appraisal process. It identifies the specific area of analysis in which certain forces and influences will be analyzed in application of the three approaches to value. The forces influencing the neighborhood are very important when considering the immediate and long range use and value of the subject property. A neighborhood is defined as "A group of complementary land uses."⁴ A district is more restrictive in definition and is defined as "A type of neighborhood that is characterized by homogeneous land use."⁵

Geographic Location

The subject is located central to the east within American Fork City. American Fork is located north within Utah County and is part of the greater Utah County area. Utah County is located 45 miles south of metropolitan Salt Lake City, which is the financial center for the Intermountain Region. The Provo/Orem area represents the financial center of Utah County, with Provo representing the Utah County seat.

Utah County is surrounded by mountains forming a valley about 10 miles wide and 20 miles long. The Wasatch Mountains on the east and Utah Lake on the west nearly converge to form the south boundary. The north boundary is considered to be the "point of the mountain" which is located just north of Lehi City.

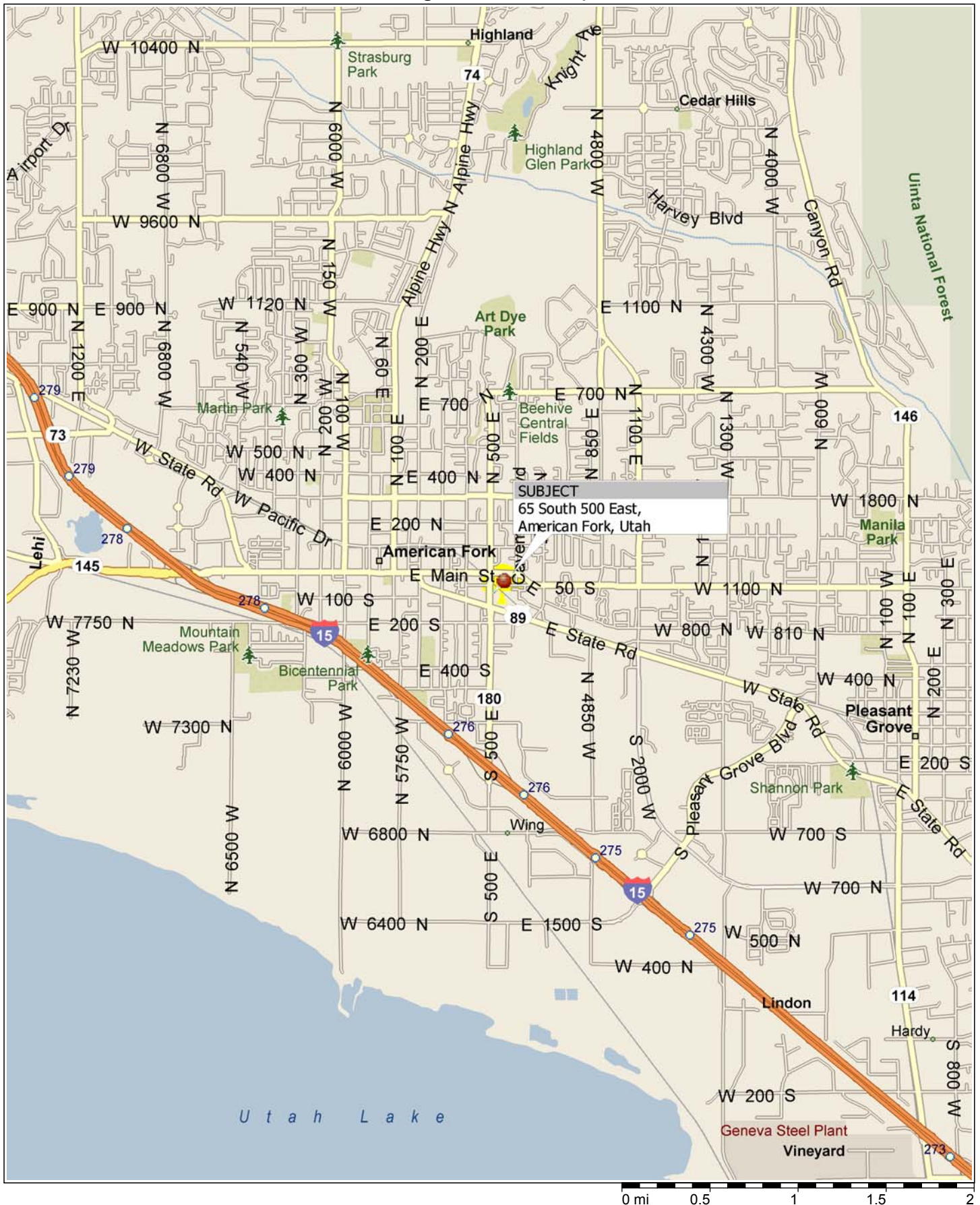
Population

Utah County continues to benefit from strong population growth that comes from both positive attrition and in-migration. The National Census Bureau estimates the Utah County population at 719,714 in 2023, a 38.4 percent increase over 2010 data. Population figures below are for major cities in Utah County for years 2000, 2010, and 2023.

⁴Appraisal Institute, *The Appraisal of Real Estate*, 11th ed., (Chicago: Appraisal Institute, 1996), 189.

⁵Ibid., 189.

Neighborhood Map



AERIAL VIEW



POPULATION DATA - UTAH COUNTY				
Municipality	2000	2010	2023	Average Annual Change 2010 - 2023
Provo	105,166	112,488	113,343	0.05%
Orem	84,324	88,328	95,519	0.58%
Lehi	19,028	47,407	90,227	6.50%
Eagle Mountain	2,825	21,415	56,932	11.85%
Saratoga Springs	1,571	18,084	52,532	13.61%
Spanish Fork	20,246	34,691	45,557	2.23%
American Fork	21,941	26,263	38,549	3.35%
Pleasant Grove	23,468	33,509	37,294	0.81%
Springville	20,424	29,466	35,471	1.46%
Payson	12,790	18,950	24,054	1.92%
Other	71,988	111,137	130,236	1.22%
County Total	368,536	520,049	719,714	2.74%
State of Utah	2,233,000	2,763,885	3,417,734	1.70%
Source: Utah Department of Workforce Services, Labor Market Information				

The overall Utah County market has grown at an average annual rate of 2.74 percent over the past 14 years, consistent with the state wide average. It is projected that by 2030, Utah County will have a population of 853,711, an average growth rate of 2.69 percent. This is substantially higher than the projections for the State of Utah, which show a 2.39 percent growth rate over the same period. This upward trend will place upward pressure on all real estate sectors.

Employment

The Utah County labor market is characterized by a diversified economy, with concentrations in the service and trade industries. This diversification is apparent by the chart presented on the following page for years 2010, 2018, and 2023.

EMPLOYMENT DATA - UTAH COUNTY				
Industry	Jobs 2010	Jobs 2018	Jobs 2023	Percent Employed
Mining	56	133	274	0.09%
Construction	9,675	24,609	29,953	9.76%
Manufacturing	15,667	19,129	23,462	7.64%
Trans/Retail Trade/Utility	29,033	43,892	49,059	15.98%
Information	7,867	12,801	13,717	4.47%
Finance	6,066	8,828	13,294	4.33%
Services	79,714	118,152	140,368	45.72%
Government	26,589	31,313	34,835	11.35%
Total	174,667	258,857	306,985	100.00%
Source: Utah Department of Workforce Services, Labor Market Information				

Total non-agricultural employment has had an average annual increase of 5.41 percent since 2010. Some of the larger employers include Brigham Young University, Intermountain Health Care, IM Flash, NuSkin, Nestle Prepared Foods, Adobe Systems, and DoTerra.

As of July 2025, Utah County and the State of Utah as a whole reported unemployment at 3.3 percent and 3.3 percent, down substantially from the high of July 2009 at 8.0 and 7.7 percent, respectively.

According to the Utah Department of Workforce Services, the 2023 per capita income for Utah County was \$57,619. This is below the Utah State level at \$64,175.

Jurisdiction and Proximity

The subject is located within American Fork City and falls under American Fork City's jurisdiction. American Fork is located north within Utah County and 10 miles north of the Provo/Orem metropolitan area. Provo City is the Utah County seat. Salt Lake City is located 40 miles to north.

Boundaries and Neighborhood Land Use

Neighborhood boundaries are typically represented by natural or man-made features. American Fork is a bedroom community to the Provo/Orem metropolitan area and as such, neighborhood boundaries are considered to be the general American Fork area. The neighborhood is comprised of a variety of uses, with the majority being commercial and residential in nature.

Most of the commercial development is located along the Main Street corridor. Development along this corridor includes a variety of smaller to medium sized retail and office buildings, with neighborhood shopping malls located at major intersections. A community center, anchored by Wal-Mart and Home Depot, is located west along this corridor. Older retail/office uses are located in close proximity to the downtown area; most have been adequately maintained, with some renovation required/occurring. Most of the newer commercial development is located at the east/west periphery of this corridor. Other commercial uses are scattered throughout as allowed by zoning. The large majority of commercial development is performing well.

The remaining land has been developed primarily with single and multi-family residential uses. Homes in close proximity to Main Street are middle to older in age and range in value from \$300,000 to \$450,000. Pride of ownership is average. Much of the new residential growth is occurring north within the neighborhood. Development trends have been moderate to brisk, with home values ranging from \$450,000 to \$850,000, with some higher priced homes scattered throughout. Pride of ownership is considered to be average. A number of multi-family residential projects are located throughout as allowed by zoning. The majority of residential uses have been well maintained and continue to perform well.

Percent Built-Up

In order to determine the percentage of existing build-up in the neighborhood, a drive-through survey of the area was performed by the appraiser. Based on the survey, the area appears to be approximately 70 to 80 percent built-up. There are a limited number of large land parcels remaining, with a number of smaller land parcels located throughout.

Immediate Neighborhood

The subject is located in an established area of central American Fork City. Land to the north of the subject, as a majority, represents residential uses. Land to the south of the subject along 500 East represents retail/office development. Land to the east represents residential development. Land to the west along State Street represents, as a majority, retail/office development. The immediate neighborhood is 80 to 90 percent built-up.

Access, Transportation, and Traffic Arteries

The subject neighborhood is accessed from the east/west via Main Street and State Street. Access from the north/south is via North County Boulevard and 500 East. These travel ways represent major collectors and provide access to other cities within the immediate area. Other secondary streets provide for additional access. Interstate 15 is located 1.0 miles south of the subject via 500 East.

These and other streets in the immediate area are asphalt surfaced, in average condition, and publicly dedicated/maintained by American Fork City. Public transportation in the area is provided by UTA, which has bus stops located on all major streets. The neighborhood has adequate access.

Development Trends - Single Family Residential

The subject neighborhood has seen moderate to improving growth in the residential sector. A history of residential building permits for the Utah County and American Fork marketplace is summarized in the following table.

UNIT BUILDING PERMITS - UTAH COUNTY/AMERICAN FORK			
Year	Utah County	American Fork	A.F.'s Market Share
2017	6,837	1,168	17.1%
2018	6,715	377	5.6%
2019	7,314	613	5.6%
2020	8,419	769	9.1%
2021	12,430	2,323	18.7%
2022	8,555	637	7.5%
2023	6,045	814	13.5%
2024	6,630	229	3.5%
2025 - Mar	1,555	50	3.2%
Source: University of Utah BEBR			

Up until the increase in interest rates in the Spring of 2022, residential demand continued to show high demand. However, the increase in interest rates has softened demand somewhat, placing downward pressure on the market. Much of residential development is taking place in more affordable higher density development. American Fork City continues to capture a consistent amount of residential development within the Utah County marketplace.

According to the MLS, there are 53 home listings in the American Fork market, compared to 284 homes sold within the past 12 months. This is an inventory of 2.2 months. In the Utah County market there are 1,886 listings, compared to 6,525 homes sold in the past 12 months. This is an inventory of 3.5 months. An inventory of less than 12 months is considered to be average to good.

According to most home builders, current demand is for homes priced less than \$500,000. The following table summarizes activity for homes listed/sold under \$500,000 and over \$500,000 within the Utah County and American Fork marketplace.

HOME INVENTORY BY PRICE RANGE - UTAH COUNTY/AMERICAN FORK				
Location	Price Range	Listings	Sold	Inventory (Months)
Utah County	\$1 to \$500,000	293	1,380	2.5
Utah County	\$500,001 plus	1,593	5,145	3.7
American Fork	\$1 to \$500,000	11	52	2.5
American Fork	\$500,001 plus	43	232	2.2

As can be seen, in Utah County more of the demand is for homes valued over \$500,000 with demand in American Fork also being greater for homes valued over \$500,000. A typical rule of thumb for home builders is that a lot needs to be purchased at 30 percent of the home's value. As such, lots valued more than \$150,000 will be in most demand.

Although inventory levels continue to be low, inventory is up from the less than one month experienced prior to March of 2022. The limited amount of inventory has had a positive effect on the stabilization of values. Still, most developers report new home values and absorption levels have decreased between 10 to 20 percent from their 2022 highs, with some recent reversal noted. Still, most have indicated values and absorption trends are showing signs of stabilization.

Development Trends - Multi-Family Development

A recent survey of a number of projects in the immediate neighborhood indicated the following data.

COMPARABLE ABSORPTION SUMMARY			
Name/ Location	Unit Size	Unit Price	Monthly Absorb.
Legacy Spanish Fork	1,784 to 1,784 sf	\$400,000 to \$420,000	2.00
Arrowhead Park Payson	1,425 to 1,450 sf	\$350,000 to \$370,000	2.00
Mapleton Village Mapleton	2,300 to 2,350 sf	\$400,000 to \$420,000	4.50
Eagle Point Eagle Mountain	1,789 to 1,843 sf	\$380,000 to \$405,000	3.50
Northshore Saratoga Springs	1,311 to 2,205 sf	\$380,000 to \$465,000	3.50
Jordan Walk Lehi	1,706 to 1,936 sf	\$435,000 to \$460,000	3.00
Songbird Lindon	1,705 to 2,349 sf	\$535,000 to \$625,000	2.50

The data above is a reflection of the current market. Since the Spring of 2022, due to the increase in interest rates, both values and absorption have decreased by a reported 10 to 20 percent. Still, all developers noted that multi-family values and absorption have stabilized with some upward pressures noted.

With the increase in interest rates creating higher costs of home ownership, an increasing number are needing to rent, pushing both rental and occupancy rates upwards. A survey of multi-family projects in the immediate market indicated rapid absorption with most projects showing absorption trends at over 10 units per month. Further, all managers report continued increases in the rental rates with most reporting vacancy at/or less than 5 percent. Older less desirable projects will continue to under-perform.

Development Trends - Commercial

Within the American Fork market, commercial development continues to occur at a moderate rate, on a demand basis, and primarily for the owner occupant. A history of commercial construction within the Utah County and American Fork marketplace is detailed in the following table.

COMMERCIAL CONSTRUCTION - UTAH COUNTY/AMERICAN FORK		
Year	Utah County (000)	American Fork (000)
2017	\$622,026.6	\$26,675.7
2018	\$523,037.8	\$26,733.9
2019	\$582,391.5	\$88,626.2
2020	\$830,804.7	\$28,741.7
2021	\$833,194.9	\$15,529.2
2022	\$877,996.9	\$35,665.1
2023	\$774,011.5	\$38,555.4
2024	\$668,312.3	\$7,665.7
2025 - Mar	\$128,391.3	\$1,059.0
Source: University of Utah BEBR		

New commercial construction within American Fork includes a number of retail buildings located within/near The Meadows and the 500 East corridors. Other retail, office, and industrial buildings are in the planning/construction stages, most of which are smaller to medium in size.

Property Turnover/Vacancy Rates - Industrial

All real estate sectors are showing strong demand with upward pressures noted. Details as to industrial vacancy within the Utah County marketplace can be found in the following table.

UTAH COUNTY VACANCY - INDUSTRIAL SPACE 2024 & 2020		
Sector	Vacancy 2024 - 4th	Vacancy 2020 - 4th
Total	4.1%	1.5%
Source: Commerce CRG		

The industrial market continues to remain stable with vacancy being up slightly from 2023 data, which indicated a 1.5 percent vacancy rate. In 2024, there was 2,933,934 square feet of new construction, with 1,485,707 square feet of positive absorption. The forecast for industrial space is for moderate growth, with vacancy and rental rates remaining stable in the short term. Currently, the average asking rate is \$0.95/sf, triple net, with a forecast of modest increases going forward.

Property Turnover/Vacancy Rates - Retail & Office

Both the office and retail sectors are also beginning to show signs of stabilizing. Details as they pertain to the office and retail sectors are summarized in the following table.

UTAH COUNTY VACANCY - OFFICE/RETAIL SPACE 2024 & 2020		
Office	Available 2024 - 4th	Available 2020 - 4th
Total	13.9%	12.6%
Retail		
Total	2.5%	4.9%
Source: Commerce CRG		

The office market remains stable with vacancy showing a slight increase from 2023 data, which indicated a 11.2 percent vacancy rate. In 2024, there was 27,475 square feet of new construction and 128,825 square feet of negative absorption, most of which was high quality space located in the north Utah County area. Much of the vacancy comes from high profile buildings. Office space that supports small business continues to have low vacancy rates. Still, vacancy continues to be high and newer high quality space will continue to outperform the market. The average rental rate for office space is \$24.38/sf, full service with a forecast of modest increases into the near term.

The retail sector vacancy continues to show signs of improvement with vacancy being down from the 2.9 percent of 2023. In 2024, there was 473,589 square feet of new construction with 173,488 square feet of positive absorption. The average rental rate for office space was \$26.50/sf, full service, with a forecast of modest increases into the near term. Further, sales tax revenues continue to trend upwards, indicating that the market is on an upward trend.

Positive/Negative Influences

The subject is located in a mixed used neighborhood of central American Fork that has seen recent growth in all sectors. No negative influences were noted.

Governmental and Legal Influences

The neighborhood is located within American Fork City jurisdiction. American Fork City services are considered adequate for local businesses and residences. Services provided to the neighborhood include street maintenance, garbage pick-up, police, and fire protection.

Availability and Adequacy of Public Utilities

All utilities such as water, sewer, electricity, telephone, natural gas, and storm drainage systems are within close proximity to the subject. The cost of utilities in this neighborhood is competitive with all other locations in the Utah County area.

Nuisances, Hazards, and Adverse Influences

At this time, no significant detrimental influences exist relative to the neighborhood. An inspection and analysis of the subject neighborhood was performed and no items of external obsolescence were observed. Due to zoning restrictions and other legal considerations, no future detriments are anticipated.

Conformity of Development and Uses

The subject property is zoned for commercial uses. According to *The Appraisal of Real Estate*, conformity is defined as "the appraisal principle that holds that real property value is created and sustained when the characteristics of a property conform to the demands of its market."⁶ It is necessary to analyze the conformance of the subject with regard to the surrounding uses since the conformance principle has a strong influence on the subject property's value.

American Fork City has done a good job in providing areas for commercial, industrial and residential development. The zoning for the subject property conforms well with the existing uses in the neighborhood. Given the nature of the surrounding development, it is unlikely that the subject's zoning would be changed in the near future.

Neighborhood Life Stage

According to *The Appraisal of Real Estate*, neighborhoods evolve through four stages which are as follows:

1. "Growth - a period during which the neighborhood gains public favor and acceptance.
2. Stability - a period of equilibrium without marked gains or losses.
3. Decline - a period of diminishing demand.
4. Revitalization - a period of renewal, modernization, and increasing demand."⁷

The neighborhood is considered to be in the growth stage of its life cycle. Growth is occurring in all real estate sectors; primarily on a demand driven basis.

⁶ Ibid., 41.

⁷ Ibid., 174.

Neighborhood Conclusion

The general neighborhood of the subject property has well defined boundaries and is located within American Fork City jurisdiction. A good zoning plan, as implemented by American Fork City, has contributed to excellent conformity of uses. General and immediate access to the subject neighborhood is considered average and adequate for its intended use.

The general neighborhood is considered to be in a growth stage and is currently 80 to 90 percent built-up. In the recent past, due to the increase in interest rates, there has been some stabilization in the commercial and industrial sectors with some softness noted in the residential sector. Although there has been some recent softness in the residential sector, most report values have leveled off. Still, newer aged/well located properties will continue to out perform the market. No detrimental conditions are noted.

A snapshot report provided by the Utah Department of Economic Development, as it applies to Utah County, can be found in the addendum of this report. This report shows mid-term trends and graphs which may provide supplementary information to that detailed in the above analysis.

SITE DESCRIPTION AND ANALYSIS

Dimensions, Shape, and Area

A copy of the subject plat, found on the following page, shows the land associated with the subject to be irregular in shape. The size of the overall site is 1.36 acres, or 59,242 square feet.

The subject has 15,700 square feet of gross building area. As such, the subject has a building-to-land ratio of 26.5 percent (15,700 square foot gross building area divided by 59,242 square foot site). This ratio is typical when compared to other retail/shop buildings. There is no excess land.

Topography and Drainage

The topography of the improved site is level, to street grade, and consistent with contiguous land parcels.

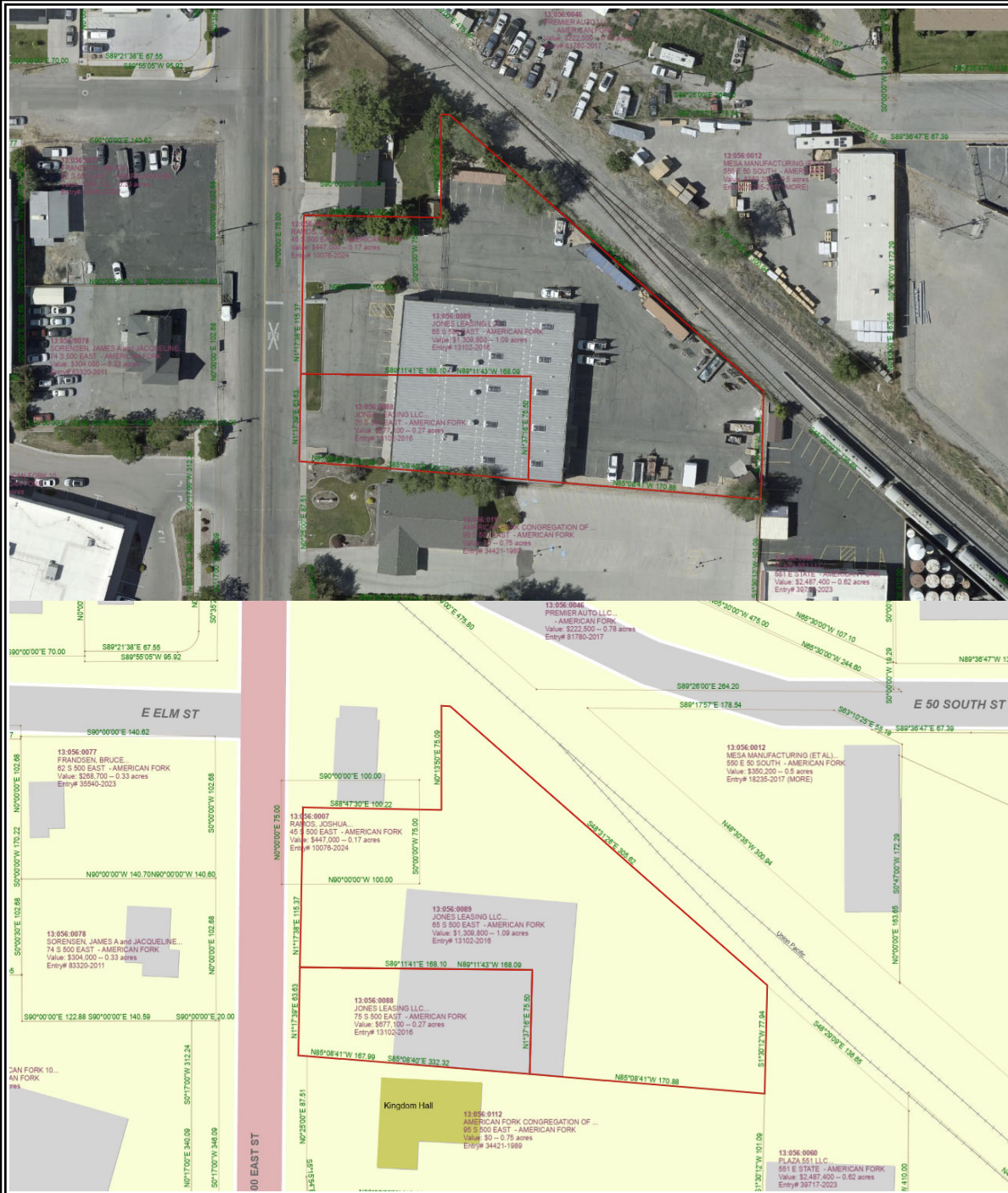
The natural drainage appears to be in a northeast to southwest direction. Although not improved with on-site storm drainage, there are no signs of ponding and/or erosion. Curb and gutter are in place along the street frontage.

According to the FEMA Flood Hazard Publication Map #49049C0168F, published June 19, 2020, the subject property is located in Zone X which is not a flood hazard area. As such, this area is not negatively influenced by additional flood hazard insurance costs. A flood plain map can be found in the addendum.

Soil and Subsoil

No actual soil samples were made for this appraisal. Based on existing and surrounding development, the subject soil should have adequate load capacity to support the highest and best use. A physical inspection of the site showed no signs of hazardous waste and no indications that the property is designated as wetlands. The value conclusions of this report are based on these assumptions.

PLAT MAP



Access and Street Improvements

The site area has 179.0 feet of frontage along the east side of 500 East. The subject's ingress/egress is provided by the 500 East frontage.

The 500 East street is a public right-of-way, has two travel lanes, is asphalt surfaced, and is classified as major collector class arterial. This and other streets in the immediate area are dedicated and maintained by American Fork City and UDOT. The site is concluded to have adequate ingress/egress and exposure for retail/shop use.

Utilities

According to American Fork City, all necessary utilities are located to the site. All utilities have adequate capacity to support the subject's highest and best use.

On-Site Improvements

The site is fully improved with asphalt paved parking, concrete curbing and some landscaping located along the street frontage. All onsite improvements are in average condition with no items of deferred maintenance noted.

Positive/Negative Influences

The subject is located within a commercial use area of central American Fork. The subject is located in close proximity to State Street and an Interstate 15 on-ramp is located 1.0 miles south via 500 East. An active railway line borders the subject on its east property line. Other than noise pollution, this railway line does not impact the subject. As such, the subject location has average access and exposure for retail/shop uses. No negative influences were noted.

Building Improvement Location

The building is situated central to the south within the overall site. Customer parking is located on the west, north and east sides of the building. Access to the overhead doors is considered to be adequate.

Rail Service

The subject does not have rail service.

Easements or Encroachments

No title report was available for review that would indicate any unusual easements. From visual inspection of the site, there are no building encroachments from contiguous properties. A review of the recorded plat did not indicate any easements, with the exception of utility easements within the setback areas. The value estimate of this report is based on these assumptions. A review of a recently prepared title report is recommended.

ZONING

The subject property is located within the incorporated boundaries of American Fork City, Utah, and is therefore under that jurisdiction for zoning and enforcement. The current zoning for the subject and the general neighborhood is GC-1, which is a General Commercial District. A zoning map can be found on the following page and a copy of the zoning ordinance can be found in the addendum of the report.

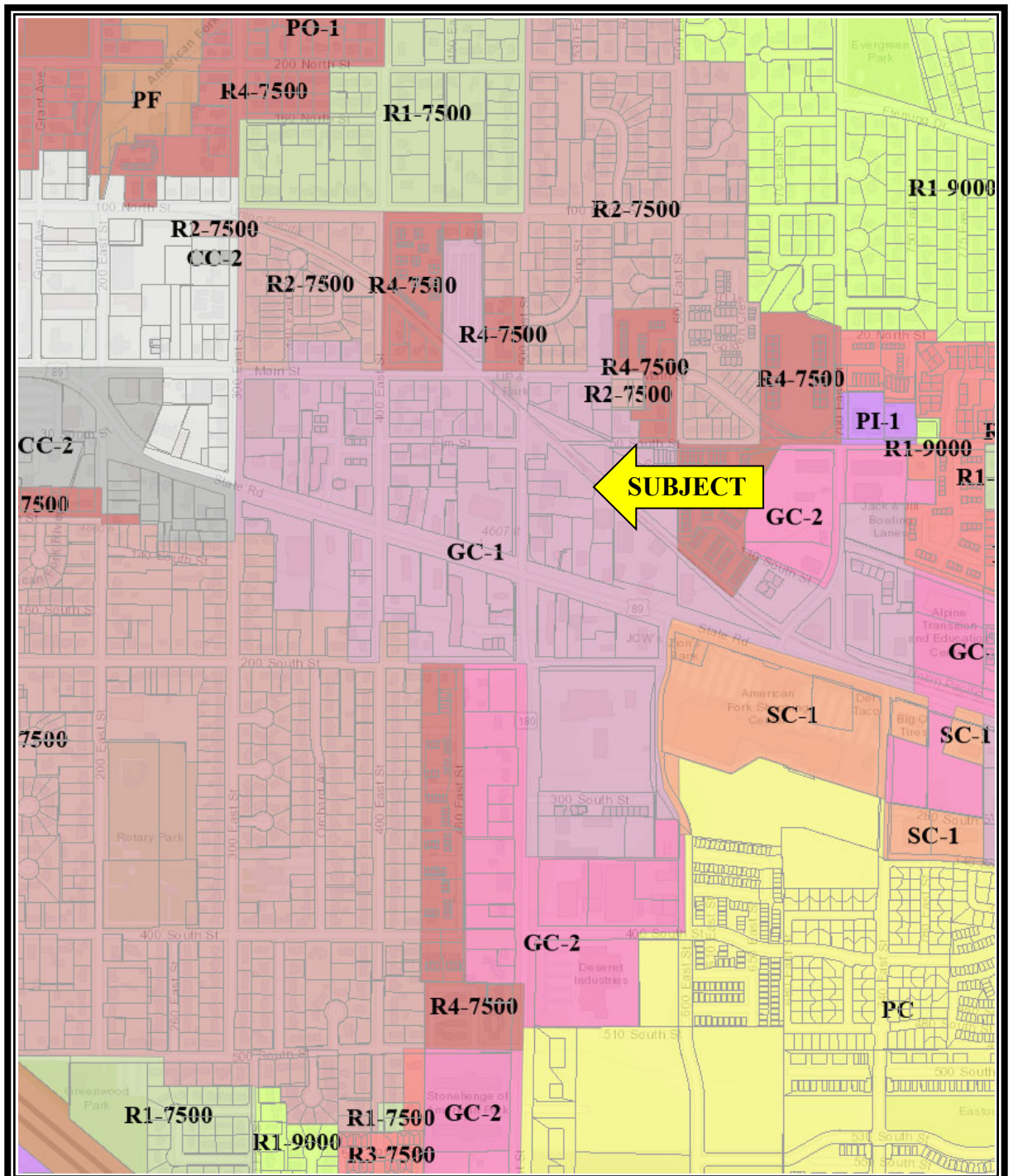
Permitted uses within the GC-1 zone include a variety of retail and office developments with residential uses being a conditional use. The following is a summary of the development standards for this zoning.

Development Standards

Minimum Lot Size:	None
Minimum Front Yard:	30 feet
Minimum Side Yard:	None
Minimum Rear Yard:	None
Maximum Building Height:	None
Minimum Landscape:	None
Building Coverage:	None
Fencing:	None
Parking: (Retail)	4.5 stall for every 1,000 feet of gross building area
(Shop)	1.0 stall for every 1,000 feet of gross building area

Based on the above, the subject represents a legal and conforming use. Further the subject has been approved with American Fork City.

ZONING MAP



IMPROVEMENT DESCRIPTION

General Description of Buildings

The building description and area are based on provided floor plans and physical inspection of the subject on December 01, 2025. The subject represents a Class “S/C” structure of average quality construction. The building is supported with steel beams and post. The roof is pitched with metal covering. The south wall is of concrete block construction, with the east and north walls being of metal construction with metal covering. The west wall is of metal construction with stucco facade. The building totals 15,700 square feet of gross building area of which 5,718 square feet (36.4%) represents retail/office space and 9,982 square feet (63.6%) represents shop/warehouse space.

A floor plan of the building can be found on the following page of this report. Individual discussion of the respective build-out is as follows:

Retail/Office Area

All 5,718 square feet of retail/office finish was built-out in 2003. The finish includes vinyl/painted cement flooring with gypsum board walls and acoustical ceiling tile/painted steel deck ceiling. Lighting is provided by recessed fluorescent fixtures. The general clear height of this area is 9 to 14 feet. The climate of the retail/office area is controlled via a central gas fired heating and air conditioning system. The retail/office area is considered average quality for this type of development.

Warehouse/Shop Area

The warehouse/shop represents the remainder of the building area (9,982 square feet). The subject building has been demised into one open work/warehouse area.

The finish within this area includes concrete flooring with vinyl backed insulation on the walls and ceiling. At most locations throughout the building there are wood sheathing protective panels located at the lower perimeter. Lighting is provided by hanging fluorescent fixtures. Climate control is provided by tubular radiant heaters.

Access to the warehouse/shop area is provided by three overhead doors located on the north and east sides of the building, none of which provide for dock high loading. General clear height is 14-16 feet.

FLOOR PLAN

Subject Building

Shop Area



Retail Area

Quality, Condition, Effective Age, and Functional Utility

By local standards, the subject is considered to be of average quality. The building is classified by the *Marshall Valuation Service* as an average cost Class “S/C” retail/shop building.

The building was constructed new in 2003 and has an actual age of 22 years. The owner reports basic maintenance over the past 10 years. A physical inspection indicated that the subject is in average condition for its age, with limited to no signs of deferred maintenance noted.

As such, an effective age of 10 years is concluded. The *Marshall Valuation Service* estimates that the economic life for a building like this is about 50 years. Based on an effective age of 10 years, the subject has a remaining life of 40 years.

The subject is fully functional for its intended use. The percentage of office finish and building-to-land ratio are consistent with the current demands within the local marketplace. The general building materials used and the design are functional and consistent with what would be constructed new today for this type of use.

American Disabilities Act

The subject is improved with handicapped parking. The interior main level restrooms have been designed to conform to ADA standards. It appears that the subject conforms to the Americans With Disabilities Act of 1990 Overview of Title III.

ASSESSMENT AND TAXES

The Utah County Assessor identifies the subject with tax parcel numbers 13:056:0088 and :0089. A combined three year tax history as it applies to the subject building is summarized in the following table.

SUBJECT BUILDING

Year	Land Value	Improvement Value	Total Value	Tax Liability	Percentage Increase
2025	\$640,000	\$1,346,900	\$1,986,900	\$17,357.56	1.8%
2024	\$613,300	\$1,281,800	\$1,895,100	\$17,055.90	16.4%
2023	\$574,200	\$1,152,100	\$1,726,300	\$14,654.56	n/a

Based on the concluded value of this report, Utah County has under assessed the subject. However, this is typical and a substantial increase in the tax liability should not be anticipated. There are no back taxes owing.

HIGHEST AND BEST USE

Real estate is typically valued in terms of its highest and best use. Highest and best use is defined in *The Appraisal of Real Estate* as:

"The reasonably probable and legal use of vacant land or an improved property, which is physically possible, appropriately supported, financially feasible, and that results in the highest value."⁸

In estimation of the highest and best use, the appraiser must consider these four basic stages of analysis for proposed uses:

1. Legally permissible uses. Are there zoning or deed restrictions that would prohibit proposed uses?
2. Physically possible uses. From the permissible uses, which are physically possible when considering all aspects of the site size, shape, and topography or any other physical aspects?
3. Financially feasible uses. Which of the above legally permissible and possible uses will produce a net return to the owner of the site?
4. Maximally productive or highest and best use. After analyzing the above considerations, which of the proposed uses will produce or generate the highest rate of net return over a projected period of time?

In determining the highest and best use of the subject property, the land is considered under two classifications. The first type is the highest and best use as though vacant; the second is the highest and best use as improved. Each type requires a separate discussion and analysis.

⁸ Appraisal Institute, *The Appraisal of Real Estate*, 11th ed. (Chicago: Appraisal Institute, 1996), 297.

Land as Vacant

This analysis assumes that the subject parcel of land is vacant or that it can be made vacant through the demolition of the improvements.

The highest and best use as vacant is for the development of retail/office and/or light industrial uses. The building should be of average to good quality construction and designed for single and/or multi-tenant use. Given the size of the land, it could be utilized by two or three larger users and/or a number of smaller users.

Highest and Best Use as Improved

The existing improvements are consistent with the highest and best use as vacant. The building is in average condition and continues to contribute to land value.

VALUATION PROCESS

In general, there are three primary valuation approaches employed within the appraisal profession by which real property is appraised. These are the Cost Approach, the Income Capitalization Approach, and the Sales Comparison Approach.

The use of each approach depends on the type of property and the availability of market data upon which the approach is predicated. The use of more than one approach, and preferably all three, requires a correlation analysis which is in effect a checking and refining measure toward a dependable final estimate of value.

As noted earlier in the report, only the Sales Comparison Approach will be expanded in this evaluation.

SALES COMPARISON APPROACH

The Sales Comparison Approach is a method of estimating market value by comparing similar properties that have sold, or that are currently listed for sale, to the subject. Of primary consideration is the fact that the comparables should have the same highest and best use as the property being appraised while the analysis focuses on the differences between the subject property and the sale comparables. Typical criteria considered are property rights conveyed, terms of sale, conditions of sale, time of sale, economic characteristics, location, size, zoning, and other physical characteristics.

The Sales Comparison Approach is primarily based on the appraisal principle of substitution. Substitution is defined in *The Dictionary of Real Estate Appraisal* as follows: "The appraisal principle that states when several similar or commensurate commodities, goods, or services are available, the one with the lowest price will attract the greatest demand and widest distribution."⁹ Other appraisal principles which apply to this approach include supply and demand, balance, and externalities.

In applying the Sales Comparison Approach, appraisers follow certain procedures or steps. According to *The Appraisal of Real Estate*, the procedure is as follows:

Sale Comparison Approach Procedure

- "1) Research the market to obtain information on sales transactions, listing, and offers to purchase or sell properties that are similar to the subject property in terms of characteristics such as property type, date of sale, size, location, and zoning. (Of particular importance is that they have the same highest and best use as the subject).
- 2) Verify the information by confirming that the data obtained are factually accurate and that the transactions reflect arm's length market considerations.
- 3) Select relevant units of comparison (e.g., dollars per acre, per square foot, or per income multiplier) and develop a comparative analysis for each unit.

⁹ Appraisal Institute, *The Dictionary of Real Estate*, 3rd ed., (Chicago: Appraisal Institute, 1993), 356.

- 4) Compare comparable sale properties with the subject property using the elements of comparison and adjust the sale price of each comparable appropriately to the subject property or eliminate the sale property as a comparable.
- 5) Reconcile the various value indications produced from the analysis of comparables into a single value indication or a range of values."¹⁰

An extensive search was made in the Utah and Salt Lake County areas for similar comparable sales. All of the comparables were arm's length transactions, similar to the subject in highest and best use, and similar in conditions of sale, date of sale, economic factors, and physical characteristics. The search disclosed five comparables which are detailed on the following pages.

¹⁰ Appraisal Institute, *The Appraisal of Real Estate*, 11th ed., (Chicago: Appraisal Institute, 1996), 401.

COMPARABLE SALE ONE**PROPERTY IDENTIFICATION**

Address:	13081 South Minuteman Drive
City/State:	Draper, Utah
Proximity to Subject:	15.0 miles north
Tax Id. Number:	28:31:301:019 (portion of)

SALE DATA

Grantor or Seller:	Pony Express Limited, LC
Grantee or Buyer:	Matt Kelly
Date of Sale:	March 2024
Sales Price:	\$6,700,000
Other	\$910,000 in excess land
Terms/Financing:	Cash to seller
Cash Equivalent Sale Price:	\$5,790,000
Verification:	Purchase Contract and buyer
Date of Inspection:	February 17, 2024
Estimated Marketing Time:	Six months

IMPROVEMENT DATA

Building Description:	Retail/Warehouse Building
Gross Building Area:	27,170 square feet
Number of Stories:	One
Office/Retail Area:	7,140 square feet
Percent Office/Retail:	26.3 percent
Clear Height:	19 feet
Construction:	Class "C", tilt-up
Quality:	Average
Condition at Sale Time:	Average
Number of Doors:	2
Year Built:	1994, renovation in 2016
Age at Sale Time:	30 years
Effective Age at Sale Time:	10 years
Building-to-Land Ratio:	31.2 percent

GENERAL PROPERTY DATA

Zoning:	CR, Commercial - Draper City
Conditions of Sale:	Arm's length
Property Rights Conveyed:	Leased Fee
Present Use:	Retail/Shop
Highest and Best Use:	Commercial

COMPARABLE SALE ONE - CONTINUED**SITE DATA**

Size:	2.00 acres, or 87,120 square feet
Configuration:	Mostly Rectangular
Topography:	Level
Utilities:	All available to the site
Parking:	Adequate
Easements/Restrictions:	None

ECONOMIC DATA

Projected Gross Income:	\$358,956
Vacancy:	\$12,564
Effective Gross Income:	\$346,392
Expenses:	\$17,320
Net Operating Income:	\$329,072
Net Income Per Sq.Ft.:	\$12.11

APPRAISAL INDICATORS

Overall Price/SF:	\$213.10
Eff. Gross Income Multiplier:	17.59
Overall Capitalization Rate:	5.68 percent

ANALYSIS: This comparable represents a superior quality/similar aged building located north of the subject in Draper along an I-15 frontage road. This location is considered to be similar to that of the subject. An upward adjustment is made for the comparable's larger size. Clear height is superior. Other physical characteristics are considered to be similar.

COMPARABLE SALE TWO**PROPERTY IDENTIFICATION**

Address:	1155 South State Street
City/State:	Provo, Utah
Proximity to Subject:	15.0 miles south
Tax ID Number:	66:313:0004

SALE DATA

Grantor or Seller:	Nichols Enterprises LLC
Grantee or Buyer:	Earl Corporation
Date of Sale:	January 2025
Sales Price:	\$3,750,000
Other:	None
Terms/Financing:	Cash to seller
Cash Equivalent Sale Price:	\$3,750,000
Verification:	Purchase Contract
Date of Inspection:	November 24, 2025
Estimated Marketing Time:	4 Months
Sale History:	None

IMPROVEMENT DATA

Building Description:	Office/Warehouse, Single-tenant
Gross Building Area:	13,182 square feet
Number of Stories:	One
Construction:	Class "C"
Quality:	Above Average
Year Built:	2009
Age at Sale Time:	16 years
Effective Age at Sale Time:	10 years
Condition at Sale Time:	Above Average
Office/Retail Area:	2,373 square feet, average
Percent Office/Retail:	18.0 percent, average
Clear Ceiling Height:	19 feet
Sprinklered:	Yes
Number of Overhead Doors:	1
Size of Overhead Doors:	Various
Dock High Floor/Doors:	No
Retail Heating/Cooling:	Gas fired heat/air conditioning
Shop Heating/Cooling:	Overhead radiant heaters
Building-to-Land Ratio:	22.6 percent

COMPARABLE SALE TWO - CONTINUED**GENERAL PROPERTY DATA**

Zoning:	CM - Commercial
Conditions of Sale:	Arm's length
Property Rights Conveyed:	Leased Fee
Present Use:	Office/Shop Building
Highest and Best Use:	Commercial

SITE DATA

Size:	1.34 acres, or 58,370 square feet
Configuration:	Mostly Rectangular
Topography:	Nearly level
Utilities:	All available to site
Parking:	Adequate
Easements/Restrictions:	None

ECONOMIC DATA

Tenant:	Cascade Collision Repair
Tenant Strength:	Local/Regional
Lease Date/Terms:	5 years
Lease Type:	NNN
Projected Gross Income:	\$242,638
Vacancy:	\$9,706
Effective Gross Income:	\$232,932
Expenses:	\$13,976
Net Operating Income:	\$218,956
Net Income Per Sq.Ft.:	\$16.61

APPRAISAL INDICATORS

Overall Price/SF:	\$284.48
Overall Capitalization Rate:	5.84 percent

ANALYSIS: This comparable represents a similar quality/similar age building located south of the subject in south Provo. This location is similar to the subject. Size is similar. Clear height is superior to the subject. Other physical characteristics are considered to be similar to those of the subject.

COMPARABLE SALE THREE**PROPERTY IDENTIFICATION**

Address:	374 North State Street
City/State:	Orem, Utah
Proximity to Subject:	5.0 miles south
Tax Id. Number:	18:006:0078, :0082 and :0092.

SALE DATA

Grantor or Seller:	STC Leasing LLC & Shan Lin
Grantee or Buyer:	Hafen Investments LLC
Date of Sale:	February 2024
Sales Price:	\$3,620,000
Other:	None
Terms/Financing:	Cash to seller
Cash Equivalent Sale Price:	\$3,620,000
Verification:	Purchase Contract, and buyer
Date of Inspection:	November 24, 2025
Estimated marketing time:	Four Months

IMPROVEMENT DATA

Building Description:	Office/warehouse, single tenant
Gross Building Area:	16,809 square feet
Number of Stories:	One
Construction:	Class "C", block
Quality:	Average
Condition at Sale Time:	Average
Year Built:	1950
Age at Sale Time:	74 years
Effective Age at Sale Time:	20 years
Office Area/Quality:	8,405 square feet, average quality
Office Percentage:	50.0 percent
Clear Ceiling Height:	14 feet
Sprinklered:	No
Number of Overhead Doors:	One
Size of Overhead Doors:	Various
Dock High Floor/Doors:	Yes
Office Heating/Cooling:	Gas forced air with air conditioning
Warehouse Heating/Cooling:	Space heaters
Building-to-Land Ratio:	31.9 percent

COMPARABLE SALE THREE - CONTINUED**GENERAL PROPERTY DATA**

Zoning:	C- Commercial
Conditions of Sale:	Arm's length transaction
Property Rights Conveyed:	Fee Simple
Present Use:	Office/warehouse
Highest and Best Use:	Present use as improved
Rail Service:	No

SITE DATA

Size:	1.21 acres, or 52,708 square feet
Configuration:	Rectangular, corner
Frontage:	State Street
Topography:	Level
Utilities:	All municipal utilities
Parking:	Adequate
Parking Ratio:	n/a
Easements/Restrictions:	None noted

ECONOMIC DATA

Tenant:	None
Tenant Strength:	n/a
Lease Type:	n/a
Term:	n/a
Lease Rate/SF:	n/a
Projected Gross Income:	n/a
Vacancy:	n/a
Effective Gross Income:	n/a
Expenses:	n/a
Net Operating Income:	n/a
NOI/SF:	n/a

APPRAISAL INDICATORS

Overall Price/SF:	\$215.36
Overall Rate:	n/a

ANALYSIS: This comparable represents a similar quality/older age building located south of the subject along State Street in Orem. This location is similar to that of the subject. A downward adjustment is warranted for the comparable's superior percentage of office finish. Size is similar and clear height is similar. Other physical characteristics are considered to be similar to those of the subject.

COMPARABLE SALE FOUR**PROPERTY IDENTIFICATION**

Address:	5639 West Mirabella Drive
City/State:	Herriman, Utah
Proximity to Subject:	20.0 miles northwest
Tax ID Number:	32:02:477:023

SALE DATA

Grantor or Seller:	IWC C LLC
Grantee or Buyer:	JSM Ventures LLC
Date of Sale:	May 2024
Sales Price:	\$3,700,000
Other:	None
Terms/Financing:	Cash to seller
Cash Equivalent Sale Price:	\$3,700,000
Verification:	Jason Judd, agent (801-915-6332)
Date of Inspection:	December 07, 2025
Estimated Marketing Time:	3 Months
Sale History:	None

IMPROVEMENT DATA

Building Description:	Office/warehouse
Gross Building Area:	12,636 square feet
Number of Stories:	One
Construction:	Class "S", steel
Quality:	Average
Year Built:	2021
Age at Sale Time:	3 years
Effective Age at Sale Time:	2 years
Condition at Sale Time:	Average
Office/Retail Area:	687 square feet, average
Percent Office/Retail:	5.0 percent, average
Clear Ceiling Height:	22 feet
Sprinklered:	No
Number of Overhead Doors:	Potential for three (currently enclosed)
Size of Overhead Doors:	n/a
Dock High Floor/Doors:	No
Retail Heating/Cooling:	Gas fired heat/air conditioning
Shop Heating/Cooling:	Overhead space heaters
Building-to-Land Ratio:	22.0 percent

COMPARABLE SALE FOUR - CONTINUED**GENERAL PROPERTY DATA**

Zoning:	C-2; Commercial
Conditions of Sale:	Arm's length
Property Rights Conveyed:	Fee Simple
Present Use:	Athletic Facility
Highest and Best Use:	Retail/Office warehouse

SITE DATA

Size:	1.32 acres, or 57,499 square feet
Configuration:	Rectangular
Topography:	Nearly level
Utilities:	All available to site
Parking:	Adequate
Easements/Restrictions:	None

ECONOMIC DATA

Tenant Strength:	n/a
Lease Date/Terms:	n/a
Lease Type:	n/a
Projected Gross Income:	n/a
Vacancy:	n/a
Effective Gross Income:	n/a
Expenses:	n/a
Net Operating Income:	n/a
Net Income Per Sq.Ft.	N/a

APPRAISAL INDICATORS

Overall Price/SF:	\$292.81
Overall Capitalization Rate:	n/a

ANALYSIS: This comparable represents a similar quality/newer age building located northeast of the subject in Herriman. This location is considered similar. Size is similar. Retail/office percentage is inferior. Clear height is superior. Other physical characteristics are considered to be similar to those of the subject.

COMPARABLE SALE FIVE**PROPERTY IDENTIFICATION**

Address:	2103 South Tracy Hall Parkway
City/State:	Provo, Utah
Proximity to Subject:	15.0 miles south
Tax ID Number:	35:082:0002

SALE DATA

Grantor or Seller:	Vista Heights Investments LLC
Grantee or Buyer:	Cabinet Creations LLC
Date of Sale:	September 2025
Sales Price:	\$2,875,000
Terms/Financing:	Cash to seller
Cash Equivalent Sale Price:	\$2,875,000
Verification:	Ben Richardson, agent (801-706-1137)
Date of Inspection:	December 7, 2025
Estimated marketing time:	6 months

IMPROVEMENT DATA

Building Description:	Retail/Warehouse
Gross Building Area:	12,329 square feet
Number of Stories:	One
Construction:	Class "C", tilt-up
Quality:	Above Average
Condition at Sale Time:	Above Average
Year Built:	2024
Age at Sale Time:	1 years
Effective Age at Sale Time:	New
Office Area/Quality:	0 square feet
Office Percentage:	0.0 percent
Clear Ceiling Height:	23 feet
Sprinklered:	Yes
Size of Overhead Doors:	12x14
Dock High Floor/Doors:	Yes, four
Office Heating/Cooling:	Gas forced air with air conditioning
Warehouse Heating/Cooling:	Space heaters, air conditioning
Building-to-Land Ratio:	28.3 percent

COMPARABLE SALE FIVE - CONTINUED**GENERAL PROPERTY DATA**

Zoning:	PIC - Industrial
Conditions of Sale:	Arm's length transaction
Property Rights Conveyed:	Fee Simple
Present Use:	Warehouse
Highest and Best Use:	Present use as improved
Rail Service:	No

SITE DATA

Size:	1.00 acres or 43,560 square feet
Configuration:	Mostly Rectangular
Frontage:	Tracey Hall Parkway
Topography:	Level
Utilities:	All municipal utilities
Parking:	Adequate
Parking Ratio:	n/a
Easements/Restrictions:	None noted

ECONOMIC DATA

Lease Type:	None
Lease Date/Terms:	n/a
Lease Rate/SF:	n/a
Projected Gross Income:	n/a
Vacancy:	n/a
Effective Gross Income:	n/a
Expenses:	n/a
Net Operating Income:	n/a

APPRAISAL INDICATORS

Overall Price/SF:	\$233.19
Overall Rate:	n/a

ANALYSIS: This comparable represents superior quality/newer aged building located south of the subject in Provo. This location has inferior visibility and traffic count and is considered inferior. Office/retail percentage is inferior to the subject. Size is similar. A downward adjustment is made for the comparable's superior clear height. Other physical characteristics are considered to be similar to those of the subject.

COMPARABLE PHOTOGRAPHS



COMPARABLE ONE
13081 South Minuteman Drive, Draper



COMPARABLE TWO
1155 South State Street, Provo



COMPARABLE THREE
374 North State Street, Orem

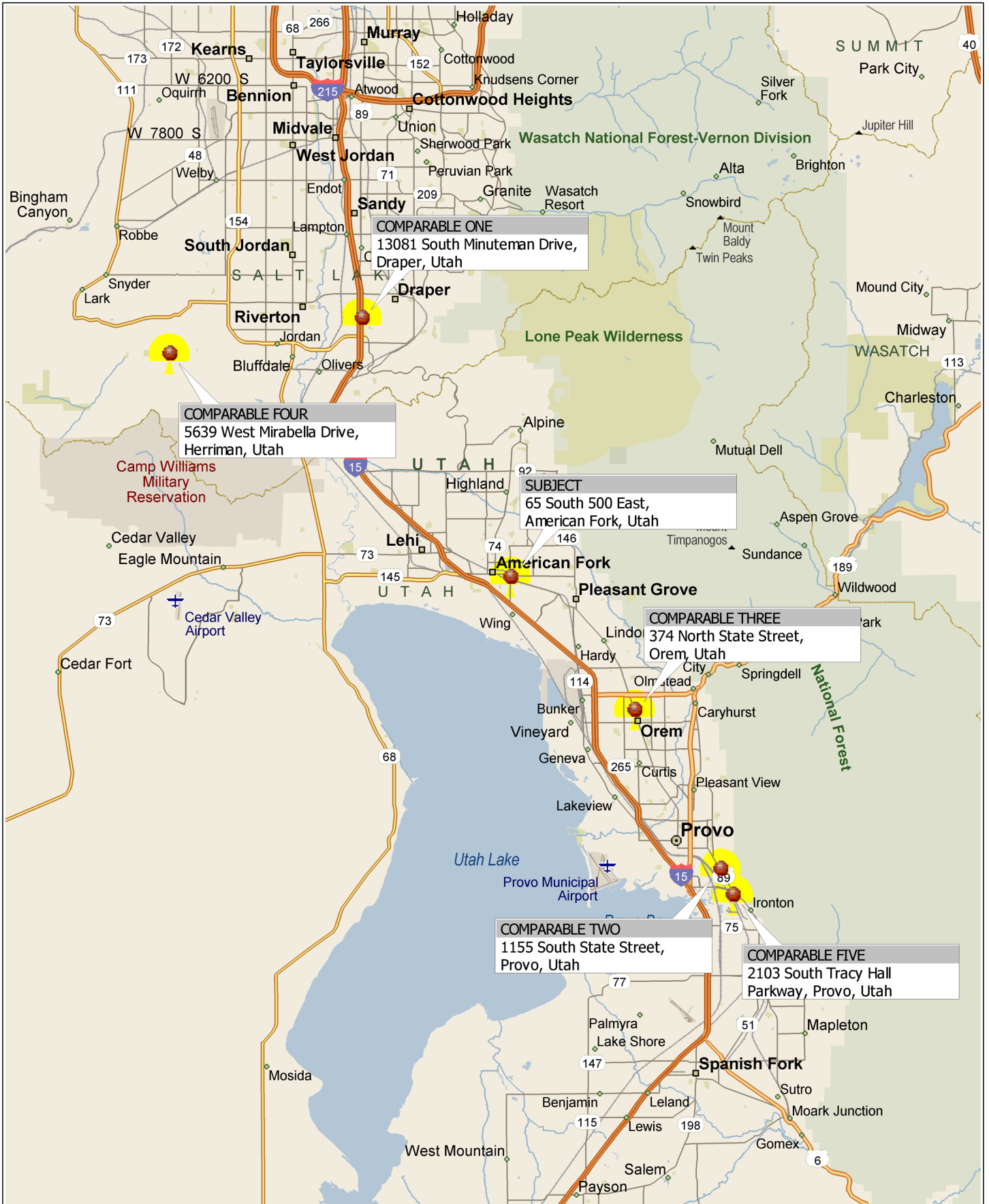


COMPARABLE FOUR
5639 West Mirabella Drive, Herriman



COMPARABLE FIVE
2103 South Tracy Hall Parkway, Provo

Sale Comparables Map



IMPROVED SALES SUMMARY							
#	Sale Date	Location	Sale Price	Size (Sq.Ft.)	% Office	Effect Age	Price/ Sq.Ft.
1	03/24	13081 S. Minuteman Dr, Draper	\$5,790,000	27,170	26.3%	10 yrs	\$213.10
2	01/25	1155 S. State Street, Provo	\$3,750,000	13,182	18.0%	10 yrs	\$284.48
3	02/24	374 N. State Street, Orem	\$3,620,000	16,809	50.0%	20 yrs	\$215.36
4	05/24	5639 W. Mirabella Dr, Herriman	\$3,700,000	12,636	5.0%	2 yrs	\$292.81
5	09/25	2103 S. Tracey H. Pkwy, Provo	\$2,875,000	12,329	0.0%	New	\$233.19
Subject		65 S. 500 East, American Fk.	n/a	15,700	36.4%	10 yrs	n/a

Value Indication by Price Per Square Foot Method

The subject will be valued based on the price per square foot method. Prior to adjustments, the comparables indicate a value range from \$213.10 to \$292.81 per square foot. Variance in price can typically be attributed to differences in property rights, conditions of sale, date of sale, location, and physical differences.

All of the comparables represents arms length, cash to seller transactions. As such, no adjustments are warranted for terms of sale and/or financing.

The comparables sold under a time frame from March 2024 to a September 2025. All of the comparables represent relatively recent transactions and a small 3.0 percent annual adjustment is made.

The subject is being valued in fee simple title. Two of the comparables sold under leased fee. However, no adjustment is warranted as these comparables had market lease rates. No other adjustments are made.

As to location and physical characteristics, factors warranting adjustments, as it was discussed in the Analysis Section of the respective comparable data sheets, will be reflected in the adjustment grid found on the following page.

ADJUSTMENT GRID					
	COMPARABLES				
	1	2	3	4	5
Unadjusted Price/SF	\$213.10	\$284.48	\$215.36	\$292.81	\$233.19
Property Rights	0%	0%	0%	0%	0%
Subtotal	\$213.10	\$284.48	\$215.36	\$292.81	\$233.19
Terms of Sale	0%	0%	0%	0%	0%
Subtotal	\$213.10	\$284.48	\$215.36	\$292.81	\$233.19
Conditions of Sale	0%	0%	0%	0%	0%
Subtotal	\$213.10	\$284.48	\$215.36	\$292.81	\$233.19
Market Conditions (Date)	3%	0%	3%	3%	0%
Subtotal	\$219.49	\$284.48	\$221.82	\$301.59	\$233.19
Location Ab. Average	0% Similar	0% Similar	0% Similar	0% Similar	5% Inferior
Quality Steel/Block/Avg	-5% Tilt	0% Block	0% Block	0% Steel	-5% Tilt
Age/Condition 10 yrs	0% 10 yrs	0% 10 yrs	5% 20 yrs	-5% 2 yrs	-5% New
Size 15,700 sf	5% 27,170 sf	0% 13,182 sf	0% 12,949 sf	0% 12,636 sf	0% 12,329 sf
Percent Retail/Office 36.4%	0% 26.3%	5% 18.0%	-5% 50.0%	10% 5.0%	10% 0.0%
Clear Height 14-16	-2% 19 feet	-2% 19 feet	0% 14 feet	-5% 22 feet	-5% 23 feet
Building-to-Land 26.5%	0% 31.2%	0% 22.6%	0% 31.9%	0% 22.0%	0% 28.3%
Site Improvements Full	0% Full	0% Full	0% Full	0% Full	0% Full
Other	0%	0%	0%	0%	0%
ADJUSTED PRICE/ SQ.FT.	\$215.10	\$293.01	\$221.82	\$301.59	\$233.19
NET ADJUSTMENT	-2%	3%	0%	0%	0%
GROSS ADJUSTMENT	12%	7%	10%	20%	30%
<u>Mean</u>	\$252.94				

Price Per Square Foot Conclusion

The comparables indicate a range of adjusted sale prices from \$215.10 to \$301.59 per square foot with an overall average of \$252.94 per square foot. All of the comparables are good for comparison and most weight is given the overall average. When giving weight to the overall average, a rounded value of \$253.00 per square foot is justified. At 15,700 square feet, the subject's value is calculated as follows:

\$253.00/SF x 15,700 SF	\$ 3,972,100
ROUNDED TO	\$ 3,970,000

After careful consideration of the information presented in this section of the report, I am of the opinion that the as is market value of the fee simple estate, as of December 01, 2025, is:

\$3,970,000

"THREE MILLION NINE HUNDRED SEVENTY THOUSAND DOLLARS"

RECONCILIATION AND FINAL VALUE ESTIMATE

Reconciliation is the final step in the valuation process where the appraisal report concludes with a final value estimate.

A brief description of the site, building improvements, and other factors concerning the property were discussed. The property was analyzed concerning the highest and best use as if vacant and as improved. The existing improvements are consistent with the highest and best use as vacant.

The next step in the appraisal process was estimating the fee simple title market value of the subject through appraisal methods. The major valuation conclusion was reached in the report via the Sales Comparison Approach (\$3,970,000). As noted, the Income Capitalization and Cost Approaches were not applicable.

After careful consideration of the information and analysis contained within this report, I am of the opinion that the "as is" market value of the subject property, with fee simple property rights, as of December 01, 2025, is:

\$3,970,000

"THREE MILLION NINE HUNDRED SEVENTY THOUSAND DOLLARS"

CERTIFICATION OF VALUE

I, BRADFORD DYRENG certify that, to the best of my knowledge and belief:

- The statements of fact contained in this report are true and correct.
- The reported analyses, opinions, and conclusions are limited only by the reported assumptions and limiting conditions and are my personal, impartial, and unbiased professional analyses, opinions, and conclusions.
- I have no present or prospective interest in the property that is the subject of this report and no personal interest with respect to the parties involved.
- I have not performed other appraisal services, as an appraiser, regarding the property that is the subject of this report within the three-year period immediately preceding acceptance of this assignment.
- I have no bias with respect to the property that is the subject of this report or to the parties involved with this assignment.
- My engagement in this assignment was not contingent upon developing or reporting predetermined results.
- My compensation for completing this assignment is not contingent upon the development or reporting of a predetermined value or direction in value that favors the cause of the client, the amount of the value opinion, the attainment of a stipulated result, or the occurrence of a subsequent event directly related to the intended use of this appraisal.
- My analyses, opinions, and conclusions were developed, and this report has been prepared, in conformity with the *Uniform Standards of Professional Appraisal Practice*.
- I have made a personal inspection of the property that is the subject of this report.
- No one provided significant real property appraisal assistance to the person signing this certification.
- The reported analyses, opinions, and conclusions were developed, and this report has been prepared, in conformity with the Code of Professional Ethics and Standards of Professional Appraisal Practice of the Appraisal Institute.
- The use of this report is subject to the requirements of the Appraisal Institute relating to review by its duly authorized representatives.

- As of the date of this report, I have completed the continuing education program of the Appraisal Institute.

December 16, 2025
BRADFORD DYRENG



Utah State - Certified General Appraiser License # 6168334-CG00 (Exp. 11/30/27)
--

GENERAL ASSUMPTIONS

This appraisal report has been made with the following general assumptions:

1. The legal description used in this report is assumed to be correct.
2. No survey of the property has been made by the appraiser and no responsibility is assumed in connection with such matters. Sketches in this report are included only to assist the reader in visualizing the property.
3. No responsibility is assumed for matters of a legal nature affecting title to the property nor is an opinion of title rendered. The title is assumed to be good and marketable, unless otherwise stated.
4. Information furnished by others is assumed to be true, correct, and reliable. A reasonable effort has been made to verify such information; however, no responsibility for its accuracy is assumed by the appraiser.
5. All mortgages, liens, encumbrances, leases, and servitudes have been disregarded unless so specified within the report. The property is appraised as though under responsible ownership and competent management.
6. It is assumed that there are no hidden or unapparent conditions of the property, subsoil, or structures which would render it more or less valuable. No responsibility is assumed for such conditions or for engineering which may be required to discover such factors.
7. Full compliance with all applicable federal, state, and local environmental regulations and laws is assumed unless noncompliance is stated, defined, and considered in the appraisal report.
8. It is assumed that all applicable zoning and use regulations and restrictions have been complied with, unless a nonconformity has been stated, defined, and considered in the appraisal report.
9. It is assumed that all required licenses, certificates of occupancy, consents, or other legislative or administrative authority from any local, state, or national government or private entity or organization have been or can be obtained or renewed for any use on which the value estimate contained in this report is based.
10. It is assumed that the utilization of the land and improvements is within the boundaries or property lines of the property described and that there is no encroachment or trespass unless noted in the report.

GENERAL LIMITING CONDITIONS

The appraisal report has been made with the following general limiting conditions:

1. The appraiser will not be required to give testimony or appear in court because of having made this appraisal, with reference to the property in question, unless arrangements have been previously made.
2. Possession of this report, or a copy thereof, does not carry with it the right of publication. It may not be used for any purpose by any person other than the party to whom it is addressed without the written consent of the appraiser, and in any event only with proper written qualification and only in its entirety.
3. The distribution of the total valuation in this report between land and improvements applies only under the reported highest and best use of the property. The allocations of value for land and improvements must not be used in conjunction with any other appraisal and are invalid if so used.
4. Disclosure of the contents of this appraisal report is governed by the By-Laws and Regulations of the Appraisal Institute.

Neither all nor any part of the contents of this report (especially any conclusions as to value, the identity of the appraiser or any reference to the Appraisal Institute or to the MAI designation) shall be disseminated to the public through advertising media, public relations media, sales media or any other public means of communication without the prior written consent and approval of the appraiser.

5. Acceptance of and/or use of this appraisal report constitutes acceptance of the stated general assumptions and limiting conditions.

SPECIAL LIMITING CONDITIONS

1. The liability of Dyreng Real Estate Services is limited to the client only and to the fee actually received by appraiser. Further, there is no accountability, obligation, or liability to any third party. If this report is placed in the hands of anyone other than client, the client shall make such party aware of all limiting conditions and assumptions of the assignment and related discussions. The appraiser is in no way to be responsible for any costs incurred to discover or correct any deficiencies of any type present in the property; physically, financially, and/or legally. In the case of limited partnerships or syndication offerings or stock offerings in real estate, client agrees that in case of lawsuit (brought by lender, partner or part owner in any form of ownership, tenant, or any other party), any and all awards, settlements of any type in such suit, regardless of outcome, client will hold appraiser completely harmless in any such action.
2. The existence of potentially hazardous material on or near the subject site and/or used in the construction or maintenance of any of the buildings, such as the presence of urea-formaldehyde foam insulation, and/or the existence of toxic waste, which may or may not be present on the property, was not observed by myself, nor do I have any knowledge of the existence of such materials on or in the property. The appraiser, however, is not qualified to detect such substances. The existence of urea-formaldehyde foam insulation or other potentially hazardous waste material may have an effect on the value of the property. I urge the client to retain an expert in this field if desired.
3. If there is proposed construction, the appraisal is made subject to satisfactory completion of construction according to architectural plans.

SUBJECT PHOTOGRAPHS



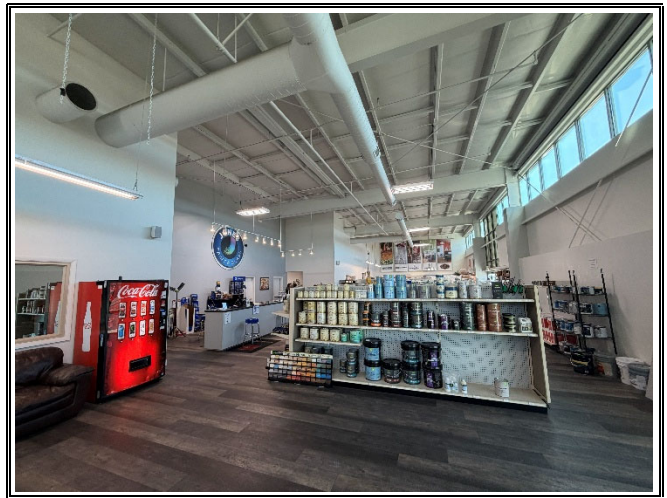
LOOKING SOUTHEASTERLY AT SUBJECT



LOOKING NORTHEASTERLY AT SUBJECT



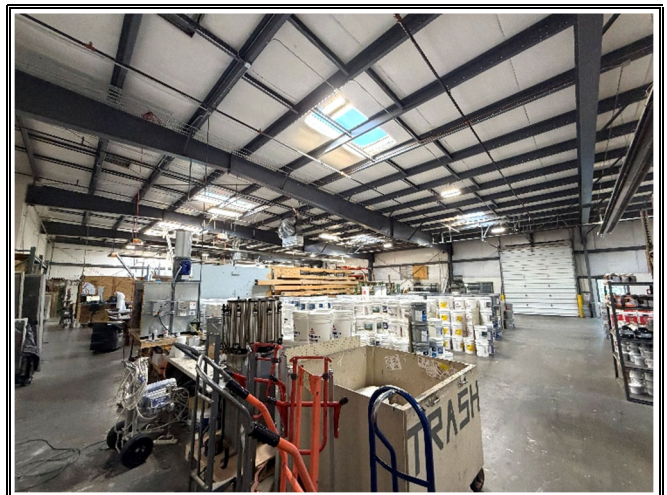
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TYPICAL FINISH



TYPICAL FINISH



TYPICAL FINISH

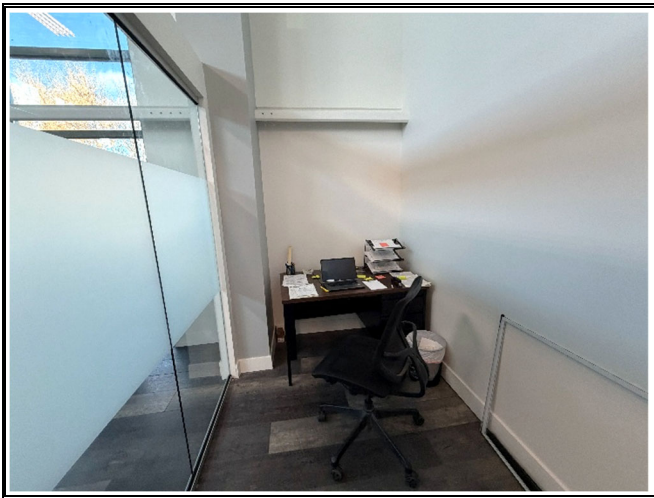
SUBJECT PHOTOGRAPHS



TYPICAL FINISH



TYPICAL FINISH



TYPICAL FINISH



TYPICAL FINISH



LOOKING SOUTHERLY AT 500 EAST



LOOKING NORTHERLY AT 500 EAST

QUALIFICATIONS OF APPRAISER
BRADFORD DYRENG, MAI
DYRENG REAL ESTATE SERVICES
Real Estate Appraisers and Consultants
1032 North Titan Drive
Lehi, UT 84043

Education

Utah State University, Master of Business Administration, December 2009

Real Estate and Appraisal Courses

Basic Appraisal Principles, Appraisal Institute 02/10
Basic Appraisal Procedures, Appraisal Institute 02/10
15-Hour National USPAP Course 02/10
Online Residential Sales Comparison and Income Approach, Appraisal Institute 03/11
Residential Site Valuation and Cost Approach, Appraisal Institute 03/11
Online Residential Market Analysis and Highest & Best Use, Appraisal Institute 03/11
Residential Report Writing and Case Studies, Appraisal Institute 05/11
Business Practices and Ethics, Appraisal Institute 07/12
General Appraiser Income Approach Part I, Appraisal Institute 03/14
General Appraiser Income Approach Part II, Appraisal Institute 03/14
General Appraiser Sales Comparison Approach, Appraisal Institute 06/14
General Appraiser Site Valuation and Cost Approach, Appraisal Institute 07/14
General Appraiser Market Analysis and Highest & Best Use, Appraisal Institute 09/14
Real Estate Finance Statistics and Valuation Modeling, Appraisal Institute 10/14
General Appraisal Report Writing and Case Studies, Appraisal Institute 11/14
Small Hotel/Motel Valuation, Appraisal Institute 03/15
Subdivision Valuation, Appraisal Institute 03/15
7-Hour Equivalent USPAP Update Course, Appraisal Institute, 05/17
Analyzing Operating Expenses, Appraisal Institute 12/17
Appraising Convenience Stores, Appraisal Institute 12/17
Data Verification Methods, Appraisal Institute 12/17
Advanced Income Capitalization, Appraisal Institute 02/18
Advanced Market Analysis and Highest & Best Use, Appraisal Institute 04/18
Quantitative Analysis 10/2019
Advanced Concepts and Case Studies 11/2019

Work History

Real Estate Appraiser/Consultant
Nielsen and Company, Orem, Utah
March 2010 to February 2020

Real Estate Appraiser/Consultant
Dyrenge Real Estate Services, Draper, Utah
March 2020 to Present

Professional Accomplishments

Certified General Appraiser - State of Utah - License # 6168334-CG - Expires 11/30/2027
Member of the Appraisal Institute - Member ID #539222
MAI Designation - Appraisal Institute - February 2024

Appraisal Experience

Apartment Project: 12 to 120 unit projects.
Eminent Domain: Road widening, wetlands mitigation, utility corridors, and airport expansion.
Hotel/Motel: Hotels and motels ranging from 40 to 120 rooms with convention facilities.
Industrial: Office/warehouse and manufacturing facilities up to 4,000,000 square feet.
Office Building: Single and multi-tenant facilities ranging from 1,000 to 200,000 square feet.
Assisted Living: Various care levels ranging from 8 to 85 wards.
Townhome and Condo projects: Single and multi-phase projects ranging from 10 to 120 units.
Retail: Neighborhood and community centers.
Raw Land: Land ranging from 10 to 1,000 acres.
Subdivisions: Single and multi-phase projects ranging from 4 to 200 lots.
Recreational Properties.

Partial List of Clients Served

Zions First National Bank	Utah Department of Transportation
First Security Bank	Lehi City
Western Bank	American Fork City
Washington Mutual Bank	Provo City
U.S. Bank	Orem City
Bank of American Fork	Utah County
Central Bank	Springville City
Far West Bank	Various attorneys
Brighton Bank	Alpine School District
Holladay Bank and Trust	Credit Bureaus
Orem Community Bank	Various developers and contractors
Banc One	Grand County
Capital Community Bank	LDS Church
American Investment Financial	Versar Engineering
First National Bank	Horricks Engineering
National Bank of Arizona	RBG Engineering
Frontier State Bank	Celtic Bank
Wells Fargo Bank	Silver State Bank
GE Capital Asset Funding	Prudential Mortgage Capital
Merrill Lynch Mortgage Capital Inc.	GMAC Capital Funding
National Mortgage Company	SkyMar Capital Funding
California Bank and Trust	Mountain America Credit Union
Bank of Utah	M & T Mortgage

**STATE OF UTAH
DEPARTMENT OF COMMERCE
DIVISION OF REAL ESTATE**

ACTIVE LICENSE

DATE ISSUED: 12/07/2023

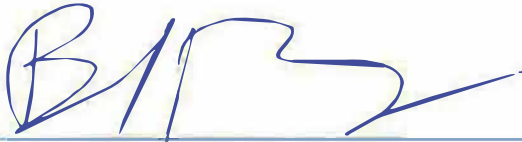
EXPIRATION DATE: 11/30/2025

LICENSE NUMBER: 6168334-CG00

LICENSE TYPE: Certified General Appraiser

BRADFORD BAILEY DYRENG
13923 S ARROW CREEK DR
DRAPER UT 84020




SIGNATURE


REAL

ADDENDUM

DEFINITIONS

These definitions have been extracted, solely or in combination, from definitions and descriptions printed in:

- The Dictionary of Real Estate Appraisal, Fourth Edition, Appraisal Institute, Chicago, Illinois, 2002 (Dictionary).
- The Appraisal of Real Estate, Twelfth Edition, Appraisal Institute, Chicago, Illinois, 2001 (Twelfth Edition).
- Marshall Valuation Service, Marshall & Swift, Los Angeles, California, (MVS).

Absolute Net Lease

A lease in which the tenant pays all expenses including structural maintenance and repairs; usually a long-term lease to a credit tenant. (*Dictionary*)

Accrued Depreciation

The difference between the reproduction or replacement cost of the improvements on the effective date of the appraisal and the market value of the improvements on the same date. (*Dictionary*)

Deferred Maintenance

Curable, physical deterioration that should be corrected immediately, although work has not commenced; denotes the need for immediate expenditures, but does not necessarily suggest inadequate maintenance in the past. (*Dictionary*)

Discounted Cash Flow (DCF) Analysis

The procedure in which a discount rate is applied to a set of projected income streams and a reversion. The analyst specifies the quantity, variability, timing, and duration of the income streams as well as the quantity and timing of the reversion and discounts each to its present value at a specified yield rate. DCF analysis can be applied with any yield capitalization technique and may be performed on either a lease-by-lease or aggregate basis. (*Dictionary*)

Effective Date

The date at which the analyses, opinions, and advice in an appraisal, review, or consulting service apply. (*Dictionary*)

Entrepreneurial Incentive

A market-derived figure that represents the amount an entrepreneur expects to receive as compensation for providing coordination and expertise and assuming the risks associated with the development of a project. (*Twelfth Edition*)

Entrepreneurial Profit

A market-derived figure that represents the amount an entrepreneur receives for his or her contribution to a project and risk; the difference between the development cost of a property and its market value upon completion and stabilization, which represents the entrepreneur's compensation for the risk and expertise associated with development.

Entrepreneurial profit is an amount earned, estimated after completion, while entrepreneurial incentive is an amount anticipated, prior to development. (*Twelfth Edition*)

Exposure Time

The time a property remains on the market. The estimated length of time the property interest being appraised would have been offered on the market prior to the hypothetical consummation of a sale at market value on the effective date of the appraisal; a retrospective estimate based on an analysis of past events assuming a competitive and open market. Exposure time is always presumed to occur prior to the effective date of the appraisal. The overall concept of reasonable exposure encompasses not only adequate, sufficient and reasonable time but also adequate, sufficient and reasonable effort. Exposure time is different for various types of real estate and value ranges and under various market conditions. (*Dictionary*)

Fee Simple Estate

Absolute ownership unencumbered by any other interest or estate, subject only to the limitations imposed by the governmental powers of taxation, eminent domain, police power, and escheat. (*Dictionary*)

Floor Area Ratio (FAR)

The relationship between the above-ground floor area of a building, as described by the building code, and the area of the plot on which it stands; in planning and zoning, often expressed as a decimal, e.g., a ratio of 2.0 indicates that the permissible floor area of a building is twice the total land area. (*Dictionary*)

Gross Building Area (GBA)

The total floor area of a building, including below-grade space but excluding unenclosed areas, measured from the exterior of the walls. All enclosed floors of the building including basements, mechanical equipment floors, penthouses, and the like are included in the measurement. Parking spaces and parking garages are excluded. (*Dictionary*)

Gross Lease

A lease in which the landlord receives stipulated rent and is obligated to pay all or most of the property's operating expenses and real estate taxes. (*Dictionary*)

Highest and Best Use

The reasonably probable and legal use of vacant land or an improved property, which is physically possible, appropriately supported, financially feasible, and that results in the highest value. The four criteria the highest and best use must meet are legal permissibility, physical possibility, financial feasibility, and maximum profitability. (*Dictionary*)

Industrial Property Classifications

Distribution Warehouse - High cube single-story structures with clear ceiling heights of at least 22 feet to allow three stacking heights of seven feet each. The most common height in this market is 24-foot clear ceiling height. Some distribution buildings now have clear ceiling heights as high as 40 feet or more due to the introduction of robotic computer systems, which allow very narrow aisles and high stacking. In general, column spacing is wider than that in office warehouse buildings and office build-out is minimal, generally 10% or less.

(Definitions Continued)

Flex - Buildings designed with warehouse capabilities such as dock-high or drive-in loading doors and clear ceiling heights of 14 to 16 feet. However, they are termed flex based on their broad range of office finish and their single-story exterior office appearance. The level of office finish typically ranges from 30% to 70% and suites can be divided into relatively small units. Research & Development (R&D) buildings are generally the same as flex warehouse construction but with higher percentages of office finish, often up to 90%.

Manufacturing - Buildings intended to provide space in which to transform, fabricate, or assemble physical resources into other physical goods. These buildings can vary greatly in design, with low clear ceiling heights of 12 feet, to very high clear ceiling heights of 30 feet or more, according to specific industry needs.

Office Warehouse - Generally single-story buildings with clear ceiling heights ranging from about 16 feet to 21 feet. The level of office finish is shaped by the needs of individual tenants, the general uses within the market area, and the availability of parking. The level of office finish typically ranges from 10% to 20%. Suites are typically larger than flex warehouse space. These buildings usually have drive-in bays, dock height bays, or a combination thereof and are used for light manufacturing, services, and small-scale distribution businesses.

Insurable Value

Value used by insurance companies as the basis for insurance. Often considered to be replacement or reproduction cost plus allowances for debris removal or demolition less deterioration and noninsurable items. Sometimes cash value or market value, but often entirely a cost concept. *(MVS)*

Leased Fee Interest

An ownership interest held by a landlord with the rights of use and occupancy conveyed by lease to others. The rights of the lessor (the leased fee owner) and the lessee are specified by contract terms contained within the lease. *(Dictionary)*

Leasehold Interest

The interest held by the lessee (the tenant or renter) through a lease transferring the rights of use and occupancy for a stated term under certain conditions. *(Dictionary)*

Market Rent

The rental income a property would probably command in the open market; indicated by the current rents that are either paid or asked for comparable space as of the date of the appraisal. *(Twelfth Edition)*

Market Value

The most probable price which a property should bring in a competitive and open market under all conditions requisite to a fair sale, the buyer and seller each acting prudently and knowledgeably, and assuming the price is not affected by undue stimulus. Implicit in this definition is the consummation of a sale as of a specified date and the passing of title from seller to buyer under conditions whereby:

(Definitions Continued)

- buyer and seller are typically motivated;
- both parties are well informed or well advised, and acting in what they consider their best interests;
- a reasonable time is allowed for exposure in the open market;
- payment is made in terms of cash in United States dollars or in terms of financial arrangements comparable thereto; and
- the price represents the normal consideration for the property sold unaffected by special or creative financing or sales concessions granted by anyone associated with the sale. (*Dictionary; 12 C.F.R. Part 34.42(g); 55 Federal Register 34696, August 24, 1990, as amended at 57 Federal Register 12202, April 9, 1992; 59 Federal Register 29499, June 7, 1994*)

Marketing Time

The time it takes an interest in real property to sell on the market subsequent to the date of an appraisal. Reasonable marketing time is an estimate of the amount of time it might take to sell an interest in real property at its estimated market value during the period immediately after the effective date of the appraisal; the anticipated time required to expose the property to a pool of prospective purchasers and to allow appropriate time for negotiation, the exercise of due diligence, and the consummation of a sale at a price supportable by concurrent market conditions. (*Dictionary*)

Modified Gross Lease

A lease in which the landlord receives stipulated rent and is obligated to pay most, but not all, of the property's operating expenses and real estate taxes. (*Dictionary*)

Net Lease

Generally a lease in which the tenant pays for utilities, janitorial services, and either property taxes or insurance, and the landlord pays for maintenance, repairs, and the property taxes or insurance not paid by the tenant. Also called *single net lease*, *modified gross lease*, and *semi-gross lease*; sometimes used synonymously with *single net lease* but better stated as a *partial net lease* to eliminate confusion. (*Dictionary*)

Net Net Lease

Generally a lease in which the tenant pays for utilities, janitorial services, property taxes, and insurance in addition to the rent, and the landlord pays for maintenance and repairs. Also called *double net lease*, *NN*, *modified gross lease*, and *semigross lease*; sometimes used synonymously with *single net lease* but better stated as a *partial net lease* to eliminate confusion. (*Dictionary*)

Net Net Net Lease

A net lease under which the lessee assumes all expenses of operating a property, including both fixed and variable expenses and any common area maintenance that might apply, but the landlord is responsible for structural repairs. Also called *triple net lease* or *NNN* but better stated as a fully net lease. (*Dictionary*)

Prospective Value Opinion

A forecast of the value expected at a specified future date. A prospective value opinion is most frequently sought in connection with real estate projects that are proposed, under construction, or under conversion to a new use, or those that have not achieved sellout or a stabilized level of long-term occupancy at the time the appraisal report is written. (*Dictionary*)

Rentable Area (RA)

The amount of space on which rent is based, calculated according to local practice. (*Dictionary*)

Replacement Cost

The estimated cost to construct, at current prices as of the effective appraisal date, a building with utility equivalent to the building being appraised, using modern materials and current standards, design and layout. (*Dictionary*)

Reproduction Cost

The estimated cost to construct, at current prices as of the effective date of the appraisal, an exact duplicate or replica of the building being appraised, using the same materials, construction standards, design, layout, and quality of workmanship and embodying all the deficiencies, superadequacies, and obsolescence of the subject building. (*Dictionary*)

Stabilized Occupancy

Occupancy at that point in time when abnormalities in supply and demand or any additional transitory conditions cease to exist and the existing conditions are those expected to continue over the economic life of the property; the optimum range of long term occupancy which an income-producing real estate project is expected to achieve under competent management, after exposure for leasing in the open market for a reasonable period of time at terms and conditions comparable to competitive offerings. (*Dictionary*)

Usable Area

The area available for assignment or rental to an occupant, including every type of usable space; measured from the inside finish of outer walls to the office side of corridors or permanent partitions and from the centerline of adjacent spaces; includes subdivided occupant space, but no deductions are made for columns and projections. (*Dictionary*)

Value As Is

The value of specific ownership rights to an identified parcel of real estate as of the effective date of the appraisal; relates to what physically exists and is legally permissible and excludes all assumptions concerning hypothetical market conditions or possible rezoning. (*Dictionary*)

ECONOMIC SNAPSHOT

Utah County

Select Area
Utah County



Year-to-Year Change in Nonfarm Jobs March 2025

↑ 1,460

↑ 0.5%

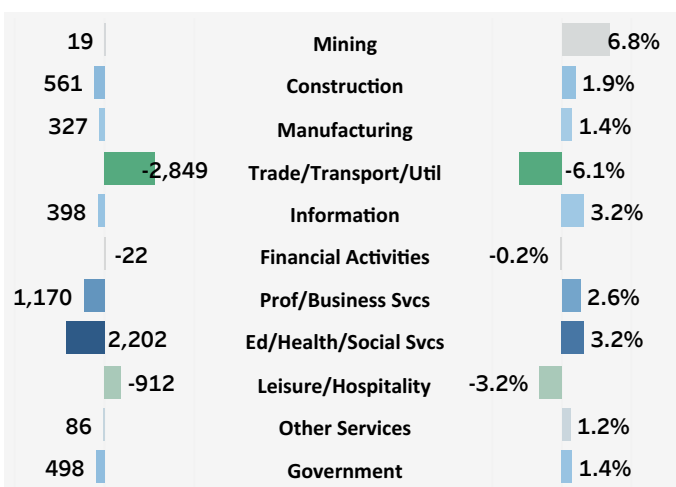
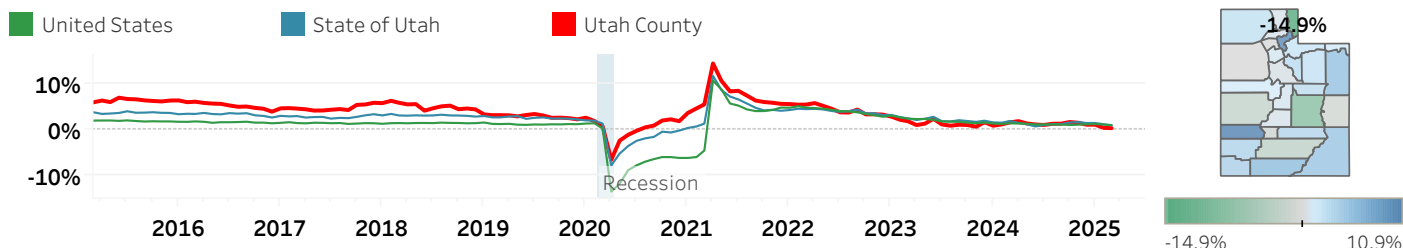
Utah County

↑ 1.1%

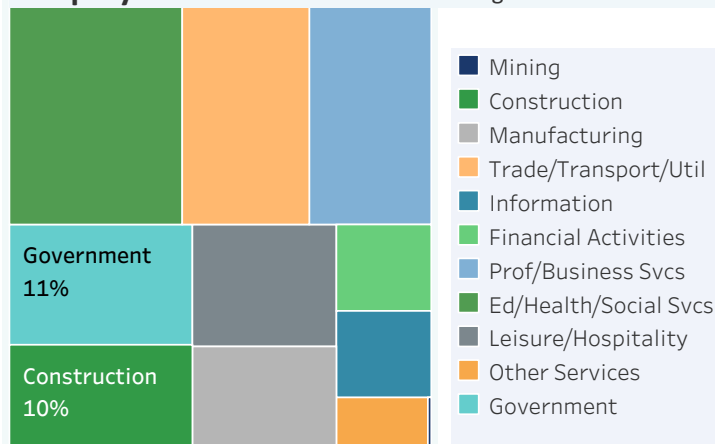
State of Utah

↑ 1.1%

United States



Employment Share 12 Months ending March 2025**



How's the economy?

Utah County saw slower job growth in the first quarter of 2025 amid weakness in the trade, transportation & utilities sector. However, at 3.3%, the county's July unemployment rate remains in line with that of the state. Construction in the county continues to be strong in 2025, with total construction values up 79% year-to-date, driven by strong nonresidential construction, much of which has been for the construction of industrial, warehousing and manufacturing structures.

Jobs

Utah County grew jobs by just 0.5% over the year ended March 2025 amid a 6.1% decline in trade, transportation and utilities jobs. The sector, which is the second largest industry by employment, shed 2,849 jobs over the year. However, job gains in the education, health & social services and professional & business services sectors offset these declines.

* Preliminary. Source: U.S. Bureau of Labor Statistics; Utah Department of Workforce Services. Updated August 2025, next update November 2025.

jobs.utah.gov/wi/insights/county/utah.html

Gwen Kervin, gkervin@utah.gov

ECONOMIC SNAPSHOT Utah County

Select Area
Utah County



Seasonally Adjusted Unemployment Rate July 2025

3.3%

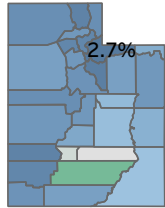
Utah County

3.3%

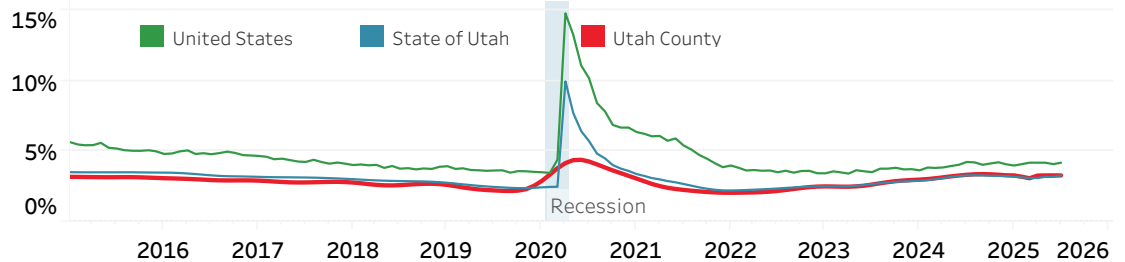
State of Utah

4.2%

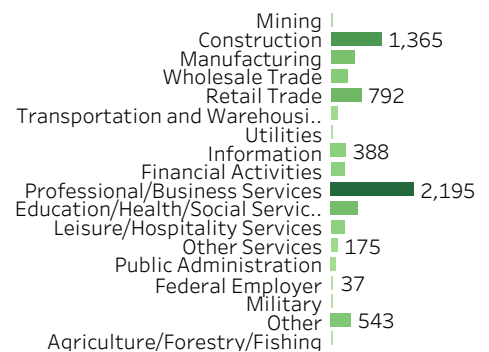
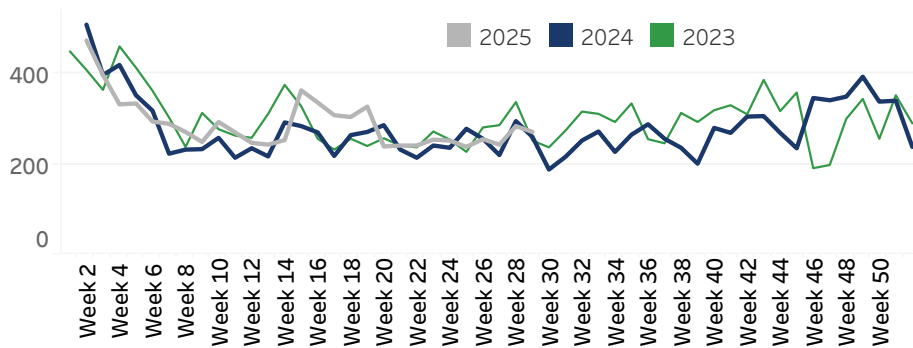
United States



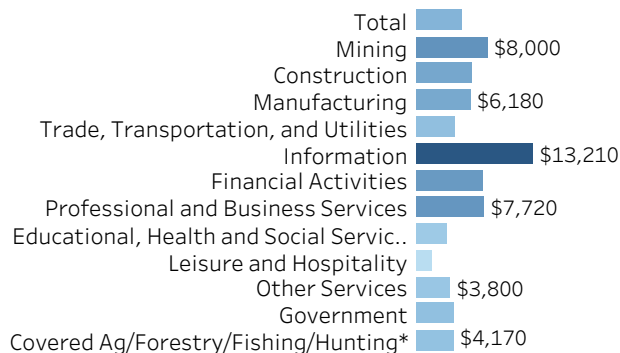
2.7% 7.5%



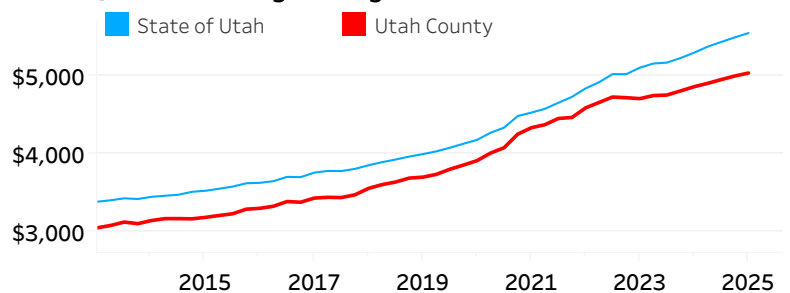
Initial Claims for Unemployment Insurance July 13, 2025 YTD



Average Monthly Wage* First Quarter 2025



Four-Quarter Moving Average



Unemployment & Wages

Utah County's July 2025 unemployment rate came in at 3.3%, in line with that of the state. The county's unemployment rate has hovered around 3.2% and 3.3% throughout 2025. Unemployment rates at these levels still point to strong labor markets.



Over the last year, Utah County has averaged 289.3 new unemployment claims per week, a 1% increase over the previous year. In comparison, the State of Utah had a year-over-year decrease in initial unemployment claims of 2%.



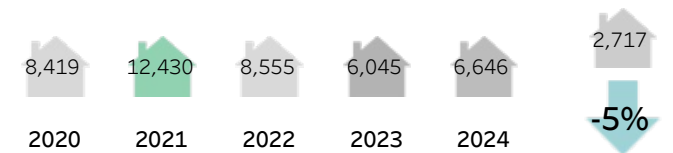
Wage growth in Utah County has lagged that of the state for the past two years. Professional and business services, which accounts for 15% of the county's employment saw average monthly wages decline by 2% over the last year. Trade, transportation and utilities, which reduced industry employment by 6.1% over the last twelve months, had one of the slowest growth rates in wages over the last 12 months, increasing..



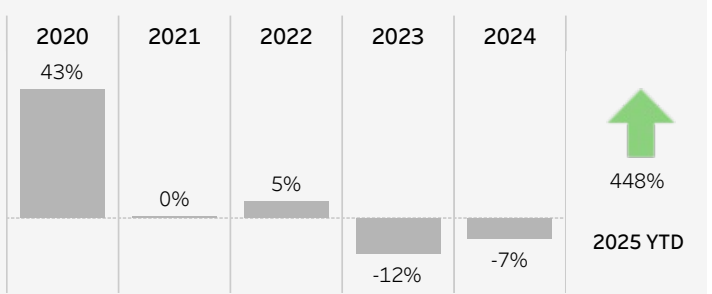
*Preliminary. Source: U.S. Bureau of Labor Statistics and Utah Dept of Workforce Services. Updated August 2025, next update November 2025.

Construction Permitting May 2025 YTD

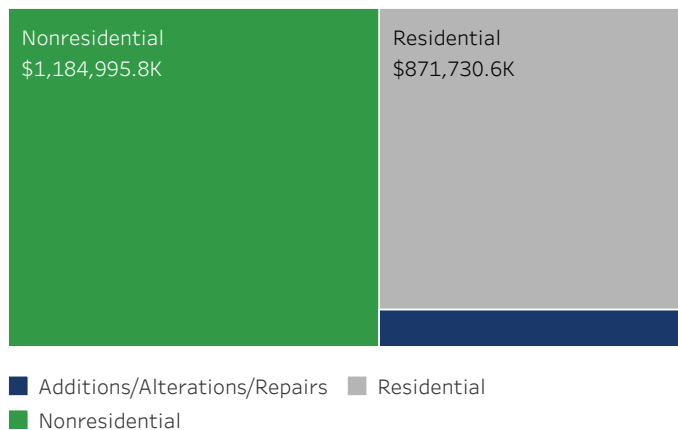
Dwelling Unit Permits



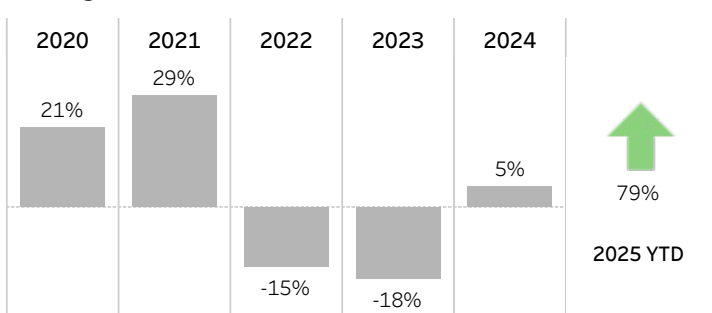
Change in Nonresidential Values



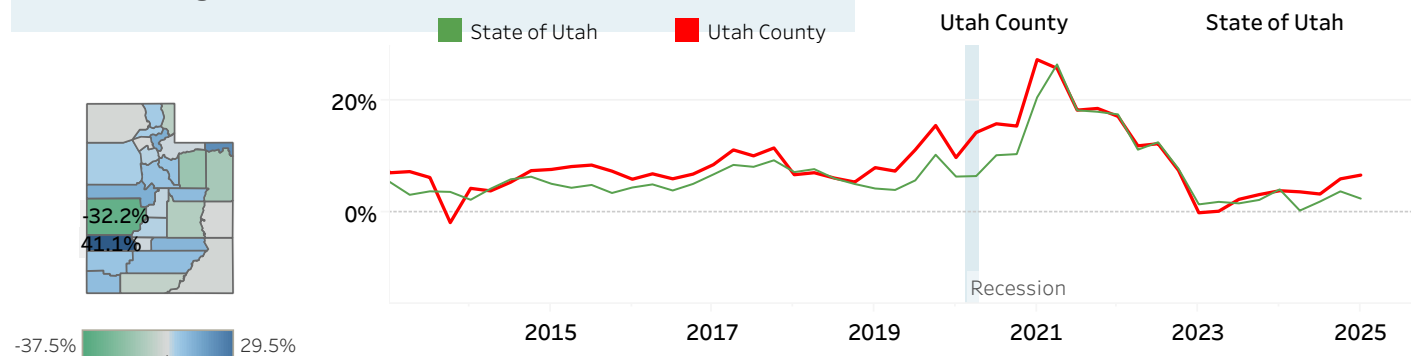
Values to Date



Change in Total Values



Annual Change in Gross Taxable Sales First Quarter 2025



Construction & Sales

Total construction permitting values in Utah County are up 79% year-to-date, buoyed by a 448% increase in nonresidential permitting values. Nonresidential permitting values stand at \$1.2 billion, \$985.7 million of which is for industrial, warehousing and manufacturing construction. 

Taxable sales are up 6.6% in Utah County, surpassing the statewide taxable sales growth rate of 2.4% for the first quarter of 2025. Taxable retail services, which makes up 57% of total taxable sales in the county, grew by 7.1% to 2.5 billion. Amid the retail sector, general merchandise stores and motor vehicle and parts dealers generated the most sales, bringing in \$556.8 million and \$540.4 million, respectively. 

ECONOMIC SNAPSHOT Utah County



Nonfarm Jobs First Quarter 2025*

	January 2025			February 2025			March 2025		
	Total Jobs	Year-Ago Numeric Change	Year-Ago Percent Change	Total Jobs	Year-Ago Numeric Change	Year-Ago Percent Change	Total Jobs	Year-Ago Numeric Change	Year-Ago Percent Change
TOTAL	310,363	3,777	1.2%	311,225	1,664	0.5%	311,940	1,460	0.5%
GOODS PRODUCTION	54,093	1,537	2.9%	53,860	1,040	2.0%	54,186	907	1.7%
Mining	283	28	11.0%	281	20	7.7%	299	19	6.8%
Construction	29,811	906	3.1%	29,669	595	2.0%	29,987	561	1.9%
Manufacturing	23,999	603	2.6%	23,910	425	1.8%	23,900	327	1.4%
SERVICE PRODUCTION	256,270	2,240	0.9%	257,365	624	0.2%	257,754	553	0.2%
Trade/Transport/Util	44,643	-2,134	-4.6%	44,298	-2,601	-5.5%	44,001	-2,849	-6.1%
Wholesale Trade	6,712	-440	-6.2%	6,751	-459	-6.4%	6,742	-377	-5.3%
Retail Trade	32,358	-1,357	-4.0%	32,061	-1,792	-5.3%	31,888	-1,965	-5.8%
Transportation/Warehousing	5,050	-346	-6.4%	4,979	-349	-6.6%	4,865	-504	-9.4%
Utilities	523	9	1.8%	507	-1	-0.2%	506	-3	-0.6%
Information	13,136	485	3.8%	13,107	530	4.2%	12,998	398	3.2%
Financial Activities	12,197	-259	-2.1%	12,275	-97	-0.8%	12,334	-22	-0.2%
Finance and Insurance	8,376	-281	-3.2%	8,423	-148	-1.7%	8,486	-44	-0.5%
Real Estate and Rental/Leasing	3,821	22	0.6%	3,852	51	1.3%	3,848	22	0.6%
Prof/Business Svcs	45,507	1,156	2.6%	45,370	725	1.6%	45,911	1,170	2.6%
Professional/Sci/Tech Svcs	25,721	198	0.8%	25,888	361	1.4%	25,809	329	1.3%
Management of Companies	3,178	378	13.5%	3,193	373	13.2%	3,181	266	9.1%
Admin Support/Waste Mgt	16,608	580	3.6%	16,289	-9	-0.1%	16,921	575	3.5%
Ed/Health/Social Svcs	69,118	2,435	3.7%	70,284	2,079	3.0%	70,548	2,202	3.2%
Educational Services	30,132	1,389	4.8%	31,110	1,234	4.1%	31,449	1,501	5.0%
Health Care/Social Services	38,986	1,046	2.8%	39,174	845	2.2%	39,099	701	1.8%
Leisure/Hospitality	27,316	-498	-1.8%	27,491	-680	-2.4%	27,580	-912	-3.2%
Arts/Entertainment/Recreation	4,020	9	0.2%	4,034	-12	-0.3%	3,977	-204	-4.9%
Accommodation/Food Services	23,296	-507	-2.1%	23,457	-668	-2.8%	23,603	-708	-2.9%
Other Services	7,406	89	1.2%	7,475	64	0.9%	7,497	86	1.2%
Government	36,946	967	2.7%	37,064	605	1.7%	36,884	498	1.4%
Federal	1,113	-9	-0.8%	1,111	-18	-1.6%	1,108	-9	-0.8%
Local	25,814	717	2.9%	25,864	392	1.5%	25,650	316	1.2%
State	10,019	259	2.7%	10,089	231	2.3%	10,126	191	1.9%
Unclassified	1	-1	-50.0%	1	-1	-50.0%	1	-18	-94.7%
Covered Agriculture*	1,073	41	4.0%	1,113	19	1.7%	1,115	-42	-3.6%
Private	273,417	2,810	1.0%	274,161	1,059	0.4%	275,056	962	0.4%

*Preliminary: Source: Utah Department of Workforce Services. Updated August 2025, next update November 2025.

Sec 17.4.402 GC-1 General Commercial Zone

- A. Intent. The intent in establishing the GC-1 general commercial zone is to provide a place for wholesaling and retailing activities and services, along with the fabrication and processing of goods and material where no fumes, glare, dust, noise, smoke or vibration are emitted beyond the premises. While primacy is given to wholesaling and retailing activities, motels and vacation vehicle courts are also characteristic of the uses of this zone.
- B. Permitted and conditional uses. The following buildings, structures and use of land shall be permitted upon compliance with requirements set forth in this code.
1. Any use permitted in the CC-1 central commercial zone, except for residential uses, subject to the same conditions and standards.
 2. Auction houses.
 3. Manufacturing, compounding and processing when a part of and incidental to a permitted primary use provided no noise, fumes, glare, dust, smoke or vibration is emitted beyond the premises.
 4. Plumbing shops, carpenter shops, hardware and retail lumber yards.
 5. Pasturing of animals.
 6. Recreational vehicle courts subject to the provisions of Section 17.6.103 of this code.
 7. Reserved.
 8. Welding and sheet metal shops.
 9. Accessory buildings.
 10. Tire recapping establishments.
 11. Fences, walls and hedges, subject to conditions as set forth in Section 17.5.115.
 12. Other uses similar to the foregoing uses which are interpreted by the planning commission to be in harmony with the intent of the zone.
 13. Non-accessory signs-billboards when situated within one hundred feet of the right-of-way of Interstate Highway 15 and subject to the conditions set forth in Section 17.6.115 of this code.
 14. Ancillary commercial structures subject to the conditions set forth under Section 17.6.105.
 15. Reserved.
 16. Low power radio service antenna facilities, subject to the provisions of Section 17.6.112 of this code.
 17. Specialty schools, subject to the approval of a site plan in accordance with the provisions of Section 17.6.101.
 18. Check cashing and similar businesses subject to the provisions of Section 17.6.114 of this code and Chapter 5.30 of the city code.
 19. Body art establishments subject to the provisions of Section 17.6.116 of this code and the provisions of Ordinance 2009-08-30.
- C. Lot area, lot width and building location requirements.
1. Lot area and width. There shall be no minimum lot area or width requirements except that an area sufficient to accommodate the structure, landscaped areas, minimum setback, required off-street parking, loading and unloading, and vehicular ingress and egress shall be provided and maintained.
 2. Location requirements. Buildings shall be set back from the lot lines as follows:
 - a. Front setback. All buildings shall be set back not less than thirty feet, provided that where it is proposed that the front setback area is to be used for off-street parking the minimum front setback area shall be increased to forty feet.
 - b. Side and Rear setback.
 - (1) When abutting a street: Same as required for front setback.
 - (2) When abutting a residential zone, the Land Use Authority may require a setback of up to thirty (30) feet.

- (3) Interior side and rear: There shall be no minimum side or rear setback requirement, except that any proposed structure shall be located outside of easements along an interior side or rear property line.

c. Rear setback. Same as required under side setback - interior side.

D. Special provisions.

1. All material, equipment (except vehicles in running order), and merchandise shall be stored within an enclosed building or within an enclosed fence or wall of not less than six feet in height provided that there shall be no areas or enclosure requirement for automobile sales or storage lots for vehicles in running order in the GC-1 general commercial zone. All display, sales and repair activities shall be conducted within a fully enclosed building, except those activities that are customarily and appropriately conducted in the open, including but not limited to automobile sales lots and automobile service stations, temporary sales of Christmas trees and nursery stock, shall be permitted outside a building unless otherwise prohibited under the terms of this code.
2. The entire lot shall be kept free from refuse, debris and junk.
3. No noise, fumes, smoke, dust vibration or intermittent light shall be emitted from the premises which is deleterious to surrounding property values.
4. All buildings and uses within the zone shall comply with all applicable supplementary development standards as set forth in this code.
5. All off-street parking shall be hard-surfaced.
6. Prior to the issuance of a building permit for any development within the zone, site plan shall be submitted to and approved by the planning commission. Said site plan shall be prepared and approved in accordance with the provisions of Section 17.6.101.
7. As a means of mitigating safety hazards or adverse visual impacts the city may require, as a condition of site plan approval, the installation of landscape features. Where landscaping is required, the site plan shall, in addition to all other plan elements, contain a landscape plan showing the location, type and initial size of all planting materials and other landscape features, and the location of the proposed sprinkler system.

(Ord. No. 08-01-05; Ord. No. 08-02-16; Ord. No. 2009-08-30, 8-11-2009)

HISTORY

Amended by Ord. 2019-10-65 on 10/22/2019

Amended by Ord. 2023-08-32 on 8/22/2023

CHAPTER 17.5 SUPPLEMENTARY REGULATIONS

[Sec 17.5.101 Intent](#)

[Sec 17.5.102 Yard Space For One Building Only](#)

[Sec 17.5.103 Sale Or Lease Of Required Space Prohibited](#)

[Sec 17.5.104 Each Dwelling To Be On A Zoning Lot](#)

[Sec 17.5.105 Area Of Accessory Buildings](#)

[Sec 17.5.106 Accessory Building Prohibited As Living Quarters](#)

[Sec 17.5.107 Storage Of Junk And Debris Prohibited](#)

[Sec 17.5.108 Yards To Be Unobstructed - Projections Excepted](#)

[Sec 17.5.109 Exception To Front And Side Setback Requirements](#)

[Sec 17.5.110 Clear View Of Intersection Sight Distances](#)

[Sec 17.5.111 Setback Of Buildings From Proposed Streets](#)

[Sec 17.5.112 Additional Height Allowed For Public Buildings](#)

[Sec 17.5.113 Location Of Barns](#)

[Sec 17.5.114 Drainage](#)

[Sec 17.5.115 Fences, Walls And Hedges](#)

[Sec 17.5.116 Pollution Prevention](#)

[Sec 17.5.117 Concessions In Public Parks And Playgrounds](#)

[Sec 17.5.118 Fractional Numbers](#)

[Sec 17.5.119 Off-Street Parking](#)

[Sec 17.5.120 Motor Vehicle Access](#)

[Sec 17.5.121 Landscaping](#)

[Sec 17.5.122 Temporary And Seasonal Uses](#)

[Sec 17.5.123 Home Occupations](#)

[Sec 17.5.124 Recreational Vehicles And Mobile Homes Prohibited; Exceptions](#)

[Sec 17.5.125 Moved Buildings](#)

[Sec 17.5.126 Minimum Level Of Improvements Required Prior To Issuance Of Building Permit](#)

[Sec 17.5.127 Water Rights To Be Conveyed As Condition Of Building Permit](#)

[Sec 17.5.128 Signs And Advertising Structures](#)

[Sec 17.5.129 Special Provisions Relating To Dwellings](#)

[Sec 17.5.130 Rules For Determining Height Of Buildings](#)

[Sec 17.5.131 Water And Sewer Connection Standards](#)

[Sec 17.5.132 Sexually Oriented Businesses](#)

[Sec 17.5.133 Off-Street Parking Standards](#)

[Sec 17.5.134 Accessory Apartments](#)

[Sec 17.5.135 Installation Of Communication Infrastructure Design Standards](#)

Sec 17.5.101 Intent

The intent of this section is to provide for several miscellaneous land development standards which are applicable in more than one zone. The requirements of this section shall be in addition to development standards contained within the various zones. Where the provisions of this section may be in conflict with other provisions of this code, the more stringent shall prevail.

Sec 17.5.102 Yard Space For One Building Only

All required yards shall be situated on the same lot as the building or structure to which it applies. No required yard, area, or other open space around a building or use which is needed to comply with the area, setback, or open space requirements of this code shall be considered as providing the required area, yard, setback or open space for any other building or use; nor shall any area, yard, setback, or other required open space on an adjoining lot be considered as providing the area, setback, or open space requirement of a building or use.

Sec 17.5.103 Sale Or Lease Of Required Space Prohibited

No space needed to meet the area, frontage, width, coverage, off-street parking, frontage on a public street, or other requirement of this code for a lot or building may be sold, bequeathed, or leased apart from such lot or building unless other space so complying is provided, nor shall any land be sold which will result in an existing or future lot that does not comply with all of the provisions of this code.

Sec 17.5.104 Each Dwelling To Be On A Zoning Lot

Only one building which contains a dwelling shall be located and maintained on a zoning lot.

Sec 17.5.105 Area Of Accessory Buildings

Accessory buildings shall not be larger than an area two times the size of the footprint (foundation) of the primary structure; or cover more than twenty-five percent of the total rear yard area of a lot, whichever is less. All accessory buildings shall be of a character which is consistent and compatible with the bulk, height, style and construction materials of existing dwellings in the immediate vicinity. There shall be no signage on any portion of the accessory building and the area surrounding the accessory building shall be landscaped. An accessory building containing a building footprint of one thousand square feet or larger shall require approval of the planning commission, subject to the following findings: (1) the accessory building will be incidental to the primary use of the parcel, (2) the applicant has provided adequate assurance that neither the accessory building nor any portion thereof will be used or converted for use as living or sleeping quarters (see Section 17.5.106) or for the conduct of a business (except when located in a commercial zone permitting such activity), and (3) the bulk, height, style and construction material of the accessory structure is compatible with dwellings in the immediate vicinity and will not result in an undue negative impact upon adjacent properties.

(Ord. No. 2000-10-31; Ord. No. 08-05-26; Ord. No. 2013-06-21, § 1, 6-11-2013)

Sec 17.5.106 Accessory Building Prohibited As Living Quarters

Living and sleeping quarters shall not be permitted in any accessory building.

Sec 17.5.107 Storage Of Junk And Debris Prohibited

No yard or other open space shall be used for the storage of junk, debris, or obsolete vehicles; and no land shall be used for such purposes, except as specifically permitted herein.

Sec 17.5.108 Yards To Be Unobstructed - Projections Excepted

Every part of a required yard shall be open to the sky and unobstructed except for permitted accessory buildings and except for ordinary and customary projection of sills, belt courses, cornices, and other ornamental features and unenclosed steps and unwallled stoops, porches, and carports, which may project up to three feet into a required yard. Canopies over gasoline pumps may extend into a required yard but not closer than three feet to the property lines.

Sec 17.5.109 Exception To Front And Side Setback Requirements

The setback from the street for any dwelling located between two existing dwellings may be the same as the average for said two existing dwellings, provided the existing dwellings are on the same side of the street, and are located within one hundred fifty feet of each other, and provided that no dwelling shall be located closer than twenty feet from the right-of-way or easement line of said street.

Sec 17.5.110 Clear View Of Intersection Sight Distances

Intersection sight distances for public and private streets shall meet the following criteria.

- A. Intersection sight distances shall comply with the terms of that certain document entitled "A policy on Geometric Design of Highways and Streets" as promulgated by the American Association of State Highway Officials (AASHTO), which is hereby adopted for use within the city, as further defined on Figure 17.5.110-A.
- B. Sight obstructions are not permitted within the sight triangle, except that trees may be permitted provided that they are pruned to a height of not less than eight feet. Also light poles and similar uses may be permitted, provided they do not create a visual impairment to traffic.
- C. "Approach standards" shall be applied to streets without any stop control as set forth in AASHTO Figure 9.50(a).
- D. "Departure" standards shall be applied to intersecting streets with stop control devices, as set forth in AASHTO Figure 9.50(b). The distance identified as "a" on said drawings is measured from a driver located eight feet behind the stop sign/stop bar/cross walk.
- E. Stop signs/stop bars shall be placed a minimum of four feet behind the painted cross walk or sidewalk extension (where no painted cross walk exists).
- F. Stop signs shall be placed a minimum of two feet behind the sidewalk at all locations, or drive approaches where the sidewalk extends through the travel way.

FIGURE 17.5.110-A

MINIMUM STANDARDS FOR INTERSECTION SIGHT DISTANCE

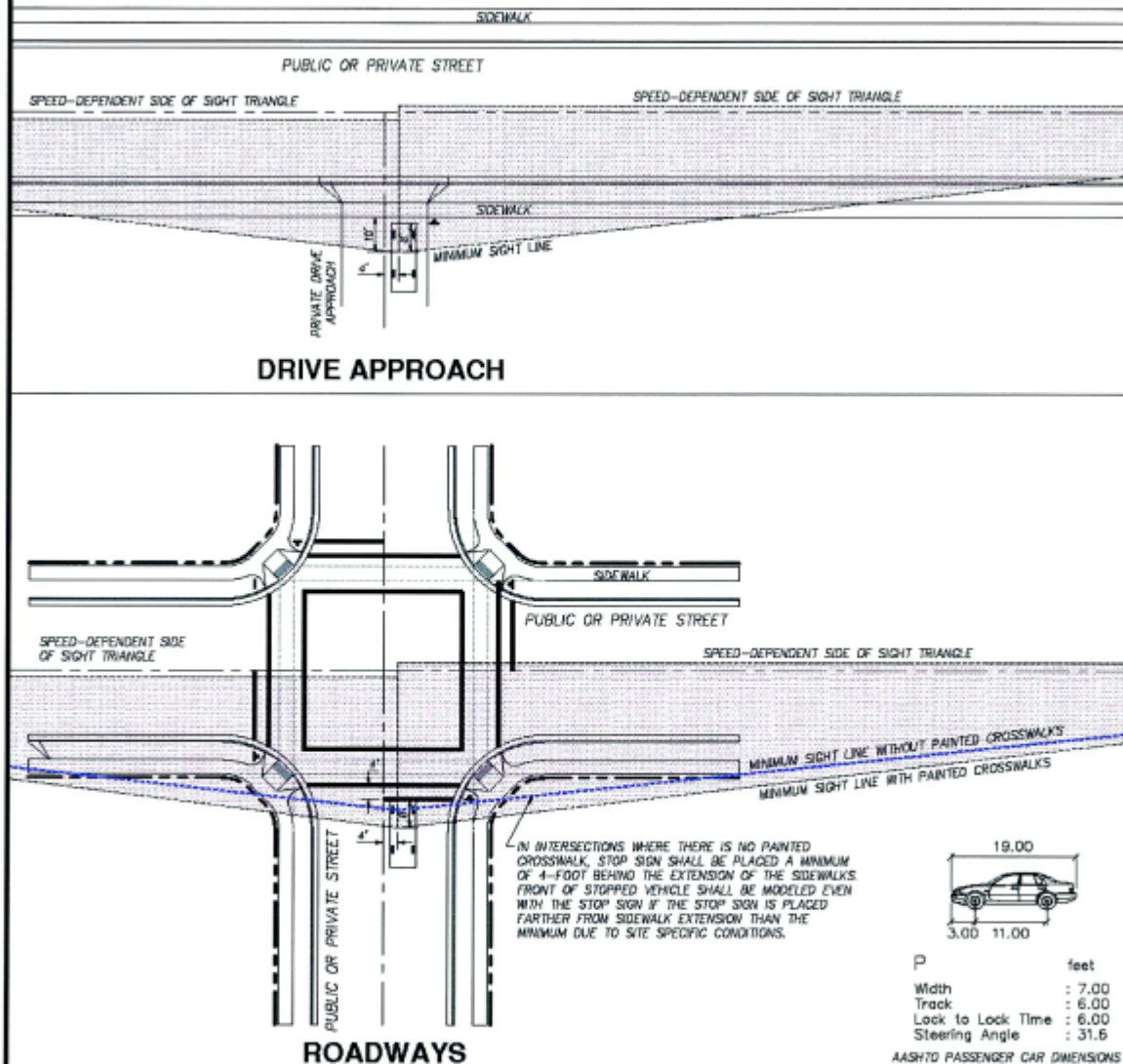
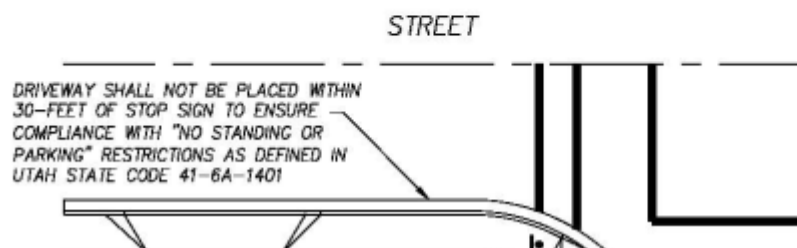
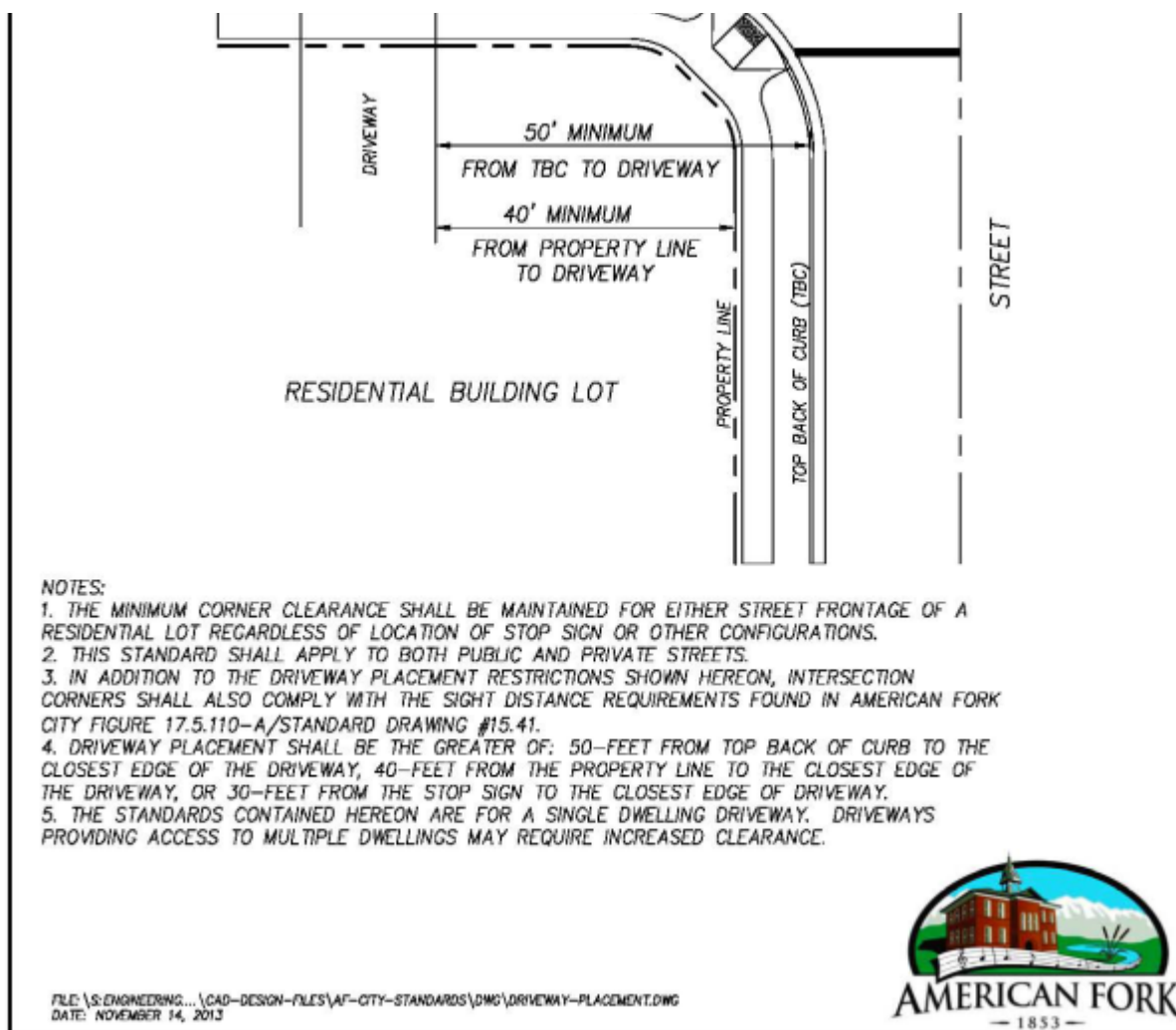


FIGURE 17.5.110-B
MINIMUM STANDARDS FOR:
**CORNER CLEARANCE OF
RESIDENTIAL DRIVEWAYS**
(SINGLE DWELLING DRIVEWAY ACCESS)





(Ord. No. 2012-02-05, pt. I(§ 3), 2-28-2012; Ord. No. 2014-01-02, § 2, 1-14-2014)

Sec 17.5.111 Setback Of Buildings From Proposed Streets

The front or side setback for structures abutting on a proposed future street or an existing street needing to be widened, as shown on the major street plan as a future street, shall be measured from the planned street line. For purposes of determining the setback requirement and similar locational standards, said planned street line shall be considered as the property line.

(Ord. No. 4-81-2-5-A)

Sec 17.5.112 Additional Height Allowed For Public Buildings

Public buildings and churches in residential zones may be erected to any height provided the building is set back from required building setback lines a distance of at least one foot for each additional foot of building height above the maximum height otherwise permitted in the zone in which the building is located.

Sec 17.5.113 Location Of Barns

No barn, corral, or coop shall be constructed closer than one hundred feet to any existing dwelling nor shall any corral, pen or coop be constructed or maintained closer than twenty feet to any open waterway that drains into a natural stream. Surface drainage from corrals, pens, or coops shall not be permitted to drain into a waterway that drains into a natural stream.

Sec 17.5.114 Drainage

Surface water from roof tops shall not be allowed to drain onto adjacent lots or streets, except after written agreement between the two parties.

Sec 17.5.115 Fences, Walls And Hedges

- A. Intent. It is the intent of this section to establish minimum standards for the placement, height and opacity of fences in residential zones for the purpose of facilitating safety of pedestrians and motor vehicle users in connection with ingress and egress to private property, driveways and parking areas
- B. Fence placement and height.
 - 1. Fences having a height no greater than forty-two inches may be constructed and maintained in any portion of a residential lot, provided that where all portions of the fence fabric higher than forty-two inches are to be of the chain link or other open mesh type, (not greater than forty percent opacity) and will remain non sight obscuring, the maximum height may be increased to not greater than forty-eight inches.
 - 2. Fences having a height of not greater than six feet (tall fence) may be constructed and maintained in any portion of the tall fence enclosure area of a residential lot, as defined on Figure 17.5.115. The height of a fence shall be measured from the grade upon which it is to be placed. Said fences may be open mesh or sight obscuring.
- C. Fence permit required—Building inspector to approve—Appeals. Before commencing construction of any fence or wall having a height greater than forty-eight inches a plan showing the proposed placement and design of the fence shall be submitted by the lot owner (or any individual or company retained by the lot owner to construct the fence) to the building division. If found to comply with the terms of this section, the building division shall issue a permit for the construction of the fence, except when it is determined by the chief building official that it is impractical to adhere to the provisions of this section in a literal manner, as discussed in the paragraph below. Any applicant aggrieved by a decision of the building division may appeal said decision to the board of adjustments, which shall have the authority to reverse, affirm or modify any decision of the building division.

In the case of a unique or unusual shaped parcel (i.e. triple-frontage lots), or a parcel on which a home's placement makes it difficult to differentiate between the front and rear of the home; and, whereby it is impractical to adhere to the provisions of this section (Section 17.5.115.C) in a literal manner as determined by the chief building inspector, an application shall be presented to the board of adjustments for review and determination of fence placement. Upon review, and with the recommendation of the chief building official, the board of adjustments shall have the authority to make the determination of fence placement.

D. Exceptions to height requirements. Fences, walls and similar structures exceeding six feet in height may be permitted under the following circumstances and conditions.

1. Required by other government regulation. Where the additional height is required by law or other governmental regulation.
2. Required for increased safety and security. Where additional height is needed to provide more adequate security for one of the following:
 - a. Utility facility compound area (i.e., gas regulating stations, electric substations, well sites, etc.), subject to receipt of a building permit.
 - b. Swimming pools and open water impoundment areas, subject to receipt of a building permit.
 - c. Vehicle impoundment yards, self service storage facilities (mini-warehouses) and materials and equipment storage compounds (limited to commercial and industrial zones), subject to the prior approval of a site plan by the planning commission in accordance with the provisions of Section 17.6.101.
3. Containment barriers for tennis courts, sport courts, batting cages, etc. Permanent fence type containment barriers for uses such as tennis courts, sport courts, ball diamond backstops, batting cages etc. may be erected to a height not greater than eighteen feet provided:
 - a. Such containment barrier does not constitute a part of a fence enclosing property.
 - b. All portions of the enclosure shall be located within the rear yard area of the lot.
 - c. The containment barrier shall be set back from the property line of the lot to which it is appurtenant for a distance of not less than ten feet and will not occupy any portion of a public utility easement.
 - d. No portion of the containment barrier shall be located closer than ten feet to the main building to which it is appurtenant.
 - e. The fabric used for the containment barrier shall be of an open mesh type not exceeding 15 percent opacity.
 - f. The placement of the containment barrier shall have been approved by the planning commission in accordance with the provisions of Section 17.6.101.

E. Double-frontage lots. On lots which qualify as double-frontage lots, a tall fence may be used to enclose the rear yard area of the lot, subject to the following:

1. The fence shall not exceed six feet in height; and
2. Placement of the fence shall be in accordance with the following:
 - a. In the location shown on the approved subdivision or development plan, or in the instance that no location is shown on the approved plan, at the property line.
 - b. The sidewalk adjacent to the rear fence shall be not less than five feet in width and conform with the clear vision criteria for corner lots (see Figure 17.5.115).
 - c. Placement of the fence in the location proposed shall not result in the establishment of a hazardous condition to the public or adjacent properties, as determined by the city chief of police or his designated representative.
3. The fence may include gates providing incidental access from the adjacent sidewalk, provided:
 - a. The gate is not intended as a primary access to the dwelling and is designed to swing inward or slide parallel to the alignment of the fence.
 - b. Any gate intended to be used for access by vehicles shall require construction of a curb cut or mountable curb and an increased thickness of sidewalk concrete in accordance with city standard for driveways.

F. General requirements.

1. Fence materials. All fences and walls shall be constructed of substantial material and the design and construction shall be consistent with the quality of dwellings and other improvements within the surrounding area.
2. Barbed wire fences prohibited. It shall be unlawful for any person to erect or cause to be erected or to maintain any barbed wire fence along or adjacent to any public street within a residential or commercial zone.

G. Existing non-compliant fences declared to be legal nonconforming use. Any fence or wall in existence as of the effective date of the ordinance codified in this section, excluding any fences between forty-two inches and six feet high within the thirty-foot front setback area, shall not be considered grandfathered and were still subject to enforcement.

NOTE:

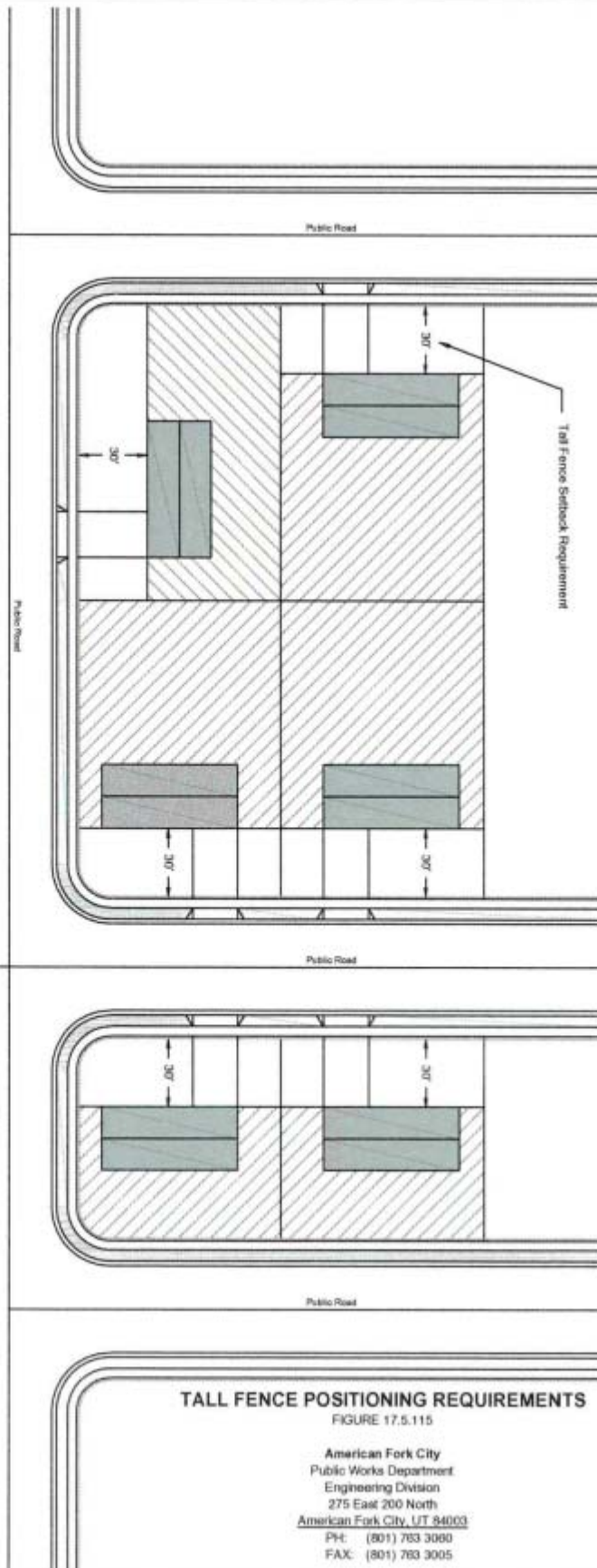
6' fence allowed in side yard of a corner lot provided that:

- Property that adjoins the rear yard of corner lot has no existing driveway within 10' of the property line adjoining the corner lot
- Fence must drop to 3' within sight distance area, as determined by Engineering, if driveway on adjoining lot is less than 10' from the fence
- Fence to be located on property line or 1' off of sidewalk, whichever is greater
- Fence must meet the sight distance standards detailed in the American Fork City Development Code 17.5.110 (fig. 17.5.110-A)

Tall Fence:
Any fence taller than 4 feet, maximum 6 feet, and any opaque fence taller than 40 inches, maximum 6 feet

▨ Tall Fence Enclosure Area

LEGEND



(Ord. No. 2000-10-31; Ord. No. 2011-10-26, pt. I (§ 1), 10-25-2011; Ord. No. 2015-06-37 , pt. I, §§ 1, 2, 6-23-2015; Ord. No. 2016-09-44 , pt. I, § 1, 9-13-2016)

Sec 17.5.116 Pollution Prevention

Any use shall be prohibited which emits or discharges gasses, fumes, or other pollutants into the atmosphere in amounts which exceed the standards as prescribed by the Utah State Air Conservation Board, the board of health, or such appropriate body as may be appointed by the city council. Any use shall also be prohibited which emits or discharges liquids or solid material onto the soil or water in amounts which result in pollutants entering any water or drainage system in amounts exceeding the standards prescribed by the Utah State Water Pollution Control Board or the state board of health.

Sec 17.5.117 Concessions In Public Parks And Playgrounds

Concessions, including but not limited to amusement devices, recreational buildings, and refreshment stands, shall be permitted in a public agency park or playground when approved by the city council.

Sec 17.5.118 Fractional Numbers

Any computation or measurement resulting in a fractional number shall be rounded down to the next smaller whole number, i.e. 23.75 inches would be truncated to twenty-three inches.

Sec 17.5.119 Off-Street Parking

- A. Intent. Regulations relating to off-street parking have been established to increase safety and lessen congestion in the public streets, to provide adequately for parking needs associated with the development of land and increased automobile usage, to set standards for off-street parking according to the amount of traffic generated by each use, and to reduce the on-street storage of vehicles.
- B. Number of spaces, etc. The number of spaces, conditions and standards relating to access, circulation, lighting, landscaping, location, control, and continuity shall be provided in accordance with American Fork City standards as established by resolution by the city council.

Sec 17.5.120 Motor Vehicle Access

- A. Intent. Regulations relating to motor vehicle access have been established to increase safety and to facilitate the movement of vehicles between streets and adjacent property.
- B. Access standards. Access to all lots and parcels of land having frontage on a public street shall be provided in accordance with American Fork City standards as established by resolution by the city council.

Sec 17.5.121 Landscaping

- A. Intent. The purpose of the landscaping standards and requirements shall be to enhance, conserve and stabilize property values by encouraging pleasant and attractive surroundings thereby creating the necessary atmosphere for the orderly development of a pleasant community. These standards seek to further the mission statement of the city: Safeguard the health, safety and welfare of the citizens of American Fork by providing essential services, and opportunities for an enhanced quality of life while honoring its heritage of values, culture and traditions. Landscaping also contributes to the relief of heat, noise, and glare through the proper placement of green plants and trees.

B. Applicability. The provisions of this section shall be included as part of the site plan submittal for all new construction and expansion in all of the following:

1. Multi-family structures in residential zones (R3-7500, R4-7500) including common areas in planned residential development projects.
2. All commercial and planned commercial zones except CC-1 and CC-2.
3. All industrial and planned industrial zones.
4. All large scale developments.
5. All landscape buffer areas when included as part of the development plan for subdivisions and similar development located along collector and arterial class roads.
6. An expansion shall be defined as an increase in the footprint of a building or parking area.

C. Amount and type of landscape required. The amount and type of landscape required shall be as set forth under the following schedule:

Zoning of Proposed Development	Landscape Requirement	Location of Landscaping on Site
RA zones, R2-7500, R1-7500 through R1-20000 zones, R3-7500, R4-7500, PR zones, GC-1, BP-1, PO-1, SC-1, GC-2, PF, M-1	If other than lots zoned for single family or two-family dwelling use: One tree per two thousand five hundred square feet of improved area, with no more than twenty percent of the total being ornamental trees or evergreens. One five-gallon shrub per three hundred square feet of improved area; and where applicable in Section 17.5.121.	Parking lot, street frontage, common areas and buffer areas for subdivisions located along collector and arterial class roads
PI-1	As required in Section 17.5.121.K. and in other sections of 17.5.121 where applicable	Street frontage, parking lots
I-1	As required in Section 17.5.121.K. and in other sections of 17.5.121 where applicable	Street frontage (including perimeter of parking lot along street frontage)

Notes to table:

- Twenty-five percent of the required shrubs may be converted to turf based on one five-gallon shrub per fifty square feet of turf.
- Ten percent of the required shrubs may be converted to perennials and/or ground covers at a ratio of three one-gallon perennials and/or ground covers for one five-gallon shrub.
- Species diversity: The percent of any one type of shrub that can be planted in a development shall be as follows:
 - 10—19 shrubs: Fifty percent.
 - 20—39 shrubs: Thirty-three percent.
 - 40—59 shrubs: Twenty-five percent.
 - 60 or more shrubs: Fifteen percent.
- Species diversity: The percent of any one type of tree that can be planted in a development shall be as follows:
 - 0—5 trees: No limitation.
 - 6—21 trees: No more than fifty percent of one species.
 - 21 or more trees: No more than twenty percent of one species.
- When calculating tree and shrub quantities, any fraction of a shrub or tree or other requirement is rounded up to the next whole number.
- With the approval of the planning department, the number of shrubs may be reduced in exchange for additional trees or tree size at a rate of three shrubs per caliper inch.
- Improved area means the total (gross) lot area being used including the building, parking lot, and storage or display areas.

D. Landscaping to conform with city standard. Landscaping in connection with the development of property shall be provided and maintained in accordance with American Fork City standards as established by resolution by the city council. The provisions as found in Ordinance No. 07-11-63, "Tree Ordinance," as well as the recommended types of trees as found in the document titled, "Street Tree Selection Guide for Parking Strips in American Fork Utah" dated July 2001, are hereby stated as reference and shall be adhered to as part of this Section 17.5.121.

1. Scope of requirement. Where landscaping is required, such landscaping shall comply with the requirements of this code for the specific use and location. The planning commission shall determine to what extent landscaping is feasible and sufficient for the CC-1 and CC-2 zone districts. Landscaping for new developments shall occur in all interior parking areas, along the perimeter of the property, around new and existing structures, and along street frontages, unless otherwise specified herein. All new development and redevelopment must install and maintain landscaping as required by this code.
2. Screening requirements. Where landscape screening is required, said screening shall consist of evergreen shrubs, closely spaced and maintained at substantially the specified height of said required screening. When not otherwise specified, natural screening shall be maintained at a height from four to six feet.
3. Plant quantities. The amount of landscaping is based on gross area of proposed development.

E. Landscape plans and equivalent plants—General standards.

1. Landscape plan required. Where landscaping is required, a landscape plan shall be submitted. Said plan shall consist of a plot plan showing the proposed landscape development, watering system, and use of the property. Said plan shall be submitted to the planning department. The same plan used to show parking layout or other requirements for the issuance of a building permit may be used to show the type and size of plant materials, structures, and other features to be included, provided the features are detailed adequately. The planning department may disapprove of such plans if it is determined that such plans are not adequate or if they are inconsistent with the purposes of this code. However, any dispute with the decision of the planning department relating to said landscape plan may be appealed to the planning commission for their determination.
2. Landscape plans and equivalent plants.
 - a. Landscape plans must identify the species, sizes and quantities of vegetation.
 - b. All landscaping shall be installed as shown on the approved plan.
 - c. An equivalent species may be substituted in the field without prior approval, provided a revised drawing is submitted to the planning department. Plants are "equivalent" if they have the same growth habit and rate, same cover, leafing, shade characteristics and function, have similar water requirements, thrive in the same microclimate, soils and water conditions.
 - d. All other changes to the landscape plan require prior approval from the planning department and/or the planning commission.
 - e. All development plans shall designate required landscaping areas. Subdivision plats shall designate required landscaping areas.

F. Standards and criteria—General standards.

1. Minimum plant sizes. Minimum plant sizes are:

- a. Shade tree, two and one-inch caliper (measured six inches above root ball) at time of planting. At maturity, a shade tree has a height and/or spread of thirty feet or greater. If two and one-inch caliper trees are not available due to seasonal shortages or shortages in desired varieties, the planning commission may approve the installation of smaller trees, provided the proportional difference in caliper inches is compensated for by installing additional trees.
- b. Ornamental tree, one and one-half inch caliper (measured six inches above root ball) at time of planting. At maturity, an ornamental tree has a spread and height between fifteen feet and thirty feet.
- c. Evergreen tree, six feet tall at time of planting.
- d. Deciduous shrub, five-gallon container.
- e. Evergreen shrub, five-gallon container.
- f. Perennials and ground covers, one-gallon container.
- g. Turf mix, native grasses and wild flower mix are the only vegetation that may be planted as seed.

2. Irrigation. All vegetation and landscaped areas must be provided with a permanent irrigation system.

- a. An underground pressurized irrigation system and/or drip system is required for all landscape areas on the property.
- b. Native grasses must have a permanent irrigation source that is zoned separately from high water demand landscapes. Once the grasses are established, irrigation to native grass areas can be reduced to a level that maintains coverage typical of the grass mix and to suppress weed growth.

3. Preservation of significant landscape features. Existing landscape features such as escarpments, large or old trees or stands, heavy vegetative cover, ponds and bluffs shall be identified by the planning department and/or the planning commission as part of the development review process. To the extent the planning department and/or planning commission deems practicable, such features shall be preserved by the final plans and to such extent, count toward landscape and open space area requirements. Features to be preserved shall be protected throughout site development. If a significant live feature which was to be preserved dies or is substantially damaged the developer shall replace it with an equivalent feature as determined by the planning department and/or planning commission. No person shall kill or damage a landscape feature required to be preserved by this section.

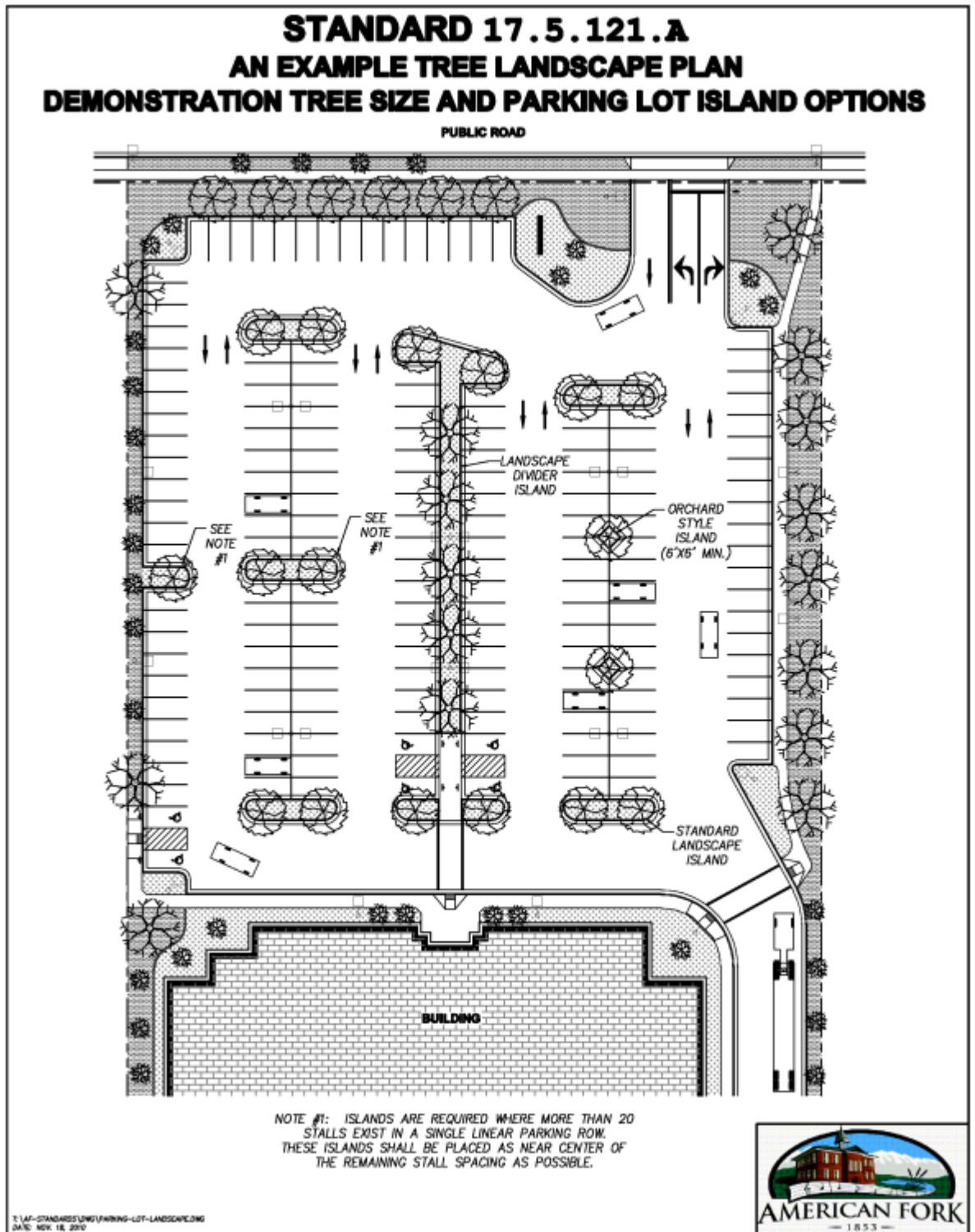
- a. During construction, fencing or similar barriers shall isolate and protect the landscape features to be preserved.
- b. All protection measures shall be clearly identified on the construction and landscape plans.
- c. No vehicles or equipment shall be driven or parked nor shall any materials be piled within the canopy drip line of any tree to be preserved.

4. Protection of landscape areas. All landscape areas shall be protected from vehicles through the use of concrete curbing, large rocks, or other similar obstructions.
5. Utility lines. If the location of utilities conflict with the landscaping provisions, the planning department may approve an equivalent alternative.
 - a. Utility plans must be submitted with landscape plans.
 - b. Trees which will grow to a height of greater than fifteen feet at maturity shall not be planted under electrical lines.
 - c. Ornamental and evergreen trees planted under an electrical line may count towards the total tree requirement.
6. Sight distance. The owner shall maintain all vegetation, fences, walls and berms so that there is no site distance hazard nor road or pedestrian hazard.
7. Trees.
 - a. Trees should not be planted near a light pole if eclipsing of light will occur at maturity. Placing light poles in the parking lot, away from landscape area and between parking bays, helps eliminate this conflict and should be considered.
 - b. Tree canopies may overlap by up to twenty percent of the diameter of the tree at maturity. Tree clustering may be allowed with some species so long as clustering does not adversely affect the mature canopy.
 - c. At planting, tree trunks must be reasonably straight with minimal doglegs.
 - d. Wire baskets, burlap wrappings, rope, twine or any similar shipping materials shall be removed before planting.
 - e. The minimum square footage of planting area for a shade tree is one hundred forty square feet. The planning commission may vary the minimum square footage.
8. Maintenance and restoration. The owners, tenants and occupants for all proposed new and existing uses in the city must:
 - a. Demonstrate that all provisions of this code regarding landscaping have been met prior to the issuance of a certificate of occupancy and/or a business license.
 - b. Maintain landscaping in a healthy, growing, neat and well maintained condition.
 - c. Maintenance includes watering, weeding, pruning, pest control, trash and litter removal, replacement of dead or diseased plant material, reseeding and other reasonable efforts.
 - d. Any plant that dies must be replaced with an equivalent live plant within ninety days of notification or, if during the winter, by the next April 1.
 - e. On his own or based on a citizen complaint, any member of the planning department, planning commission or zone enforcement officer may, without notice and without a warrant, walk on the landscaped portion of the property from time to time to inspect the condition of landscaping.

G. Parking lots—Design standards.

1. Interior landscaping requirement. Landscaping is required in the interior of parking lots to direct traffic, to shade cars and structures, to reduce heat and glare and to screen cars from adjacent properties. (See Figure 17.5.121-A.) The interior of all parking lots shall be landscaped as follows:
 - a. One landscaped island, parallel to parking spaces, is required for each twenty linear parking spaces. In lieu of the standard landscape island, one "orchard style" landscape island may be used for every six linear parking spaces. The orchard style landscape islands shall be evenly spaced between end landscape islands.
 - b. Landscape islands must be at least one hundred forty square feet. The narrowest/smallest dimension of a parking lot island shall be eight feet, measured from back of curb to back of curb.
 - c. Orchard style landscape islands shall be six feet by six feet square minimum.
 - d. One landscaped divider island, parallel to the parking lot drive aisles, designed to prevent diagonal movement across the parking lot, shall be located for every three parking lot drive aisles.
 - e. A landscape island is required at the end of every row of parking spaces, regardless of length or number of spaces.
 - f. Barrier curbing on all sides adjacent to the parking lot surface is required to protect each landscape islands from vehicles.
 - g. A corner area (where it is not feasible to park a vehicle) may be considered an end island for the rows on the perimeter of the parking lot.
 - h. Landscaping of the interior of a parking lot shall include trees, shrubs and landscape boulders.

- i. Pedestrian crossing areas in parking lots shall be constructed of surface pavers, such as brick, stone blocks, interlocking brick pavers, stamped concrete or other materials as may be approved by the city engineer which form a smooth surface but contrast with asphalt.



2. Parking lot perimeter. Landscaping is required around the entire perimeter of a parking lot to assist in the shading of cars, to assist in the abatement of heat and to reduce the amount of glare from glass and metal, and to assist in the screening of cars from adjacent properties. The perimeter of a parking lot is defined as the curb line defining the outer boundaries of the parking lot, including dumpster enclosures, bike racks, or other support facilities that are adjacent to the outer curb. Entry drives between a parking lot and the street, drives connecting two internal parking lots or building entry plazas are not included in the perimeter area. (See Figure 17.5.121-A.)

- a. The minimum dimension allowed for the parking lot perimeter landscape strip is six feet unless adjacent to a public right-of-way where a minimum of fourteen feet is required. The width of a landscape strip can be modified by the planning commission, provided a finding that the intent of this section is met.
- b. Landscaping along the perimeter of parking lots shall include trees, shrubs and landscape boulders.
- c. Parking lots shared by more than one owner shall be landscaped around the perimeter of the combined lots.

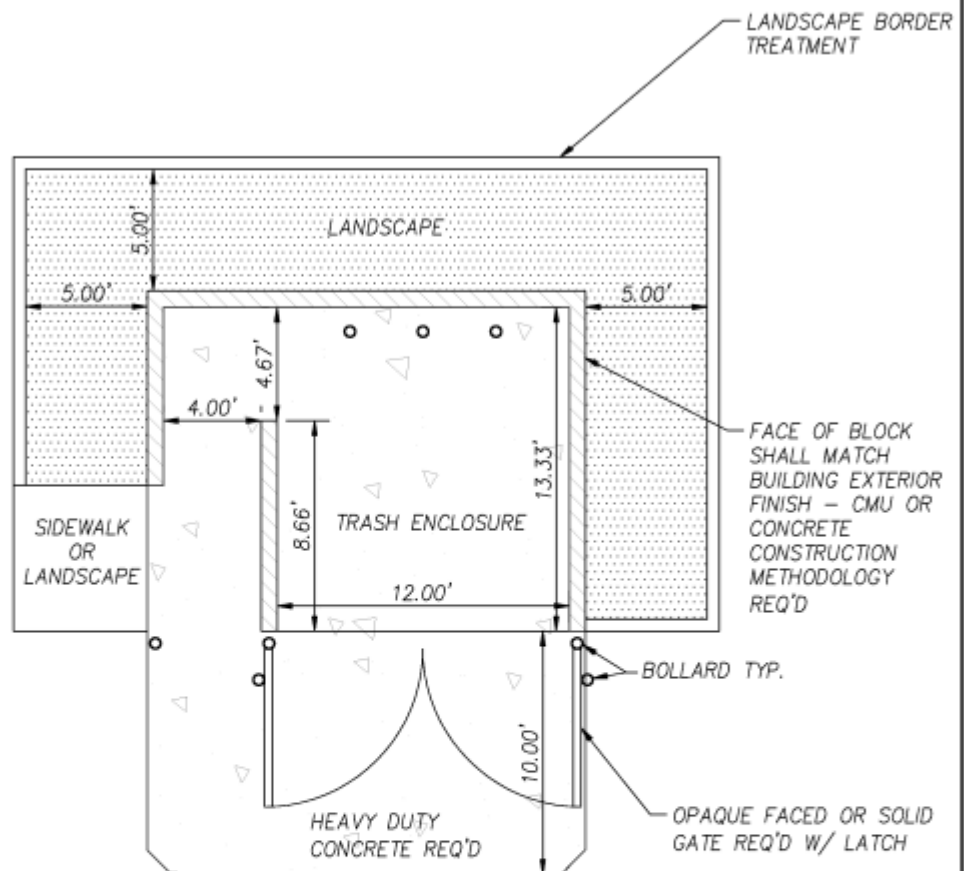
H. Dumpster enclosures—Design standards. Dumpsters and refuse containers for new uses in all zones shall be enclosed in a solid, opaque enclosure constructed of brick, masonry, stucco or wood of at least six feet tall. The design of each dumpster enclosure shall conform to the design standards for dumpster enclosures as set forth on Figure 17.5.121-B. The enclosures shall be of the same material(s) as found on the main structure on site. Landscaping, consisting of trees and shrubs, shall be located along the sides and rear of the enclosure.

I. Street frontage landscape.

1. Street frontages. Within all zones (with the exception of lots zoned for one or two dwellings and the CC-1 and CC-2 zones), the owner shall provide and maintain a minimum fourteen-foot-wide street frontage landscape adjacent to the public right-of-way.
2. A minimum of seventy-five percent of the street frontage landscape shall be covered by plant material at maturity.
3. The planning commission may allow for up to fifty percent of the fourteen-foot-wide street frontage to be turf, or up to one hundred percent turf coverage may be allowed if the parking lot setback from the right-of-way exceeds thirty feet. Low water usage turf is encouraged.

4. Landscaping within the street frontage shall include trees, shrubs and landscape boulders. Street trees shall be provided in the street frontage landscape, including one tree for every forty feet of street frontage. Clustering is allowed provided that it does not adversely affect the mature canopy.

CITY STANDARD - DUMPSTER/ TRASH ENCLOSURE STANDARD 17.5.121.B



NOTES:

1. LANDSCAPE SHALL INCLUDE COMBINATION OF TREES AND SHRUBBERY TO CREATE A LANDSCAPE SCREEN FOR THE ENCLOSURE
2. ENCLOSURE SHALL BE 6' TALL MIN.
3. ENCLOSURE EXTERIOR FINISH SHALL MATCH THE EXTERIOR OF THE BUILDING FOR WHICH IT SUPPORTS.
3. LANDSCAPE DIMENSIONS SHOWN ARE MINIMUMS.
4. ENCLOSURE DIMENSIONS MAY VARY DEPENDING UPON INTENDED USE, AS SUCH, CITY ENGINEER/CITY PLANNER SHALL HAVE THE ABILITY TO REVIEW AND RECOMMEND APPROPRIATE SIZE OF A GIVEN ENCLOSURE FOR A SPECIFIC USE.
5. A VARIANCE FROM THE REQUIREMENT OF AN ENCLOSURE CAN BE GRANTED BY THE LAND USE AUTHORITY FOR A GIVEN ZONE IF IT CAN BE DEMONSTRATED THAT THE USE FOR THE SITE DOES NOT REQUIRE MORE THAN A TRADITIONAL CURB SIDE PICK UP CONTAINER. CURB SIDE CONTAINER MUST BE AVAILABLE IN THAT AREA TO QUALIFY FOR THIS EXCEPTION.

7: \LD-PROJECT-AF-CITY-STANDARDS\DUMPSTER.DWG
DATE: NOV. 18, 2010



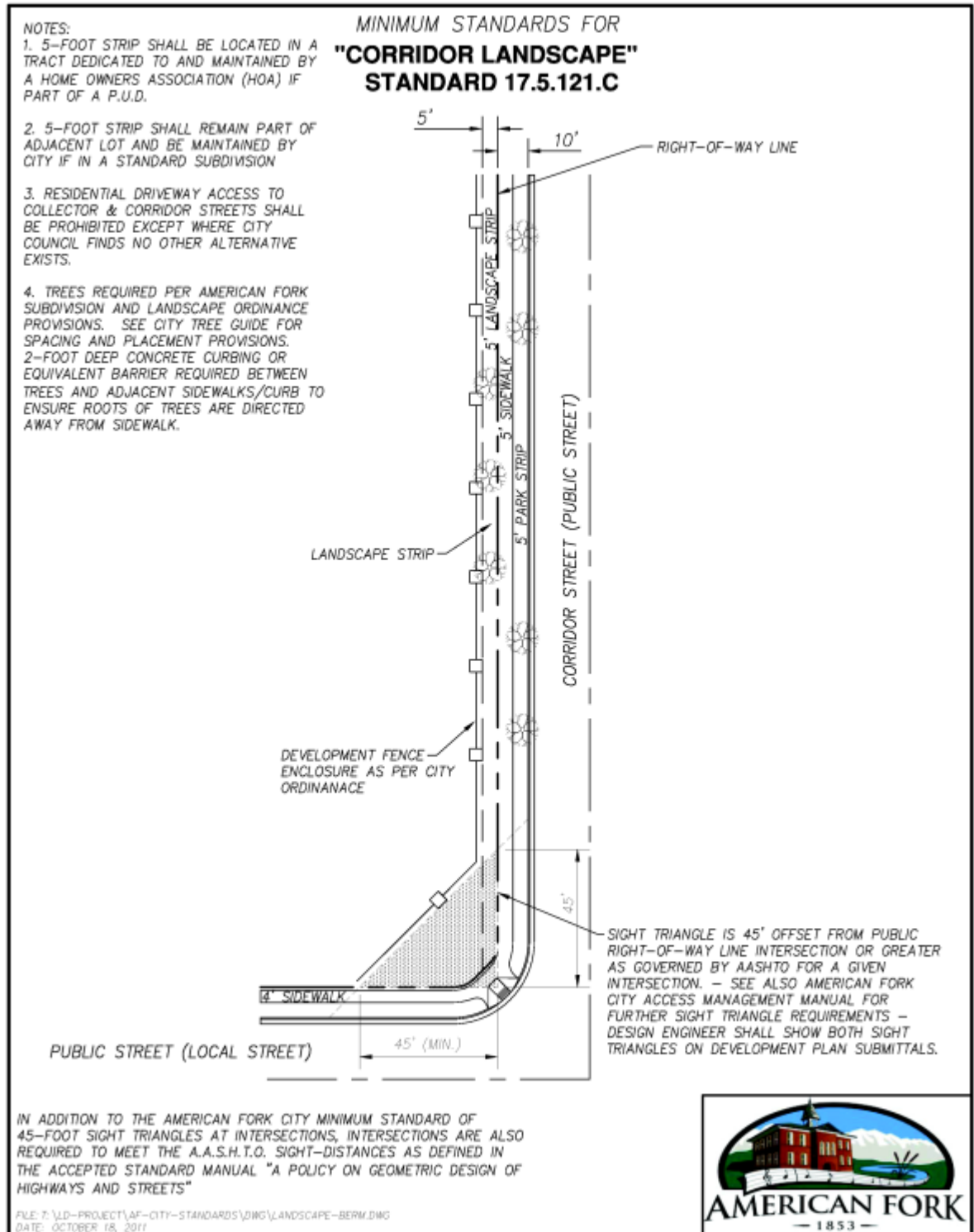
J. Residential subdivision perimeter enclosures.

1. Intent. The planning commission and/or city council may approve (if requested by the applicant) or require (where deemed necessary or required by other sections of this code) perimeter enclosures (fences and/or walls) around all or part of the perimeter of a residential subdivision or planned unit development. Perimeter enclosures shall be designed to meet the following objectives of protecting public health, safety and welfare: screen negative impacts of adjoining land uses, including streets, protect privacy, maintain a consistent or complementary appearance with enclosures in the vicinity, maintain consistent appearance of the subdivision.
2. Required perimeter enclosures. The planning commission and/or city council may require a perimeter enclosure as a condition of the final approval if:
 - a. Use or enjoyment of property within the development or in the vicinity of the development might be impaired without a perimeter enclosure.
 - b. A perimeter enclosure is necessary to maintain a consistent and complementary appearance with existing or proposed perimeter enclosures in the vicinity.
 - c. A perimeter enclosure is necessary to control ingress and egress for the development.
 - d. A perimeter enclosure is necessary to promote the safety of the public or residents in the vicinity.
 - e. A perimeter enclosure is needed to comply with the purpose, objectives or regulations of the subdivision requirements.
3. Specifications. Unless specified otherwise at the time of final approval: a perimeter enclosure includes fences (excluding chain-link), walls or berms, and combinations thereof.
 - a. The height shall be six feet; however, an enclosure constructed on a berm shall not extend more than eight feet above the adjoining sidewalk or crown of road, whichever is lower.
 - b. New enclosures shall be compatible with existing enclosures in the vicinity, if such enclosures meet the requirements of this code.
 - c. A perimeter wall must have a column or other significant architectural feature every thirty feet.

4. Landscape buffer corridors. The following corridors are major points of entry into the city and as such, should include enhanced landscape treatment in order to provide a "sense of arrival" into American Fork. These corridors shall contain a five-foot-wide landscape buffer area between the perimeter enclosure and right-of-way.
- a. 900 West, east side of 900 West from 1120 North to 700 North.
 - b. Mt. Timpanogos Boulevard, both sides from 1300 North to 700 North.
 - c. 100 West, both sides from approximately 700 South to the Boat Harbor.
 - d. 570 West, both sides from 330 South to Shoreline Protection Area.
 - e. Vineyard Connector, both sides of future alignment along residential development.

The landscape buffer area shall remain part of the adjacent lot, if part of a standard subdivision, and maintenance shall be provided by the city, through a special assessment district, or, if part of a planned unit development (PUD), the buffer area shall be located in a separate tract owned and maintained by a home owner's association. Standard 17.5.121.C. illustrates this buffer area. In the landscape buffer, one tree per forty linear feet of perimeter must be provided. Clustering is allowed provided it does not adversely affect the mature canopy.

5. Construction of perimeter enclosures. The perimeter enclosure and any required landscape buffer area shall be installed by the developer.



K. PI-1 zone landscape—Design standards.

1. Parking lot interior landscape. Landscaping for the parking lot interior shall be per Section 17.5.121.G.1., with the following additions:
 - a. Shade trees are to be provided at a rate of one shade tree for every six parking spaces and distributed throughout the landscape islands, perimeter landscape and screens to maximize shade and screening.
 - b. A minimum of one shrub shall be provided for every twenty-five square feet of each landscape island.
2. Parking lot perimeter landscape. Landscaping for the parking lot perimeter shall be per Section 17.5.121.G.2. with the following addition:
 - a. Turf may be allowed for up to fifty of the parking lot perimeter, at the director's discretion. Low water usage turf is encouraged.
 - b. A minimum of seventy-five percent of the parking lot perimeter landscape shall be covered by plant material at maturity.
3. Street frontage landscape. Landscaping for the street frontage shall be per Section 17.5.121.I. with the following additions:
 - a. Vegetation in the sight triangle in the street frontage must not exceed thirty inches in height at maturity.
 - b. One tree for every forty linear feet of street frontage (excluding curb cuts) must be provided, eighty percent of which must be shade trees.
4. Side yard landscape. The first fifty feet of side yard (beginning at the front property line) shall be landscaped.
5. Maintenance. Each owner or the owner's association shall maintain all landscaping.

L. I-1 zone landscape - Design Standards

1. Street frontage landscape (including perimeter of parking lot along street frontage). Landscaping for the street frontage shall be per Section 17.5.121.I. with the following additions:
 - a. Vegetation in the site triangle in the street frontage must not exceed thirty inches in height at maturity.
 - b. One tree for every forty linear feet of street frontage (excluding curb cuts) must be provided, eighty percent of which must be shade trees.
2. Maintenance. Each owner or the owner's association shall maintain all landscaping.
3. Side yard landscape. The first fifty feet of side yard (beginning at the front property line) shall be landscaped unless otherwise approved by the planning department based upon the project's proximity to non-industrial uses and the reasonableness of the request. In the event the planning department approves a variation to the side yard landscape, fencing and/or other forms of screening, approved by the planning department, shall be required to shield neighboring properties from the industrial use on the property.

Sec 17.5.122 Temporary And Seasonal Uses

- A. Intent. The intent of this section is to authorize and set forth regulations governing the establishment and operation of certain transitory or seasonal uses within the city and to ensure their termination at the end of the specified period of time.
- B. Temporary and seasonal uses authorized.
 - 1. In commercial zone districts. The temporary and seasonal uses listed under paragraph C. may be permitted on a temporary basis within all commercial zone districts, subject to compliance with the term of this Section and the approval of a business license therefore by the city fire authority, police authority and zone clearance officer.
 - 2. In other zone districts. The temporary and seasonal uses listed under paragraph C. may be permitted in other than commercial districts upon a finding that the intended use is part of a community sponsored celebration event, when located within a public building or public park, or when approved by the city council, and subject to compliance with the terms of this section and the approval of a business license therefore by the city fire authority, police authority and zone clearance officer.

C. List of temporary and seasonal uses. Said uses may include, but will not be limited to:

1. Temporary uses (not to exceed ten consecutive days).
 - a. Auction establishments.
 - b. Carnivals and circuses.
 - c. Itinerant merchants.
 - d. Movie productions (may be allowed in additional zones and/or for longer time period with approval of the city council).
 - e. Outdoor music festivals.
 - f. Outdoor political rallies.
 - g. Promotional displays and exhibits.
 - h. Bazaars and boutiques.
 - i. Other uses determined by the zone clearance officer to be similar to the above.
2. Seasonal Uses (more than ten consecutive days, not to exceed the time limits shown, or four months, whichever is shorter).
 - a. Christmas tree lots (not to exceed forty-five days).
 - b. Firework sales stands (limited to the period of time as set forth under state law).
 - c. Individual agricultural produce stands and open-air farmers markets for the sale of agricultural produce (not to exceed the length the local outdoor growing season).
 - d. Shaved ice and food stands.
 - e. Spook alleys (not to exceed forty-five days).
 - f. Rock chip repair stands.
 - g. Other uses determined by the zone clearance officer to be similar to the above.

The provisions of this section shall not be interpreted to exclude customary public assemblies or programs held within churches, schools, auditoriums, city parks, city amphitheater or other permanent structure designed to accommodate such gatherings.

D. Application for temporary and seasonal uses. Prior to the establishment of any temporary or seasonal use, an application for a temporary use permit and business license shall be submitted to and approved by the city zone clearance officer. said application shall contain the following information:

1. A description of the proposed use.
2. A description of the property to be used, rented or leased for the temporary use, including all information necessary to accurately portray the property.
3. A copy of the lease agreement with the property owner/ manager of the parcel proposed for placement of the temporary/seasonal use ("host parcel") indicating the right of the applicant to occupy the site.
4. Sufficient information concerning the proposed use to determine the amount of space intended to be occupied, adequacy of setback from the street and primary use, availability of sanitary facilities for employees and patrons (where required), adequacy of parking and vehicular access (availability of adequate rest room facilities in reasonable proximity for employees in accordance with OSHA standards as stated in 29 CFR 1910.141).
5. A detailed site plan, showing the location of the stationary stand and any adjacent area to be occupied by the proposed use. Said plan shall be drawn to scale, including dimensions.
6. No temporary or seasonal use shall have the practical effect of utilizing space or interfering with the access routes or parking areas which are necessary for the proper operation of the primary use.

E. Findings and criteria required for approval. The city zone clearance officer may approve said application subject to the following criteria and findings:

1. The proposed use is listed as a permitted temporary or seasonal use, or in the opinion of the zone clearance officer, is similar to the listed uses.
2. The temporary or seasonal use will be clearly incidental to the primary use and can be accommodated on the site without diminishing the available parking or impacting traffic safety.
3. The proposed temporary or seasonal use will not create excessive traffic hazards, disruption of the circulation pattern for the primary use, or other unsafe conditions in the area, and if traffic control is required, it will be provided at the expense of the applicant.
4. Each host parcel may contain only one temporary or seasonal use, except that the zone clearance officer may approve additional temporary or seasonal uses, subject to a finding that the proposed host parcel has sufficient area, parking and circulation to safely accommodate additional use(s).
5. The proposed use shall occupy the site for a period not to exceed the time period specified under paragraph C. above.
6. The terms of the lease agreement provides for cleanup and restoration of the site to its original condition.
7. Signs will be limited to one temporary, accessory sign, not larger than twenty-four square feet, to be placed in the immediate vicinity of the temporary or seasonal use and outside the safe site distance triangle area (when located on a corner parcel or adjacent to a driveway).
8. Adequate solid waste disposal facilities shall be provided.
9. Adequate restroom facilities for the specific use are provided, as required under paragraph D.4. above.
10. The required application and business license fee shall be paid.
In granting approval, the zone clearance officer may attach additional conditions deemed appropriate to ensure that the use will not pose any detriment to persons or property.

F. Continuing obligation. All temporary and seasonal uses shall be operated in accordance with the terms of this section and any conditions attached pursuant hereto. Upon approval by the zone clearance officer the applicant shall be eligible to acquire a temporary/seasonal use permit to operate. Issuance of the temporary/seasonal use permit shall be conditioned upon continued performance of the conditions of approval and may be refused or revoked upon failure to operate the use in accordance therewith.

G. Appeal. Any applicant for a temporary or seasonal use aggrieved by a refusal to grant a temporary or seasonal use permit or any requirement imposed as a condition of approval may appeal the determination to the city council who shall have the authority to overturn said determination or requirement.

(Ord. No. 2010-02-07; Ord. No. 2011-10-26, pt. I(§ 3), 10-25-2011)

Sec 17.5.123 Home Occupations

A. Intent. The following regulations have been established to provide minimum standards for the establishment and operation of home occupations within the city.

B. Application and approval required. Home occupations may be permitted by the zoning administrator following receipt of an application and subject to the following conditions:

1. Home occupation is listed as a permitted use in the zone.
2. The home occupation is conducted entirely within a dwelling and is carried on in the dwelling only by members of the residing family.
3. The home occupation does not involve the use of any accessory buildings or yard space for storage or activities outside of the dwelling.
4. The home occupation shall contain no facilities for the display of goods. Any sale of goods and services shall constitute a clearly incidental part of the operation of the home occupation.
5. No commercial vehicles are used except one delivery truck which does not exceed three-fourths ton rated capacity.
6. The home occupation is clearly incidental and secondary to the use of the dwelling for dwelling purposes and does not change the character of the building from that of a dwelling.
7. Signs are limited to one non flashing sign not larger in area than two square feet.
8. Not more than the equivalent of twenty-five percent of the ground floor area of the dwelling is devoted to the home occupation.
9. The home occupation shall be registered with the business license agency of the city.
10. Entrance to the home occupation from outside shall be the same entrance normally used by the residing family except when required otherwise by regulation of the state health department or other public agency.
11. The physical appearance, traffic, and other activities in connection with the home occupation are not contrary to the intent of the zone in which the home occupation is located and do not depreciate surrounding values as determined by the zoning administrator.
12. The nature of home occupation shall not require any modification of the residential structure to comply with the provisions of the building, mechanical, electric, plumbing or fire codes, nor be conducted at a level which will require the providing of off-street parking to accommodate the patrons thereof.

C. Conditions may be attached. In order to achieve the objectives of this code and to protect the health, safety and quality of life in the city the zoning administrator may attach reasonable conditions to the granting of a home occupation consistent with the standards hereinabove stated.

D. Continuing obligation—Business license required. All home occupations shall be operated in compliance with the conditions hereinabove set forth and any conditions which may be attached as part of the approval. Upon approval of a home occupation the applicant shall be eligible to acquire a business license to operate. Issuance of the business license shall be conditioned upon continued performance of the conditions of approval and said license shall be refused or revoked upon failure to maintain or operate the home occupation in accordance therewith.

The approval shall be valid for the remainder of the calendar year in which it is first granted. Thereafter beginning January 1 of each succeeding year the approval will be extended for successive one year periods, provided: (1) that the home occupation remains substantially the same as initially approved and (2) that the home occupation has remained active as evidenced by the acquisition of a valid business license for the previous year.

- E. Termination of approval permitted—Procedure. The city may revoke the approval of the home occupation or refuse renewal of the business license upon a determination made by the city council, following notice and hearing on the matter, that the home occupation is not in compliance with the provisions of this section or the conditions attached at the time of approval. The zoning administrator shall have a reasonable right of entry for the purpose of inspection of the premises to determine compliance with the provisions of this section.

Sec 17.5.124 Recreational Vehicles And Mobile Homes Prohibited; Exceptions

It shall be unlawful to place any recreation vehicle on any lot or parcel of land in the area covered by the zoning map and to use the same for human habitation, except when located in a vacation vehicle court or when used as temporary sleeping quarters when located on the same lot as a dwelling for a period of not more than fifteen days in any one calendar year; or, subject to subsection 2 below.

It shall be unlawful to place a mobile home or recreation vehicle on any lot or parcel of land in an area covered by the zoning map and to use the same for human habitation, except in compliance with one or more of the following conditions:

- A. When located in a licensed mobile home park or in a vacation vehicle court.
- B. When placed on a lot on which a main building is being constructed subject to the following:
 - 1. The mobile home or recreation vehicle will be connected to the city's water and sewer system.
 - 2. Assurances will be given to the city in the form of a bond, mortgage, or other consideration in the amount of three hundred dollars as a guarantee that the mobile home will be removed from the premises upon completion of the main building, but no later than one year from the date of the issuance of the permit for the main building.
 - 3. A recreation vehicle must disconnect from the city's water and sewer system upon completion of the main building. Use of the recreation vehicle for human habitation shall be prohibited except as otherwise allowed for temporary sleeping quarters, for a period of not more than fifteen days in any one calendar year.

(Ord. No. 2015-05-31, pt. I, § 1, 5-26-2015)

Sec 17.5.125 Moved Buildings

- A. Intent. Since moved buildings have often been constructed in a time period prior to the adoption of a building code, and are frequently left in an unsafe and unattractive condition, extra precautions shall be taken to insure that the buildings meet the code and that the appearance of the premises is in keeping with buildings in the surrounding area.

- B. Standards and procedures. No permit shall be issued for the moving of any building which has had prior use, from one site within the city to another site within the city or from a site outside of the city to a site, without a pre-inspection being made by the building official prior to moving. The fee for conducting a pre-inspection shall be established by resolution of the city council.
1. Application. The following information shall be filed with the building official at the time the application is made:
 - a. Location and address of the old and new site.
 - b. Plot plan of the new location, also showing adjacent lots on all sides of the property and indicating all structures and improvements on said lots.
 - c. Plans and specifications for the proposed improvements at the new location, including plans for landscaping.
 - d. Photographs of the buildings to be moved.
 2. City council to approve. The application shall then be submitted to the city council for approval.

Sec 17.5.126 Minimum Level Of Improvements Required Prior To Issuance Of Building Permit

- A. Minimum level of improvements policy—Definition. It is hereby declared city policy that each lot or parcel which is or is proposed to be occupied as a dwelling, commercial or industrial project shall be served by a full level of urban improvements (full lot improvements). Said full lot improvements shall consist of and include those improvement required pursuant to Sections 17.8.401 (paved street), 17.8.412 (sewer), 17.8.403 (culinary and PI water), 17.8.304 (curb, gutter and sidewalk), 17.8.411 (piping of irrigation ditches), 17.8.112.C. (storm water drainage facilities), and conveyance of right-of-way area to accommodate placement of improvements where applicable.
- B. For undeveloped parcel. No building permit shall be issued for the construction of a new dwelling or commercial or industrial use or structure which is to be located on an unimproved or partially unimproved lot or parcel unless said lot or parcel shall be: (1) fully improved as defined under paragraph A., or (2) eventual construction of any absent lot improvements is secured through the posting of a performance guarantee as provided for under Chapter 17.9 of this code.

- C. For major improvement on existing developed parcels. No building permit shall be issued for the construction of a major expansion of an existing dwelling or commercial or industrial use or structure which is located on an unimproved or partially unimproved lot or parcel unless said lot or parcel shall be: (1) served by full lot improvements as defined under paragraph A., or (2) eventual construction of any absent improvements is secured through the posting of a performance guarantee as provided for under Chapter 17.9 of this code. For purposes of application of this provision, a major expansion shall be deemed to include one or more of the following:
1. The addition of a additional story to the existing structure which increases the habitable area of the structure in an amount greater than twenty-five percent of the main floor area. Provided, that this provision shall not be applicable in the instance of an interior finish permit for a pre-existing residential basement.
 2. The construction of improvements to the existing primary structure and /or addition or improvement of accessory buildings wherein the estimated cost of the proposed improvements is more than five times the estimated cost of the required full lot improvements required under paragraph A.
 3. The proposed activity on site constitutes a change in use or is sufficient in scope to require submission and approval of a site plan by the planning commission.
- D. City to provide elevations and grades, where required. Where the terms of this section require the construction of lot improvements which require grades and elevations, the city engineer shall approve such grades and elevations based upon a properly prepared and submitted plan and profile and/or utility drawings prior to commencement of any construction. The city engineer may, at his discretion, provide curb grading designs for residential lots required to add curb under the terms of this section.

(Ord. No. 2009-01-02, 1-13-2009; Ord. No. 2010-08-19, § 1, 8-10-2010)

Sec 17.5.127 Water Rights To Be Conveyed As Condition Of Building Permit

No building permit shall be issued for the construction of a dwelling or other habitable structure without first conveying to the city water rights, in an amount sufficient to meet the anticipated demand for the proposed use, as determined in accordance with the provisions of Section 17.1.400 of this code. Any water rights previously conveyed as part of an annexation or project development approval shall be considered as a credit toward satisfying the conveyance requirements.

(Ord. No. 03-5-12)

Sec 17.5.128 Signs And Advertising Structures

The purpose of this section is to provide standards and requirements relating to the location and design of accessory signs and similar structures.

A. Permitted signs in all zone districts. With permission of the property owner, the following accessory signs shall be permitted in all zones; provided, that no sign shall be positioned in such a manner as to result in the creation of an unsafe visual clearance at any intersection or driveway location.

1. Signs not requiring a permit. The following signs shall be permitted without the necessity of requiring a permit:

- a. Real estate sales signs. One sign per street frontage advertising the sale, rental, or lease of the premises, provided that such signs shall not exceed six square feet in residential zones or eight square feet in other zones.
- b. Political signs. Signs for the purpose of promoting the candidacy of any person or persons seeking public office or measures on election ballots, provided that such signs shall be removed within seven days following the election.
- c. Produce signs. One accessory sign announcing the sale of locally produced agricultural products, provided that such signs shall be removed at the end of the local season for said produce.
- d. Unlighted identification nameplates. Accessory name plates for professional persons or home occupations, which shall not exceed two square feet.
- e. Governmental Signs. Signs erected by a governmental unit for regulatory or informational purposes, such as traffic signs, street signs, and public notices.
- f. Public signs. Signs of a non-advertising nature intended to identify a condition or provide information to the public, such as public utility information signs, safety and danger signs, "no trespass" signs, and entrance and exit signs, provided no sign shall exceed two square feet in area.

2. Signs requiring a permit. The following temporary and permanent accessory signs shall be permitted in all zones upon the acquisition of a permit:

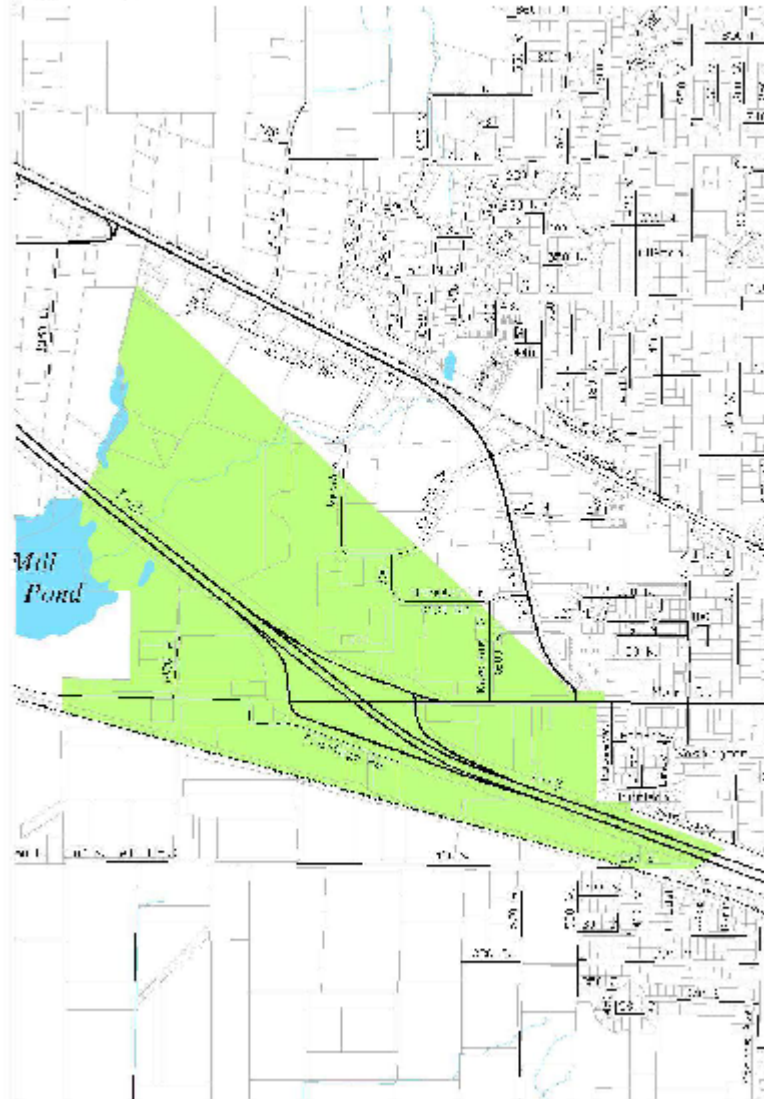
- a. Building project identification signs. One sign per street frontage of a building which is under construction or structural alteration or repair, announcing the character of the building enterprise or the purpose for which the building is intended, including names of architects, engineers, contractors, developers, financiers, and others, provided the area of such sign shall not exceed sixteen square feet in residential zones or thirty-two square feet in other zones, and provided the sign shall be removed upon completion of construction.
- b. Subdivision project identification. One sign per street entrance to the subdivision located on the property to be subdivided, provided such sign shall not exceed thirty-two square feet in area. Such a sign may not be erected until the subdivision has received final approval by the appropriate city officials and may be displayed for a period of one year from the date of such approval, or until all lots are sold, whichever is less.
- c. Development project identification signs. A sign denoting the name of any apartment structure containing five or more units, or the name of any residential, commercial or industrial complex, provided such sign shall not exceed twelve square feet in area.
- d. Directional and public services sign. Signs which identify or provide direction to scenic or historic areas or points of interest, public buildings, sports facilities, etc., or which convey community service information; provided, that no such sign shall have a sign face exceeding twenty-four square feet, except when approved by the city council.
- e. Institutional identification signs. One sign, with or without a changeable text bulletin board, or electronic display sign, located on the premises and denoting the name of the public building, school, or charitable or religious institution; provided, that such sign shall contain a sign face area of not more than twenty-four square feet. Any electronic display sign at an institutional location within any residential zone shall be operated solely between the hours of 7:00 a.m. to 10:00 p.m. after which the sign shall automatically shut off.
- f. Community entrance signs. Monument signs erected adjacent to an arterial or collector class street, at or near the municipal boundary of the City, for the purpose of providing notice of entrance to or exit from American Fork City. Each sign shall include the name of the city and may include a message of welcome. The design and placement of each sign shall conform with the city standards for monument signs.

3. Public Property. No signs for the purpose of advertisement, political promotion or announcement shall be permitted in the public right-of-way or on public property.

- B. Establishment of sign overlay zones—Zone boundaries established. To more adequately facilitate the placement and regulation of accessory signs, there is hereby established the following sign location overlay zones.
1. I-15 corridor sign location zone. The boundaries of the I-15 corridor sign location overlay zone shall be as set forth in Maps 17.5.128-1 and 17.5.128-2.
 2. General commercial and industrial sign location zones. The boundaries of the general commercial and industrial sign location overlay zones shall be coterminous with the boundaries of any CC-1 and CC-2 central commercial zone, GC-1 and GC-2 general commercial zone, SC-1 shopping center zone, or I-1 industrial zone, except for those portions of such zones as are within the boundaries of the I-15 corridor sign location overlay zone.
 3. Downtown a-frame overlay zone. The boundaries of the downtown a-frame overlay zone shall be as set forth on Map 17.5.128-3.

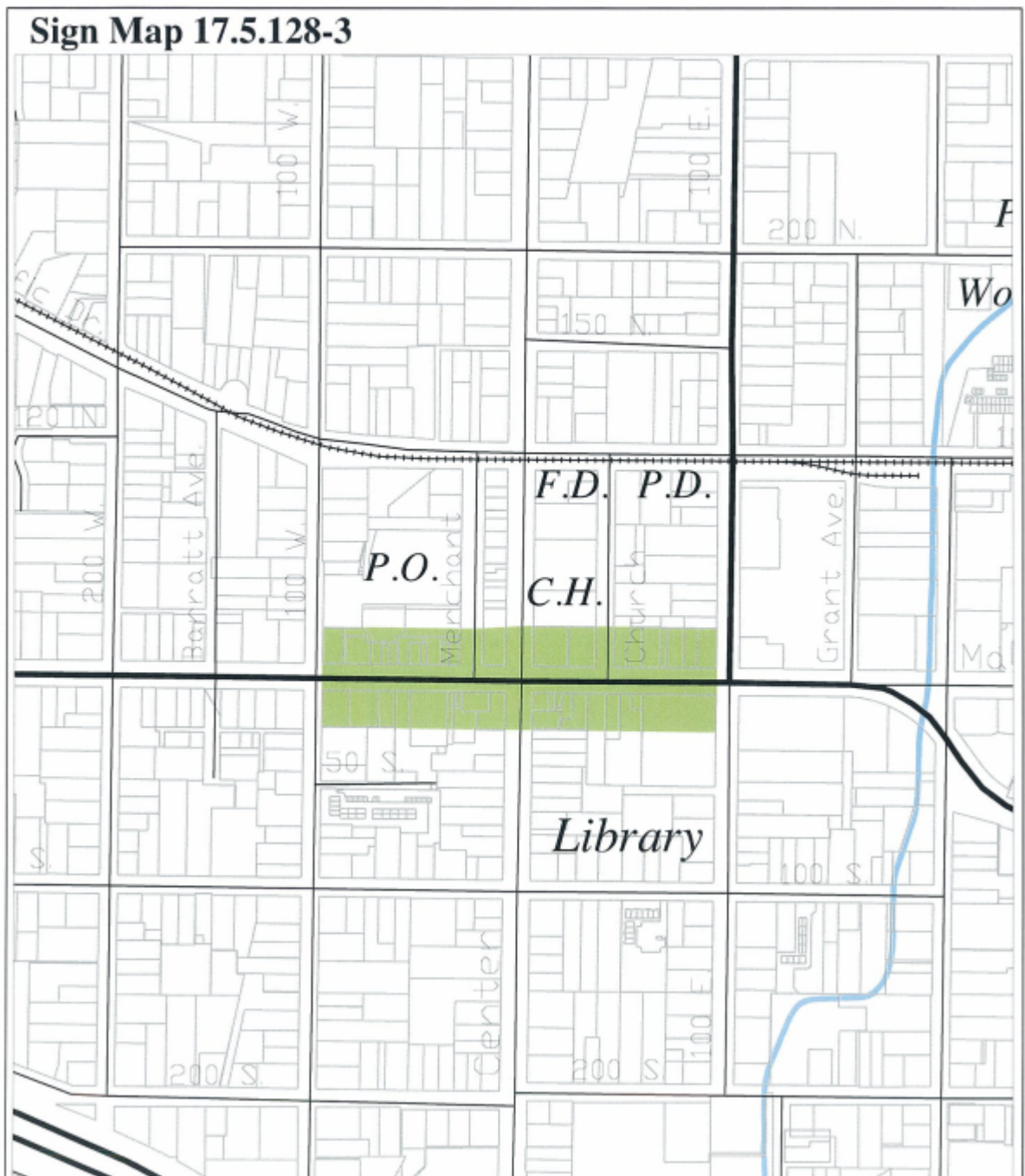
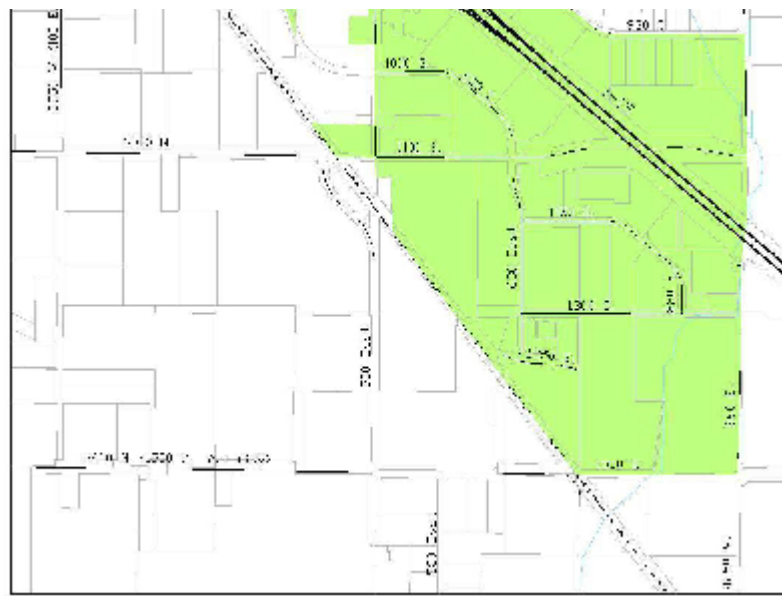
- C. Requirements regarding accessory signs within the I-15 corridor sign location zone. In addition to the signs permitted under paragraph A of this section, the following accessory signs shall be permitted in the commercial and industrial zones located within the boundaries of the I-15 Corridor Sign Location Zone, subject to the conditions specified herein and upon the acquisition of a sign permit.

Sign Map 17.5.128-1



Sign Map 17.5.128-2







1. Facia and canopy signs. Accessory facia and canopy signs identifying and advertising the names of the business, the products sold, trade names and/or the business or activity conducted, subject to the following:
 - a. There shall be not more than two signs per building street frontage. Where a building fronts on more than one street, each street shall be considered a separate frontage.
 - b. Where a building contains more than one owner or tenant (e.g. a strip mall), the portion applicable to each owner/tenant shall be considered as a separate building street frontage.
 - c. The maximum sign face area of all facia and canopy sign(s) shall be determined by the size of the building face, or that portion of the building face occupied by an owner/tenant (in the instance of a multi-tenant building), in accordance with the provisions of Chart 17.5.128-A.
 - d. Each sign shall be painted upon or attached to the wall of the building most nearly parallel to the applicable fronting street. No portion of the sign shall project more than fifteen inches from the vertical face of the building to which it is attached.
 - e. The entire sign face area shall be located entirely within limits of the building wall face area, except that up to twenty percent of the sign face area may project above the roof line of the building, but not greater than fifteen feet above the roof line of the building to which it is attached.
2. Free-standing monument signs. Permanent accessory, free-standing monument signs identifying and advertising the name of the business, the products sold, trade names and/or the business activity conducted, subject to the following:
 - a. There shall be not more than one sign per street frontage for each building.
 - b. The sign shall have a maximum of two sign faces, a sign face area of not more than sixty square feet, and be designed and constructed in accordance with the sign design standards as adopted by the city (Chart 17.5.128-D).
 - c. No free-standing monument sign shall be placed or constructed in such a manner as to produce an unsafe visual clearance at any intersection or driveway location.
3. Incidental directional signs. Permanent signs providing instruction (entrance, exit, etc.) when approved by the city as part of a site plan, or upon the acquisition of a sign permit if proposed for addition after initial site plan approval.

4. Project identification signs. In addition to the above permitted signs, a planned commercial or industrial project shall be entitled to not more than two free-standing project identification signs, subject to the following:

- a. The commercial or industrial project to which the project identification sign applies shall contain three or more separate users or tenants and shall qualify and be approved as a planned commercial or industrial development project in accordance with the applicable provisions of Section 17.7.601 or 17.7.701.
- b. The project area shall contain not less than twenty-five contiguous acres and shall have not less than five hundred continuous feet abutting upon the right-of-way of I-15 Interstate Highway.
- c. The sign shall have a maximum of two sign faces, each with a maximum sign face area of not more than one thousand four hundred square feet per side.
- d. The sign shall include a notation identifying the name of the project. The sign may include an electronic display sign subject to the provisions as found in Section 17.12.219.6.e of the Development Code, but any such electronic display shall not exceed seventy percent of each allowable sign face area.
- e. The sign shall be located within the project area and not further than 45 feet from the closest adjacent right-of-way line of I-15 ("reference right-of-way"). The sign shall have a maximum height of eighty-five feet as measured from the top of the closest travel lane within the reference right-of-way.
- f. Any proposed project identification sign shall be approved by the planning commission.
- g. The sign shall not be located closer than seven hundred fifty feet along the same side of the right-of-way from any other existing or approved project identification sign or any non-accessory sign located within the boundaries of the same project that has been approved in accordance with the provisions of Section 17.6.115.
- h. The documentation for the planned commercial or industrial project shall provide that the sign constitutes a common amenity for the entire project area and that any tenant or occupant of a premises within the project area shall be eligible to advertise their business on the project identification sign under the terms and conditions as established by the project developer or owner.

5. Free-standing pylon signs. Permanent, accessory, free-standing pylon signs identifying and advertising the name of the business, the products sold, trade names and/or the business activity conducted may be erected upon the premises occupied by the business, subject to the following:

- a. The premises upon which the sign is to be erected shall contain not less than five and one-half contiguous acres and shall have not less than five hundred continuous feet abutting upon the right-of-way of the I-15 Interstate Highway.
- b. The premises upon which the sign is to be erected shall not be included in any project for which a project identification sign has been approved.
- c. The maximum height of any pylon sign shall be thirty-five feet as measured from the elevation of the closest freeway travel lane or the top of any intervening opaque freeway center barrier which obstructs the line-of-sight between the sign and occupants of vehicles as measured at a point adjacent to and at a right angle to the sign, whichever is greater.
- d. Each sign shall have a maximum of two sign faces. The maximum area of each sign face shall be determined by the length of the freeway frontage along which the sign is to be placed and the number of separate establishments located within the project area entitled to be identified on the sign face, in accordance with the provisions of Chart 17.5.128-C. The sign may include an electronic display, but any such electronic display shall not exceed fifty percent of each allowable sign face area and shall be subject to the provisions as found in Section 17.12.219.6.e of the development code.
- e. No free-standing monument or pylon sign shall be placed or constructed in such a manner as to produce an unsafe visual clearance at any intersection or driveway location.
- f. No portion of any sign shall project into the air space above a public right-of-way.
- g. In the event that the project area contains more than one commercial establishment, the request for sign approval shall include provisions identifying which establishments within the project area are entitled to be identified on the sign face (whether only one or all establishments) and how such provisions are to be enforced. The request shall also include a detailed sign design.

D. Requirements within the general commercial and industrial sign location overlay zone. In addition to the signs permitted under Subsection A. of this section, the following accessory signs shall be permitted in the general commercial and industrial sign location overlay zone, subject to the conditions specified and the prior acquisition of a permit.

1. Facia and canopy signs. Accessory facia and canopy signs identifying and advertising the names of the business, the products sold, trade names and/or the business or activity conducted, subject to the following:

- a. There shall be not more than two signs per building street frontage. Where a building fronts on more than one street, each street shall be considered a separate frontage.
- b. Where a building contains more than one owner or tenant (e.g. strip mall), the portion applicable to each owner/tenant shall be considered as a separate building street frontage.
- c. The maximum sign face area of all facia and canopy sign(s) shall be determined by the size of the building face, or that portion of the building face occupied by an owner/tenant (in the instance of a multi-tenant building), in accordance with the provisions of Chart 17.5.128-A.
- d. Each sign shall be painted upon or attached to the wall of the building most nearly parallel to the applicable fronting street. No portion of the sign shall project more than fifteen inches from the vertical face of the building to which it is attached.
- e. The sign shall not extend above the roof line of the structure to which it is attached.

2. Projecting signs. Accessory projecting signs identifying and advertising the name of the business, the products sold, trade names and/or the business or activity conducted subject to the following:

- a. There shall be not more than one projecting sign for each owner/tenant. Each sign shall be attached to the building face adjacent to the portion of the building face occupied by the owner/tenant to which it applies.
- b. The sign shall not extend above the wall to which it is attached.
- c. No projecting sign shall exceed thirty square feet in area. Also, where the owner/tenant utilizes a facia or canopy sign, the combined total of the projecting sign and facia or canopy sign shall be not greater than the maximum area allowed for facia or canopy signs in accordance with the provisions of Chart 17.5.128-A.
- d. No such sign shall be placed above or project into the air space above a public right-of-way.
- e. The sign shall have a minimum clearance of twelve feet above the ground and fourteen feet above a driveway, alley or other vehicular access.

3. Accessory free-standing pylon sign. A permanent, accessory, free-standing pylon sign identifying and advertising the name of the business, the products sold, trade names and/or the business activity conducted may be erected upon the premises occupied by the business, subject to the following:
 - a. The sign shall be located upon the same parcel as the structure containing the business. The parcel shall abut upon a public street adjacent to the proposed location of the sign. The length of the abutting side parcel to which the sign is appurtenant shall be not less than one hundred fifty lineal feet; except that, the placement of a pylon sign on a parcel having an abutting side less than one hundred fifty lineal feet may occur upon the following findings: the substandard abutting side has not been created for the primary purpose of establishing an entitlement to an additional pylon sign, the parcel includes adequate width for vehicular access to the business activity and the sign can be located without establishing a safety hazard.
 - b. Each separate parcel shall include not more than one free-standing pylon sign.
 - c. The maximum height of any pylon sign shall be thirty-five feet above the level of the closest public street.
 - d. Each pylon sign shall have a maximum of two sign faces. The maximum area of each sign face shall be determined by the length of the abutting lot boundary adjacent to the street closest to the proposed location of the sign, in accordance with the provisions of Chart 17.5.128-B.
 - e. No portion of any sign shall project into the air space above a public right-of-way.
 - f. No free-standing pylon sign shall be placed or constructed in such a manner as to produce an unsafe visual clearance at any intersection or driveway location.
4. Accessory free-standing monument sign(s). Permanent, accessory, free-standing monument sign(s) identifying and advertising the name of the business, the products sold, trade names and/or the business activity conducted may be erected upon the premises occupied by the business, subject to the following:
 - a. Each free-standing monument sign shall be separated not less than one hundred feet from any other free-standing monument sign or any approved pylon sign, common project sign or project identification sign on the same or an adjacent parcel, as measured along the boundary of the parcel.
 - b. Each free-standing monument sign shall have a maximum of two sign faces. Each face shall have a maximum sign face area of not more than sixty square feet and shall be designed and constructed in accordance with Chart 17.5.128-D.
 - c. No free-standing monument sign shall be placed or constructed in such a manner as to produce an unsafe visual clearance at any intersection or driveway location.
 - d. A free-standing monument sign may be substituted for the free-standing pylon sign Authorized pursuant to subsection 3. above.

5. Accessory common project signs for multi-tenant projects authorized. Where a project area contains more than four acres and includes five or more separate business establishments, whether located on individual lots or a common lot, the city, at the request of the developer, may allow the use of a common project sign(s) in lieu of independent pylon and/or monument signs (as authorized under subsections 3. and 4. above). Where a developer proposes the use of the common project sign option, such sign shall conform with the following:

- a. The project area for which a common project sign is proposed shall meet the criteria for qualification, set forth above, and shall be approved as a planned shopping center or planned commercial development project in accordance with the applicable provisions of Section 17.7.602 or Section 17.6.601.
- b. A project area shall be permitted to contain one free-standing common project sign. Said sign shall be located adjacent to the project area boundary which abuts a collector or arterial class street (as shown on the city's major street plan), in the vicinity of the project entrance and in the location shown on the approved project site plan.
- c. Where the project area abuts upon two or more collector or arterial class roads (as shown on the city's major street plan), for a distance of not less than three hundred feet along each road, the city may approve an additional free-standing common project sign for each such additional frontage. Said additional sign(s) shall be located adjacent to the project area boundary which abuts the additional collector or arterial street, but not less than five hundred lineal feet from any other common project sign.
- d. The maximum height of any common project sign shall be thirty-five feet above the level of the adjacent street.
- e. Each common project sign shall have a maximum of two sign faces. The maximum area of each sign face shall be determined by the length of the abutting lot boundary adjacent to the street closest to the proposed location of each sign, in accordance with the provisions of Chart 17.5.128-B. The sign may include an electronic display, but any such electronic display shall not exceed fifty percent of each allowable sign face area and shall be subject to the provisions as found in Section 17.12.219.6.e of the development code.
- f. The sign face shall include a notation identifying the name of the project and may include a registry identifying the owners/tenants of businesses within the project. Independent free-standing pylon or monument signs identifying a specific owner/tenant within the project shall be prohibited.
- g. No portion of any common project sign shall project into the air space above a public right-of-way.
- h. No common project sign shall be placed or constructed in such a manner as to produce an unsafe visual clearance at any intersection or driveway location.

6. Project identification signs for major commercial projects authorized. The provisions of this paragraph shall be applicable to major commercial projects as defined in this code. In addition to other signs, a commercial development project which qualifies as a major commercial project shall be entitled to one or more project identification signs, subject to the following:

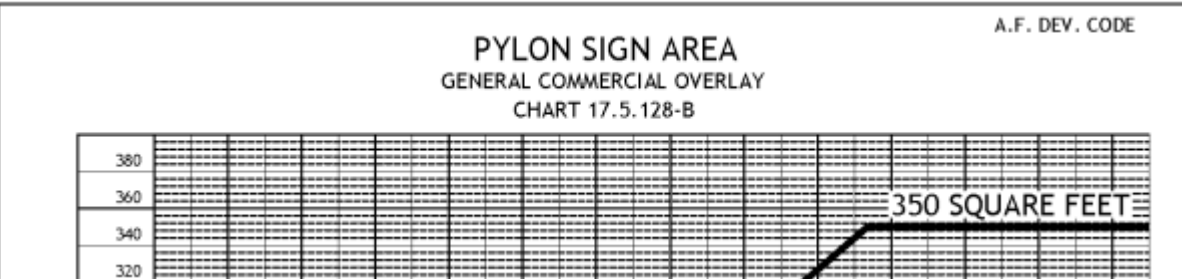
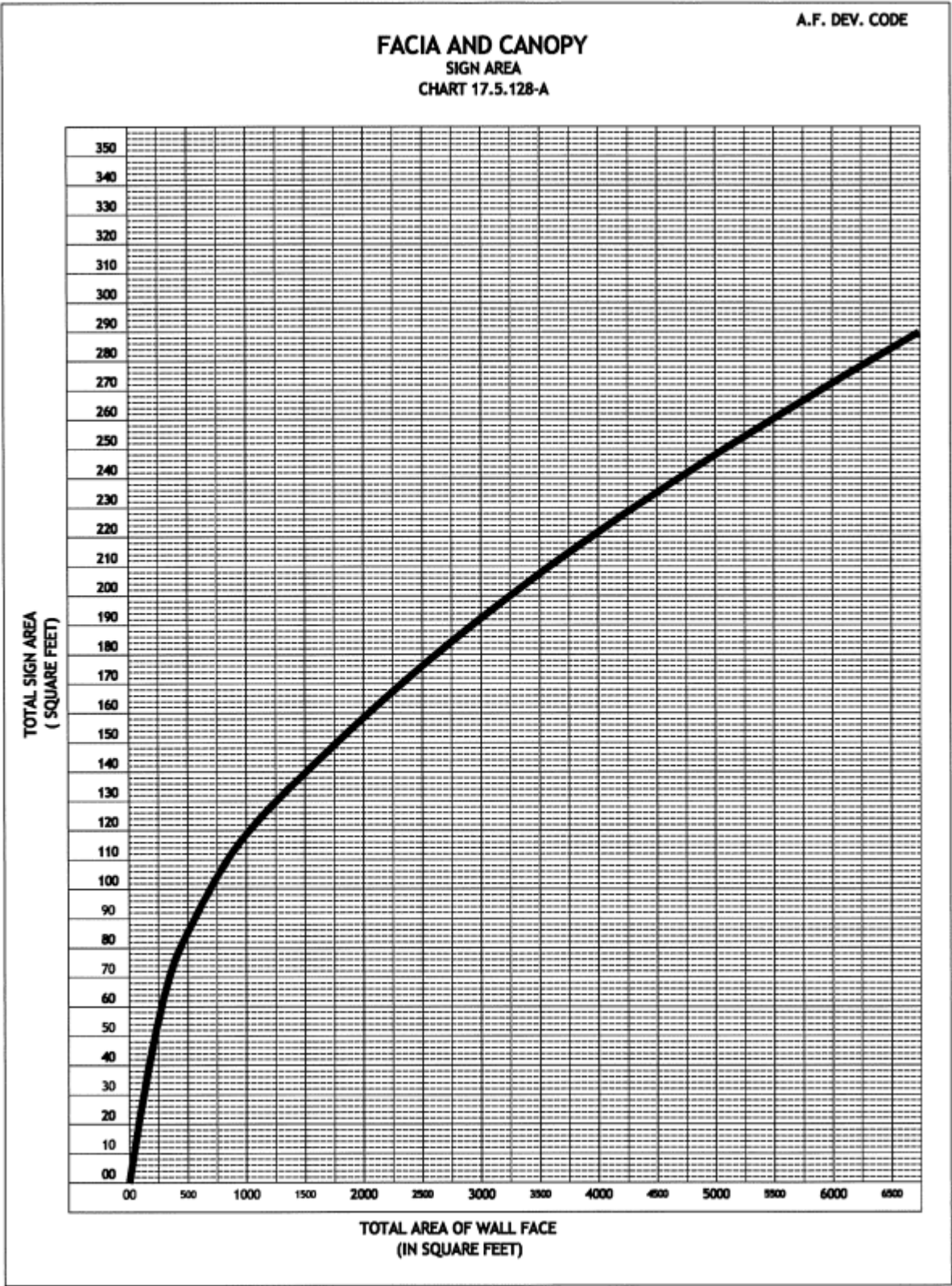
- a. Each project identification sign shall be located at the perimeter of the project area, unless approval is granted for interior project identification signage, subject to subsection e. below, located adjacent to the outer boundary of the project area abutting a collector or arterial class street (as shown on the city's major street plan), in the vicinity of the project entrance and at the location shown on the approved project site plan.
- b. Where the outer boundary of the project area abuts upon a collector or arterial class street for a continuous distance of more than one thousand lineal feet, an additional project identification sign shall be permitted for each additional one thousand lineal feet. For purposes of compliance with this paragraph, a project area boundary intersected by public or private streets shall be considered as a continuous boundary. For purposes of determining length of the continuous boundary, any portion of the segment occupied by intersecting public and private streets shall be included.
- c. Each project identification sign shall be separated a distance of not less than four hundred seventy-five feet from any other project identification sign or pylon sign located on the same side of the street within the project.
- d. The sign shall have a maximum of two sign faces, each with a maximum sign face area of not more than three hundred fifty square feet per side. The maximum height of the sign shall be thirty-five feet above the adjacent ground level. The sign may include an electronic display, but any such electronic display shall not exceed fifty percent of each allowable sign face area and shall be subject to the provisions as found in Section 17.12.219.e of the development code.
- e. Where a project plan proposes the use of a project identification signs, all sign age for individual establishments or multi-tenant buildings within the project area, whether located on separately described parcels or common property, shall consist only of monument signs conforming to the provisions of subsection 4. above. No other individual pylon signs or common project signs shall be permitted within the boundaries of the project area; unless approval is granted by the planning commission, after review of a site plan illustrating where placement is proposed.
- f. Each sign face shall include a notation identifying the name of the major commercial project, which shall occupy not less than fifteen percent of the total sign face area, and may include a registry identifying the name of any commercial establishment located within the project area.
- g. No project identification sign shall project into the air space above a public right-of-way.
- h. No project identification sign shall be placed or constructed in such a manner as to produce an unsafe visual clearance at any intersection or driveway or to project into the air space above a public right-of-way.

- i. The documentation for the major commercial project shall provide that the project identification sign constitutes a common amenity of the project. The documentation shall include provisions establishing ownership of the project identification sign as a common amenity and, in the instance where the sign is situated on property owned by a party other than the owner of the sign, the right to construct and maintain the sign.
 - j. For purposes of compliance with the provisions of this code, any project identification sign shall, when approved pursuant to the provisions of this paragraph, be considered an approved non-accessory sign.
- E. Regulations for A-frame signs within the downtown A-frame overlay zone. In addition to the signs permitted under subsections A. and D. of this section, A-frame signs shall be permitted within the downtown A-frame overlay zone, subject to the conditions as specified below.
 1. A-Frame signs shall be placed solely within that portion of the sidewalk designated as the "furnishing zone" (see Exhibit 17.5.128-F).
 2. A-Frame signs shall have a sign face measuring no larger than twenty-four inches × thirty-six inches, with a maximum sign height of three feet six inches.
 3. A-Frame signs shall consist of durable, weather resistant material such as wood, steel, aluminum and PVC. Cardboard, paper, fabric and other non-rigid materials are prohibited.
 4. A-Frame signs shall only be placed outside during regular business hours and shall be brought inside upon close of business. A-frame signs shall not be left out overnight.
 5. Each business fronting Main Street within the downtown A-frame overlay zone is entitled to one A-frame sign.
 6. A-Frame signs shall be secured so they do not move from the location where they were placed during the day.
- F. Signage plan required. Any commercial or industrial development project which requires approval of a site plan by the planning commission, pursuant to the terms of the city's Development Code, shall include a signage plan, showing the intended location of all signs and the general design and maximum size of each proposed sign, as part of the materials required to be submitted for review by the planning commission; notwithstanding, however, any subsequent request for signage, after initial site plan approval, shall require the acquisition of a sign permit pursuant to an administrative review by staff.

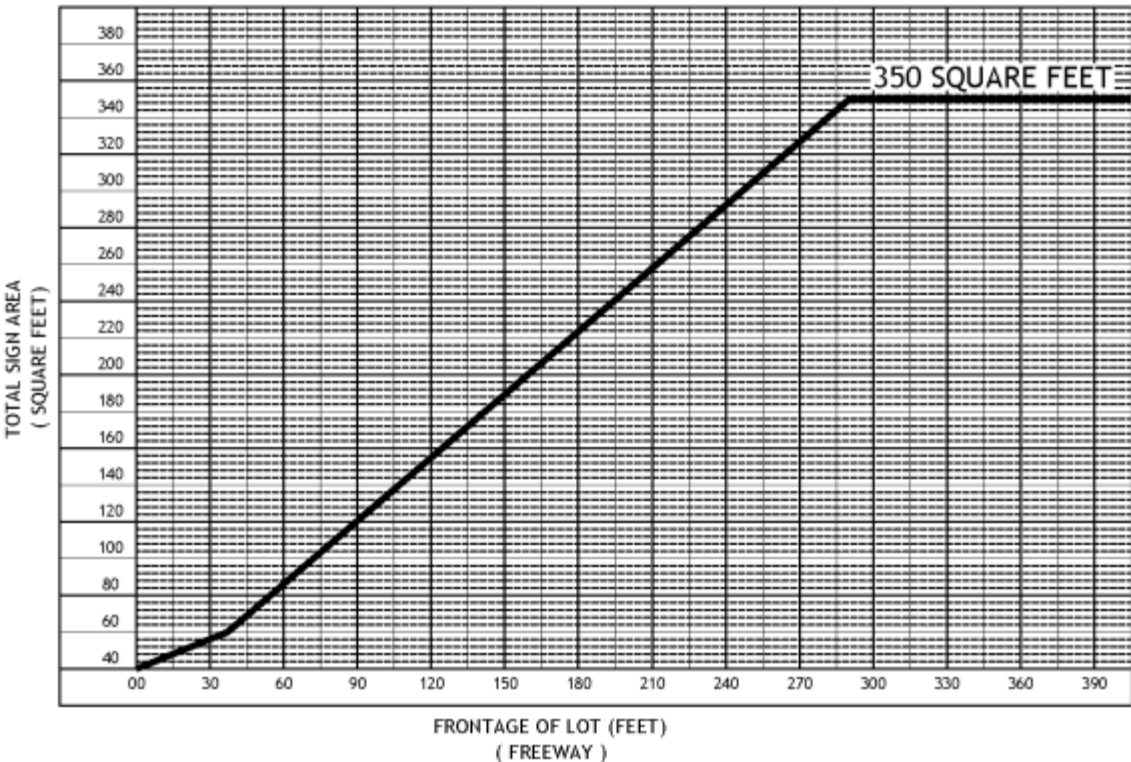
G. Prohibited signs. Except as specified herein, the following signs shall be prohibited within the city.

1. Non-accessory signs—Billboards. Non-accessory signs shall not be permitted within the city except when located and approved in accordance with the applicable provisions of Section 17.6.115, 17.5.128.D.6., or other provision of this code which specifically authorizes non-accessory signs.
2. Temporary signs. Except as may be specifically authorized by other provisions of the development code, temporary signs shall not be permitted.
3. Hazardous signs. Sign which purports to be or resembles an official traffic sign or signal or which is constructed or maintained in such a manner as to conflict or be confused with an official traffic sign or signal.
4. Banner signs. Permanent banner signs shall be prohibited, except that banner signs may be permitted on a temporary basis in the instance of a new or relocated business establishment until such time as the permanent signs have been installed, but not to exceed ninety days.
5. Portable Signs. Portable signs shall be prohibited, except that portable signs may be permitted on a temporary basis in the instance of a new or relocated business establishment until such time as the permanent signs have been installed, but not to exceed ninety (90) days.
6. Handbill signs.
 - a. No person shall paint, mark, write on, post or otherwise affix any handbill or sign to or upon any public utility pole, street lamp pole, street sign, traffic sign, tree, fence, hydrant, or stake.
 - b. Any handbill or sign found posted upon any public property contrary to the provisions of this paragraph may be removed by the police department, zoning administrator or other person designated by the city for that purpose. The person responsible for such posting shall be liable for the cost incurred in the removal, storage and/or disposal thereof and the city is authorized to effect the collection of said cost.
7. Electronic display signs. Except as otherwise permitted in this Section 17.5.128, all electronic display signs are prohibited.

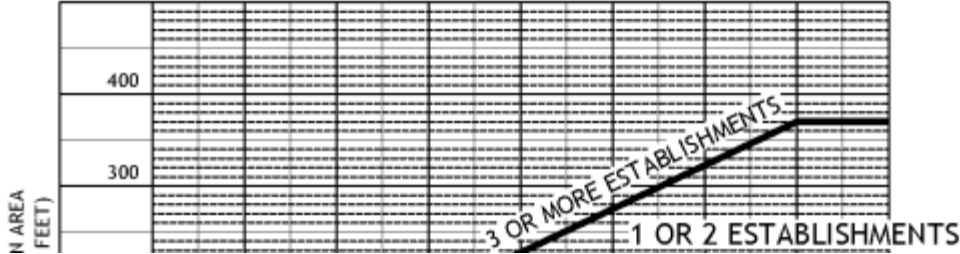
8. A-frame signs. Except as otherwise permitted in this Section 17.5.128, all A-Frame signs are prohibited.



PYLON SIGN AREA
GENERAL COMMERCIAL OVERLAY
CHART 17.5.128-B



PYLON SIGN AREA
FREEWAY OVERLAY ZONE
CHART 17.5.128-C



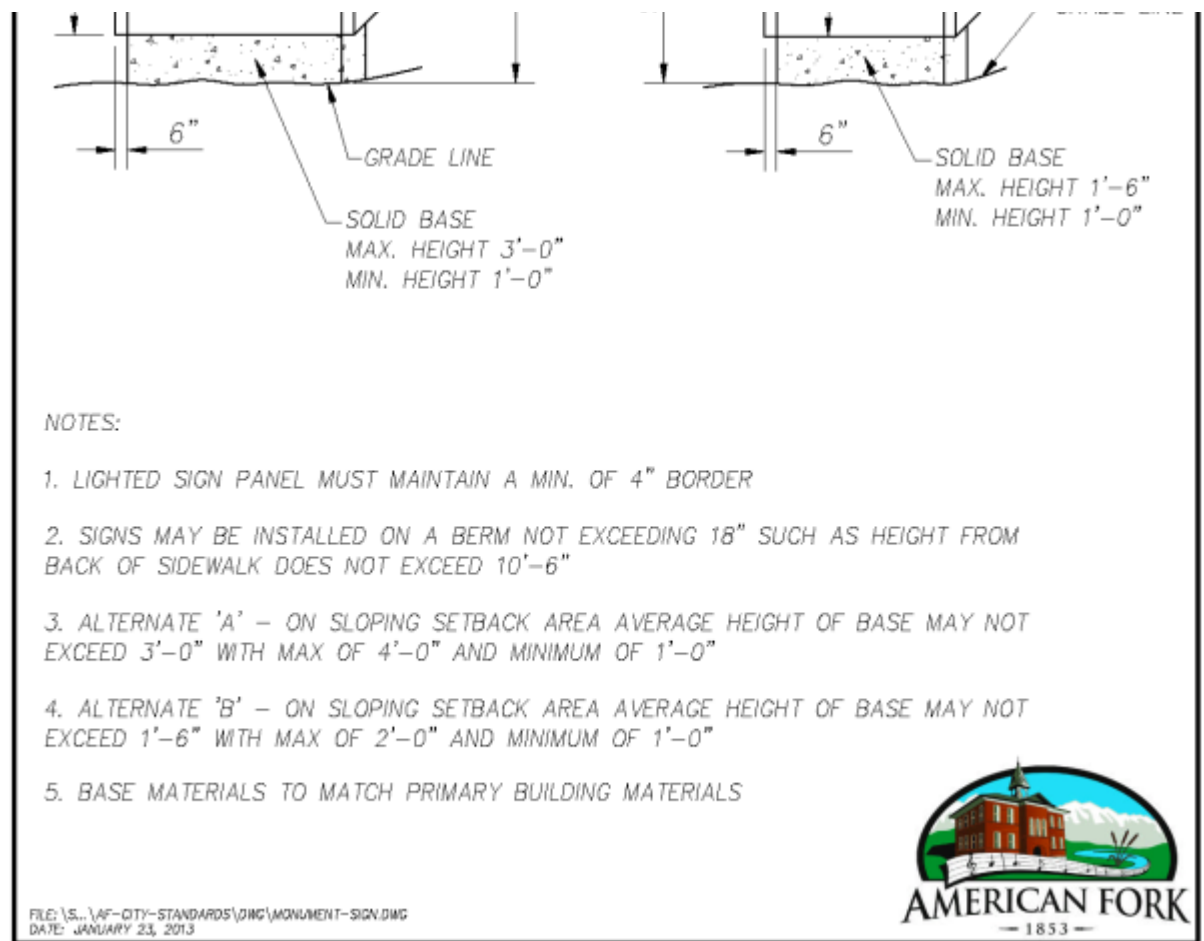


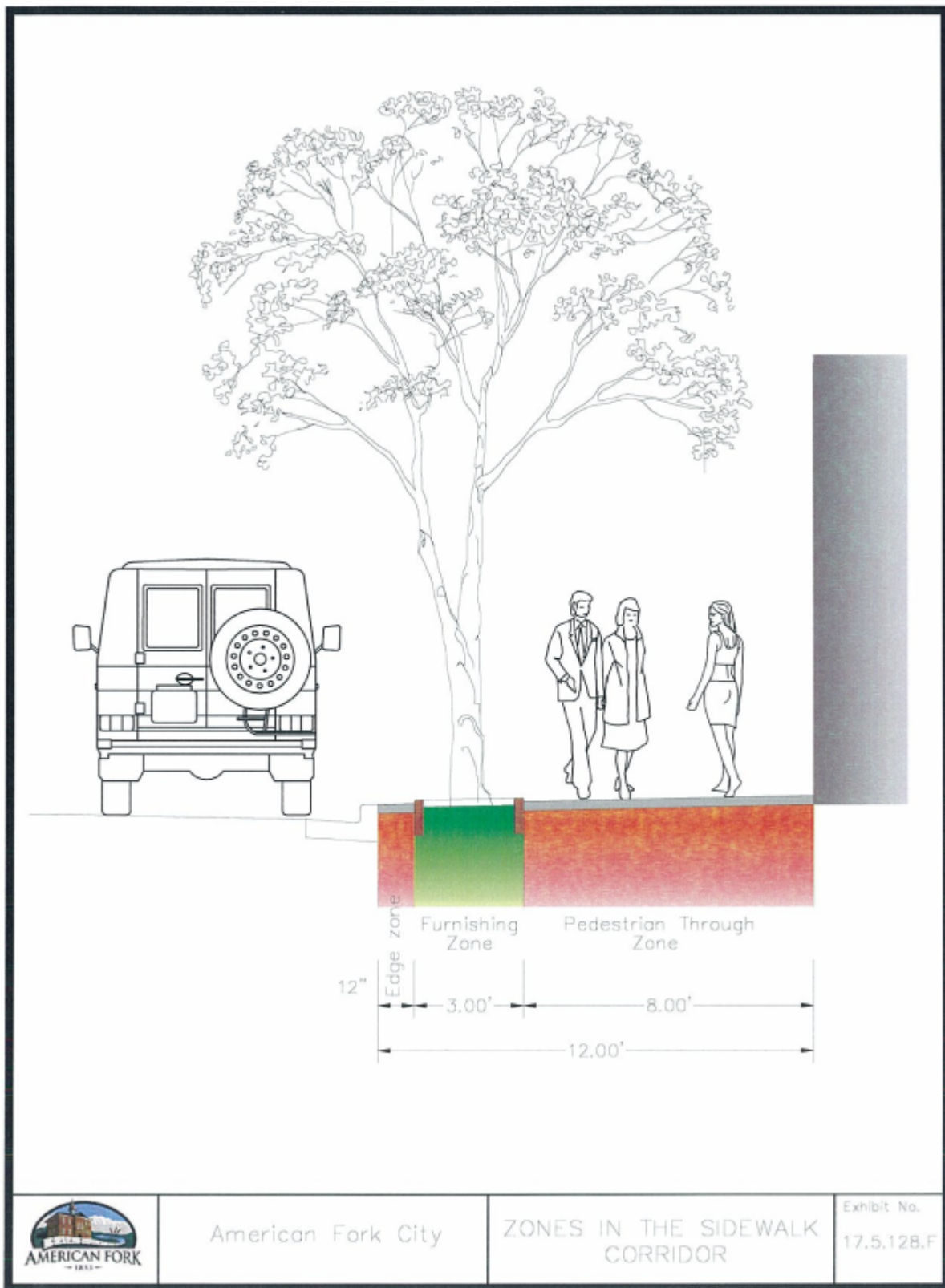
CHART 17.5.128-E Sign Area Versus Measurement Distance

Area of Sign (sq. ft.)	Measurement Distance (ft.)
10	32
15	39
20	45
25	50
30	55
35	59
40	63
45	67
50	71
55	74
60	77
65	81
70	84
75	87
80	89
85	92
90	95
95	97
100	100
110	105
120	110
130	114
140	118
150	122
160	126
170	130
180	134
190	138
200	141
220	148
240	155
260	161

280	167
300	173

*For signs with an area in square feet other than those specifically listed in the table, the measurement distance may be calculated with the following formula:

Measurement Distance= $\sqrt{\text{Area of Sign Sq. Ft.} \times 100}$



(Ord. No. 03-08-29; Ord. No. 03-10-36; Ord. No. 04-04-13; Ord. No. 09-11-37; Ord. No. 2010-08-18, §§ 1, 2, 8-10-2010; Ord. No. 2013-03-10, pt. I, 3-26-2013; Ord. No. 2013-05-16, §§ 1—5, 5-14-2013; Ord. No. 2013-09-34, §§ 1, 2, 9-24-2013; Ord. No. 2014-06-21, §§ 1—6, 6-10-2014; Ord. No. 2015-08-49, pt. I, § 1, 8-11-2015; Ord. No. 2016-11-56, Pt. I, § 1, 11-22-2016; Ord. No. 2017-07-35, Pt. I, § 1, 7-11-2017)

HISTORY
Amended by Ord. [2020-05-29](#) on 5/26/2020

Sec 17.5.129 Special Provisions Relating To Dwellings

A. Application. The provisions of this sub-section shall be applicable to dwellings located on individual lots, but shall not apply to dwellings located within approved mobile home parks.

B. Standards and criteria.

1. The dwelling shall meet the requirements of the current edition of the Uniform Building Code as adopted by the city of American Fork or, in the instance of a manufactured housing unit, the current version of the HUD Code.
2. In the event that the dwelling has had prior occupancy the dwelling shall meet the requirements of the existing applicable code, and in addition to the provisions of this subsection shall be approved as a moved building in accordance with the provisions of Section 17.5.125.
3. The dwelling shall be approved for permanent connection to all required utilities.
4. Each dwelling shall have a code approvable site-built foundation capable of transferring design dead loads and live loads and any other design loads unique to local homes (i.e., wind, seismic or water conditions etc.) that are imposed by or upon the structure into the underlying soil or bedrock without failure, and shall be adequately tied to the foundation. All foundations and all tie-down devices shall be in accordance with the city's adopted building codes, the manufacturer's recommendations, or an approved engineered design.
5. The space beneath the structure shall be enclosed at the perimeter with a foundation which meets the requirements of the Uniform Building Code or, in the instance of a manufactured housing unit a concrete or masonry skirting wall. The perimeter foundation or skirting wall shall be continuous, except for the placement of doors, windows or access openings and shall be placed upon footings which are not less than thirty inches below grade, as measured to the bottom of the footing, for frost protection.
6. In the instance of a factory built dwelling or moved structure, any tongues, axles, wheels or other devices required for the transportation of a dwelling and not required to retain the structural integrity of the building shall be removed at the time of installation.
7. Dwellings shall have a roof surface of wood shakes, asphalt, composition, wood shingles, concrete, fiberglass or slate tiles, or built up gravel materials.
8. Where the design provides for a pitched roof, the pitch shall be not less than 2.5:12. There shall be a roof overhang at the eaves and gable ends of not less than six inches, excluding the rain gutters, as measured from the outer surface of the adjacent vertical wall. The roof overhang requirement shall not apply to areas above porches, alcoves, and similar appendages, which together do not exceed twenty percent of the length of the structure.
9. Dwellings shall have exterior siding material consisting of wood, hardboard, brick, concrete, stucco, glass, metal or vinyl lap, tile or stone.
10. Each dwelling shall be provided with a garage or carport providing not less than one covered parking space for each dwelling unit.
11. At each exit door there must be a landing that is a minimum of thirty-six inches by thirty-six inches and constructed to meet the requirements of the building code.
12. The planning commission may approve deviations from one or more of the developmental or architectural standards set forth above, upon receipt of an application from the owner and a finding that: (1) the proposed deviation provides compensating features meeting the intent of the standard appealed from and, (2) the appearance of the proposed dwelling, including any proposed deviation, will be compatible and harmonious with existing structures in the vicinity. A determination made by the planning commission may be appealed to the city council.

Sec 17.5.130 Rules For Determining Height Of Buildings

Wherever the terms of this title contain regulations regarding height of building, said height shall be the vertical distance from the "average finished grade elevation" of the structure to the "roof line of the structure."

For purposes of compliance with this title:

- A. "Average finished grade elevation" shall be the proposed finish grade of each corner of the structure fronting upon the adjacent street(s), divided by the number of corners.
- B. "Roof line of the structure" shall be as follows, as applicable:
 - 1. Flat roof. The highest part of a flat roof or top of any adjacent parapet wall, whichever is higher.
 - 2. Mansard type roof. The deck line.
 - 3. Gable, hip or gambrel roof. The elevation measured at the highest part of the roof ridge line, not including incidental chimneys, antennas, cupola etc.

Sec 17.5.131 Water And Sewer Connection Standards

A. Residential uses.

- 1. Culinary water and pressurized irrigation. Each dwelling unit shall be served by the city's culinary water and pressurized irrigation system. Each dwelling unit shall be served by an individual service lateral and meter with the following exceptions:
 - a. In the instance of multi-story multi-unit structures on a single lot, the city, at their sole discretion, may authorize the use of oversize connections and a master meter.
 - b. In the instance of a multi-story multi-unit building where the property boundaries of each unit are confined to the extents of the structures and there are no exterior landscaping areas located within the unit's property boundaries, an individual pressurized irrigation service later is not required.
- 2. Sewer. Each dwelling unit shall be served by the city's sewer collection system. Each dwelling unit shall be connected to the sewer collection system by an individual lateral, except that in the instance of multi-story multi-unit structures on a single lot, the city, at their sole discretion, may authorize the use of a common lateral.

B. Commercial, industrial, mixed uses, and institutional uses. Minimum standards for culinary water, pressurized irrigation and sewer connections for commercial, industrial, mixed uses, and institutional uses are as follows:

1. Buildings. At a minimum, each building shall be served by a separate water and sewer connection which is connected directly to city water and sewer laterals having sufficient capacity to accommodate the anticipated demand from the proposed use.
2. Lots. Each lot shall be served by an individual service lateral and meter connected to the city's pressurized irrigation system.

3. Multi-tenant. Each multi-tenant building shall conform to the following standards, as applicable:

- a. In the instance of a single story building where the units in the building are designed to be divided into separate units and intended to be owned by separate owners, each unit shall be served by individual water and sewer service laterals connected directly to a city water and sewer line having sufficient capacity to accommodate the anticipated demand from the proposed use.
- b. In the instance of a single story building where all of the units within the building are to remain in single ownership, the city may authorize the use of a single water and/or sewer connection for the entire building subject to: (1) the providing of adequate assurances of continued unified ownership, (2) submittal of a document, acceptable to the city, indemnifying the city against damages that may occur to tenants within the building as a result of a malfunction of the common utility system and agreeing to retro-fit the utility system to provide individual water and sewer laterals to each unit in the event of a sale of any of the units within the building to a separate owner.
- c. In the instance of a multi-unit building intended to be divided into separately owned units (condominium project), except as otherwise stated herein, each unit utilizing culinary water and/or sewer shall be served by an individual water service lateral and meter which are connected directly to a city water line and each unit shall be served by an individual sewer service lateral which is connected to a city or private sewer line having sufficient capacity to accommodate the anticipated demand from the proposed use.
 - (1) The City may permit only a single water line and single sewer service lateral to the entire building upon the following findings by the City Engineer: (1) the building is subject to a valid condominium ownership association, (2) use of water and sewer is limited only to common areas of the building, (3) an indemnification agreement indemnifying the city against damage that may occur to units within the building as a result of a malfunction of the common utility system has been received, and (4) an agreement to retro-fit the utility system to provide individual water and sewer laterals to each unit in the event of dissolution or termination of the condominium ownership association has been received.
- d. In the instance of a multi-story, multi-unit, mixed use building where all units within the structure are to remain in single ownership, the city may authorize the use of a single water and/or sewer connection for each land use type within the structure subject to: (1) the providing of adequate assurances of continued unified ownership, (2) submittal of a document, acceptable to the city, indemnifying the city against damages that may occur to tenants within the building as a result of a malfunction of a common utility system and agreeing to retro-fit the utility system to provide individual water and sewer laterals to each unit in the event of a sale of any of the units within the building to a separate owner.

(Ord. No. 08-05-26)

HISTORY

Amended by Ord. [2020-06-32](#) on 6/30/2020

Amended by Ord. [2021-08-44](#) on 8/24/2021

Sec 17.5.132 Sexually Oriented Businesses

- A. Definitions. For the purposes of this chapter, the following words shall have the following meanings:
Sexually oriented business. Seminude entertainment businesses, sexually oriented outcall services, adult businesses and seminude dancing agencies, as defined by Municipal Ordinance No. 07-08-41.
- B. Permitted zones.
1. It is unlawful for any sexually oriented business to do business at any location within the city not zoned for such business.
 2. Sexually oriented businesses shall only be permitted in areas zoned:
 - a. I-1 Industrial Zone.
- C. Restrictions.
1. Sexually oriented businesses shall not be located within one mile (five thousand two hundred eighty feet) of the same type of business inside or outside the American Fork City geographical boundaries. This distance shall be measured from the exterior walls of the buildings.
 2. Sexually oriented businesses shall be limited to one business per twelve thousand in population, to include all residents in American Fork City within the city's geographic boundaries. The total population figures shall be based on the U.S. Census Bureau's annual estimates.
 3. Sexually oriented businesses shall not be located within one thousand feet of any school, church, or public park.
- D. Design requirements.
1. The color of the building shall be restricted to earth tones or shall match the design theme of the surrounding buildings in keeping with the aesthetic qualities of the area.
 2. The use of bars, chains or similar security devices that are visible from a public street or sidewalk shall be prohibited.
 3. The use of neon lighting shall be prohibited on the building exterior, exclusive of building signage.
- E. Compliance with existing laws.
1. The sexually oriented business shall conform to all applicable building, safety and health codes and requirements.
 2. Sexually oriented businesses shall comply with all applicable city codes and ordinances, state and federal laws.
- F. Violation.
1. A violation of any provision in this chapter shall be subject to prosecution as a Class B misdemeanor, for each separate violation, with the corresponding statutory fines and penalties pursuant to Utah State Law.

(Ord. No. 2009-03-13, § 1, 3-10-2009; Ord. No. 2014-08-30, § 1, 8-26-2014)

Sec 17.5.133 Off-Street Parking Standards

- A. Title. This section shall be entitled the Off-Street Parking Standards Ordinance of American Fork, Utah.
- B. Application of standards. Wherever the terms of the American Fork Development Code or other ordinance of the city require that off-street parking facilities be required in conjunction with a specific use or development project, the minimum number of spaces to be provided, the location of off-street parking facilities, vehicular access to and circulation within the parking area, the layout and design, and the landscape treatment of the areas designated for off-street parking shall conform to the terms of this section.

C. Number of required parking spaces. The minimum number of off-street parking spaces required for a specific use shall be as set forth on the following schedule:

1. Residential uses.

- a. One-family dwelling: Two spaces per dwelling unit. All spaces shall be located on the same parcel as the dwelling. No portion of a front or side setback area adjacent to a street, including any portion thereof used as a driveway, shall be construed as part of the required off-street parking area.
- b. Multiple family dwelling: Two spaces per dwelling unit, plus 0.25 spaces per dwelling unit for visitor parking. Visitor parking shall be evenly distributed throughout the project.
- c. Long-term patient care facilities (assisted living centers, rest homes nursing homes): One space for each employee during the maximum care period, plus one space for each four patient rooms for visitors.

2. Retail/service commercial uses.

- a. General retail: Four and one-half spaces per one thousand square feet of gross floor area.
- b. Personal care service: Two spaces per treatment station, but not less than four spaces per one thousand square feet of gross floor area.
- c. Grocery: Five spaces per one thousand square feet of gross floor area.
- d. Retail shopping center projects (centers containing no cinema and not more than five percent dining space): Four and one-half spaces per one thousand square feet of gross floor area.
- e. Discount superstores: Five and one-half spaces per one thousand square feet of gross floor area. Areas intended for outside display and sales (garden areas) shall not be included in calculating compliance with the parking standard.
- f. Home improvement centers: Four and one-half spaces per one thousand square feet of gross floor area, not including areas for outside display and sales (garden areas). Areas intended for outside display and sales (garden areas) shall not be included in calculating compliance with the parking standard.
- g. Motor vehicle sales and service: The sum of the following:
 - (1) Three spaces per one thousand square feet of gross floor area used for display, sales and administration.
 - (2) One and one-half spaces per one thousand square feet of area used for warehouse of parts and materials.
 - (3) Four spaces per service bay.
- h. Car wash: Two spaces, plus one and one-half additional space for each two employees on highest shift.
- i. Retail and service commercial/warehouse: Four and one-half spaces per one thousand square feet for portion used for retail purposes, plus one space per one thousand square feet for the total floor area.
- j. Multi-tenant/strip commercial buildings: For any proposed multi-tenant/strip commercial building wherein the occupancy is unknown at the time of request for approval, parking requirements shall be calculated as follows:
 - (1) One-half of the gross floor area of the building at the rate of four and one-half spaces per one thousand square feet (general retail standard)
 - (2) One-half of the gross floor area of the building at the rate of twelve spaces per one thousand square feet of dining floor area (fast food restaurant standard).

In addition, the city may require a written agreement with the city to the effect that the amount of floor area devoted to restaurant use will not exceed the amount identified on the approved plan.

3. Office and business uses.

- a. General business office—Fixed wall construction: Four spaces per one thousand square feet of gross floor area excluding portion devoted to stairs and elevator and open atrium spaces above the ground floor.
- b. Business office—Open wall/telemarketing and customer support center: The sum of the following:
 - (1) For portion of building having fixed-wall construction, four spaces per one thousand square feet of gross floor area excluding portion devoted to stairs and elevator and open atrium spaces above the ground floor.
 - (2) For open-wall portion of building, six spaces per one thousand square feet of open-wall area.
- c. Medical office: Four and one-half spaces per one thousand square feet of gross floor area.
- d. Medical clinics: Five spaces per one thousand square feet of gross floor area.
- e. Bank with drive-in: Five spaces per one thousand square feet of gross floor area.
- f. Office/warehouse: Four spaces per one thousand square feet used for office purpose, plus one space per one thousand square feet used for warehouse purpose, up to eighty percent of the total floor area.
- g. Light manufacturing: Five spaces per one thousand square feet used for office purpose, plus one space per work station or one space for each employee during the greatest shift, which ever is greater.

4. Food and beverage uses.

- a. Restaurant (sit-down): Whichever of the following is greater:
 - (1) Twenty spaces per one thousand square feet of dining floor area; or
 - (2) One space for each three seats, plus one space per employee during the largest shift.
- b. Fast-food with sit-down and take-out: Twelve spaces per one thousand square feet of dining floor area. Where take-out window is included, the outside order and stacking lane shall provide an automobile stacking lane for not less than ten vehicles.

5. Public assembly uses.

- a. Churches (single session occupancy): One parking space for each three seats or seating spaces within the portion of the building used for assembly. In the instance where seating is by pews or benches, eighteen inches of bench length shall be considered as one seat.
- b. Churches (overlapping session occupancy): Two times the number of spaces for single session occupancy.
- c. Cinemas: One parking space for each three seats.
- d. Elementary schools (students below minimum driver age):
 - (1) Parking. The sum of the following: One parking space for each teaching station, plus one space for each administrative and support employee, plus one space for each ten students.
 - (2) Student drop-off and pick-up. In addition to the off-street parking area, the layout of the school site shall include an area and facilities sufficient to accommodate anticipated student drop-off and pick-up by school bus and private vehicle.
- e. Secondary schools (students above minimum driver age): The sum of the following: One parking space for each teaching station, plus one space for each administrative and support employee, plus one space for each three and one-half students.

6. Uses not specifically listed. For uses not identified in the above schedule, the number of off-street parking spaces shall be determined by the planning commission. The determination shall be based upon the requirements for the most comparable use listed, and/or that certain table entitled recommended parking ratio requirements set forth under part 3 p. 246 of that certain book entitled Planning and Urban Design Standards, 2006 Edition, which is set out below, and/or upon an independent determination of parking demands for such uses in comparable locations, all at the discretion of the planning commission.

RECOMMENDED PARKING RATIO REQUIREMENTS*

Use	Parking Spaces Required	Comments
Residential		
Sleeping rooms	1 per unit or room plus 2 for owner/manager	
Commercial lodgings	1.25 per guest room, plus 10 per ksf restaurant lounge, plus 30 per ksf meeting/banquet room (<50 ksf per guest room) or 20 per ksf meeting/banquet room (>50 ksf per guest room)	Peak spaces for each component shown; use shared parking analysis to determine appropriate parking ratio for particular hotel ³
Elderly housing, independent living	0.6 per dwelling unit	1
Elderly housing, assisted living	0.4 per dwelling unit	1
Group, convalescent, and nursing homes	1 per room	1
Day care center	0.35 per person (licensed capacity)	1
Hospital/medical center	0.4 per employee, plus 1 per 3 beds, plus 1 per 5 average daily outpatient treatments, plus 1 per 4 medical staff, plus 1 per student/faculty/staff	
Retail/Service		
General retail (not in shopping center)	3.5 per ksf GFA**	
Grocery (freestanding)	6.0 per ksf GFA	1
Discount superstores/clubs (freestanding)	6.0 per ksf GFA	1
Home improvement superstores	5.0 per ksf GFA	1
Other heavy/hard goods (furniture, appliances, building materials, etc.)	3.0 per ksf GFA	1

Shopping centers	4.0 per ksf GLA up to 400 ksf, 4.0 to 4.5 per ksf GFA sliding scale between 400 and 600 ksf; 4.5 per ksf GLA over 600 ksf	With up to 10 percent GLA in dining/entertaining; over 10 percent use shared parking analysis ²
Personal care services	2 per treatment station but not less than 4.3 per ksf	
Coin-operated laundries	1 per 2 washing and drying machines	
Motor vehicle sales and service	2.7 per ksf GFA interior sales area, plus 1.5 ksf GFA interior or storage/display area, plus 2 per service bay	
Motor vehicle laundries	2, plus 1 per each 2 peak shift employees	
Food and Beverage		
Fine dining	21.5 per ksf GFA ³	
Casual restaurant (with bar)	22.5 per ksf GFA ³	
Family restaurant (without bar)	16.0 per ksf GFA ³	
Fast food	15.0 per ksf GFA ³	
Office and Business Services (3)		
General business offices suburban/low-rise	3.6 per ksf GFA <250 ksf, 3.35 per ksf GLA >250 ksf	1
Office downtown/mid-high-rise business center	3.0 per ksf GLA	1
Consumer service offices (freestanding)	4 per ksf GLA	1
Data processing/telemarketing /operations	6.0 per ksf GFA	1
Medical offices (multitenant)	4.5 per ksf GFA	1
Clinic (medical offices with outpatient treatment; no overnight stays)	5.5 per ksf GFA	1

Bank branch with drive-in	5.5 per ksf GFA	1
Bank headquarters (with admin offices, etc.)	4.4 per ksf GFA	1
Industrial/storage/wholesale utility	2 per ksf GFA	Add spaces as required for office, sales, or similar use when more than 10 percent GFA
Manufacturing/light industrial (single use)	1.5 per ksf	
Industrial park (multitenant or mix of service, warehouse)	2.0 per ksf	1
Warehouse	0.7 per ksf GFA	
Mini-warehouse	0.25 per ksf GFA	1
Governmental	As determined by zoning administrator	
Educational		
Elementary and secondary schools	0.35 per student	1
College or university	Determined by parking study specific to subject institution	
Cultural/Recreational/Entertainment		
Public assembly	0.25 per person in permitted capacity	
Museum	1.5 per 1,000 annual visitors	1
Library	4.5 per ksf GFA	1
Religious centers	0.6 per seat	1
Cinemas	Single-screen: 0.5 per seat; Up to 5 screens: 0.33 per seat 50 to 10 screens: 0.3 per seat Over 10 screens: 0.27 per seat	3
Theaters (live performance)	0.4 per seat	3
Arenas and stadiums	0.33 per seat	3
Health clubs and recreational facilities	2 per player or 1 per 3 persons permitted capacity	3

Source: Adopted from Transportation Planning Handbook, 2nd ed. Washington DC: Institute of Transportation Engineers, 1999, unless otherwise noted.

* All parking recommendations presented here should be considered in the context of local conditions, parking requirements, and other factors that may affect the actual number of parking spaces needed.

¹ Adopted from Parking Generation, 3rd ed. Washington DC: Institute of Transportation Engineers, 2004.

² Adopted from Parking Requirements for Shopping Centers, 2nd ed. Washington DC: ULI-The Urban Land Institute and International Council of Shopping Centers, 1999.

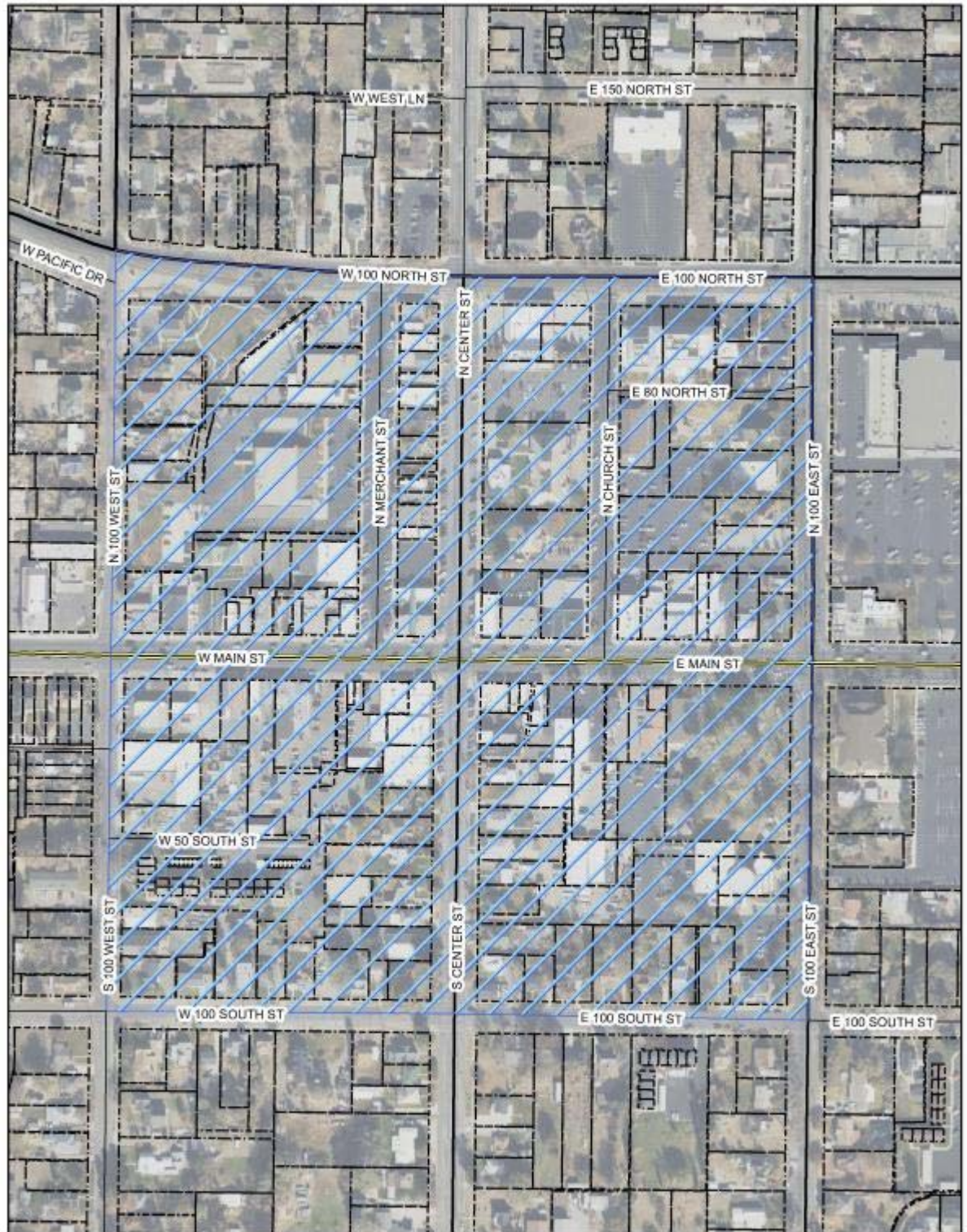
³ Adopted from Shared Parking, 2nd ed. Washington DC: ULI-The Urban Land Institute and International Council of Shopping Centers, 2004.

D. Adjustments permitted.

1. The planning commission may recommend to the city council an increase or decrease to the number of off-street parking spaces herein specified upon a finding, made following a study on the matter, that the use characteristics of the proposed use warrant adjustment. Provided, however, no reduction in the parking requirement shall be permitted based on the projected demand of the initial occupant of a new retail, office or similar use for which a subsequent change in tenancy to another user is probable.
2. After receiving a recommendation (positive or negative) from planning commission regarding the number of off-street parking spaces, the city council shall have the authority to increase or decrease the number of off-street parking spaces herein specified upon a finding, made following a study on the matter, that the use characteristics of the proposed use warrant adjustment. Provided, however, no reduction in the parking requirement shall be permitted based on the projected demand of the initial occupant of a new retail, office or similar use for which a subsequent change in tenancy to another user is probable.

E. Exception to standard in downtown area. Notwithstanding the provisions of subsection C of this section, on street parking along the frontage of the project lot may be used to meet the required minimum number of off-street parking spaces required for a specific use within the "Downtown" area of the city, as shown in the figure below, subject to the following:

1. The proposed project is located wholly within the designated downtown area as set forth on the following map.



2. The proposed reconstruction or expansion will not reduce the number of off-street parking spaces along the frontage of the project lot, unless approved by the Development Services Director.

3. The project shall install and/or replace all existing curb, gutter, & sidewalk along the frontage of the project lot in compliance with current city code.
4. The project shall install and/or replace all parking islands and driveway approaches in compliance with current city code.

- F. Exception to off-street parking standard in the CC-1 Zone, excluding the Downtown Area. Notwithstanding the provisions of subsections C and E of this section, additional off-street parking spaces will be required as a condition of approval for any new construction, reconstruction of an existing building, or incidental expansion of any building in the CC-1 zone subject to either one of the following criteria:

1. Residential uses: Either of the following off-street parking calculations may be requested by the applicant and may be approved by the city council.

- a. Two spaces per dwelling unit, plus 0.25 spaces per dwelling unit for visitor parking. Visitor parking shall be evenly distributed throughout the project. However, if any of the conditions found in Table A of this subsection apply, the City Council may, after review and recommendation (positive or negative) from the Planning Commission, decrease the required number of off-street parking spaces as shown. The visitor parking requirement shall not be affected by this reduction and remains at 0.25 spaces per dwelling unit. Under no circumstance shall the per-unit parking requirement drop below 1.75 spaces per dwelling unit, except as referenced in 17.5.133(D).

Table A

Condition	Parking Reduction Per Dwelling Unit
Bike Room ¹	0.05
Grocery Store ²	0.10
Off-Site Parking ³	0.15
Transit ⁴	0.15
Public ⁵ Agency/HUD	Up to 0.15

Definitions:
¹ - Bike Room: A secured bike room of sufficient size to accommodate a minimum of one bicycle per dwelling unit shall be located within the structure. In the event of a multi-structure project each building shall have a secured bike room of sufficient size to accommodate a minimum of one bicycle per dwelling unit in the building. The applicant can opt to either (1) show how the required number of bicycles is accommodated in the room or (2) provide a minimum of 40 square feet per bicycle in the room.
² – Grocery Store: The location of the grocery store shall be less than 1320 feet walking distance from the main entrance of the most distant dwelling unit in the project.
³ – Off-Site Parking: Additional public or shared parking shall be located less than 1320 feet walking distance from the main entrance of the most distant dwelling unit in the project. Parking equivalent to the 0.15 space per dwelling unit reduction shall be secured via agreement with the property owner and recorded. A parking study shall accommodate the agreement so that it can be ensured that the parking facility will not be overallocated.
⁴ – Transit: The stop location of the high-capacity transit line (light rail, “Trax”, heavy rail, “FrontRunner”, streetcar, high-capacity Bus Rapid Transit, “BRT”) shall be less than 1320 feet walking distance from the main entrance of the most distant dwelling unit in the project.
⁵- Public Agency/HUD: Projects that are owned and operated by a public agency or have received a subsidy by HUD or other public agency may be eligible for a reduction of up to 0.15 stalls per unit upon a study that a reduction is warranted.

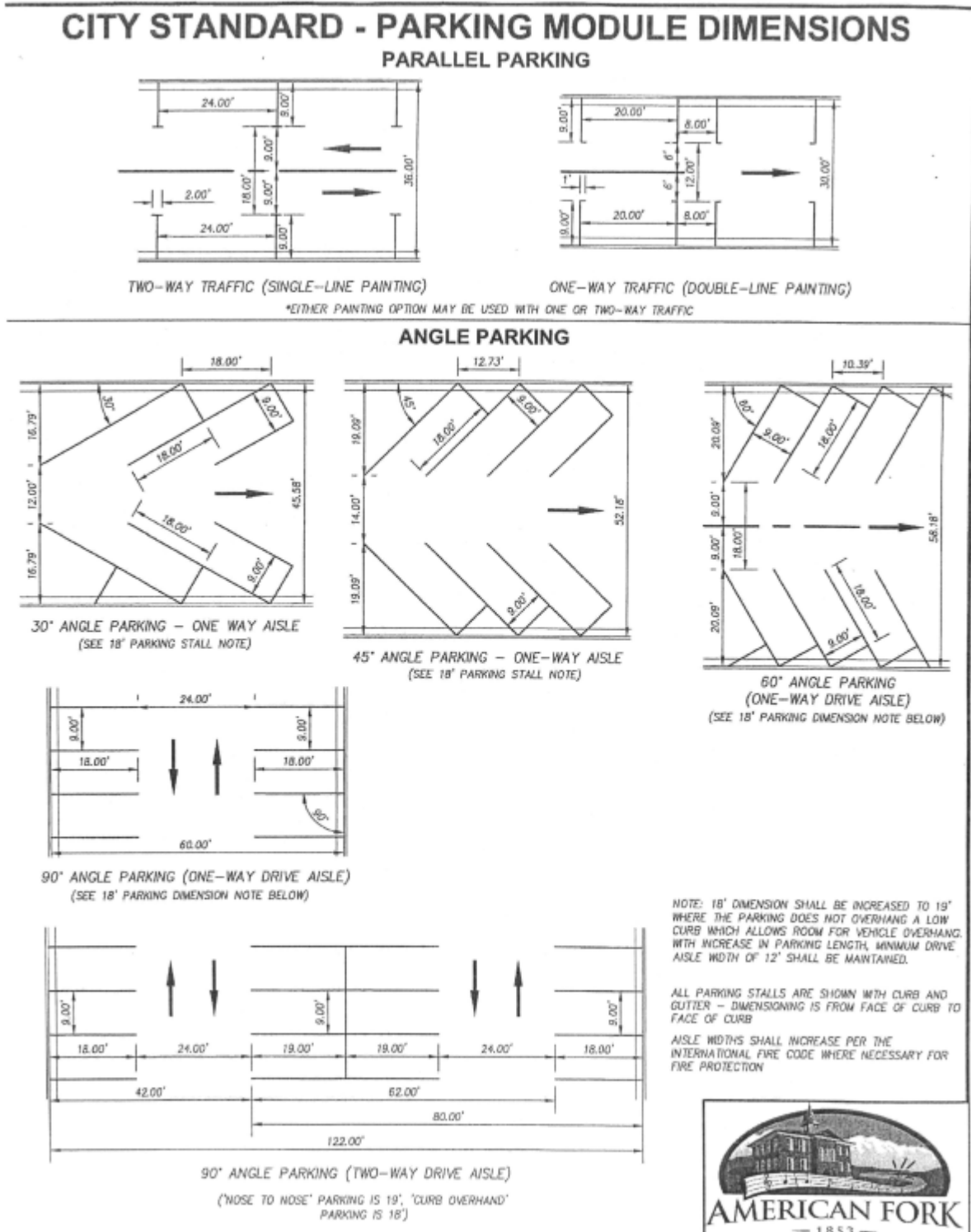
- b. Parking shall be required per unit size as depicted in Table B of this subsection, plus 0.25 spaces per dwelling unit for visitor parking. Visitor parking shall be evenly distributed throughout the project. The visitor parking requirement shall not be affected by this reduction and remains at 0.25 spaces per dwelling unit. Under no circumstance shall the per-unit parking requirement including visitor parking drop below 1.75 spaces per dwelling unit, except as referenced in 17.5.133(D).

Table B

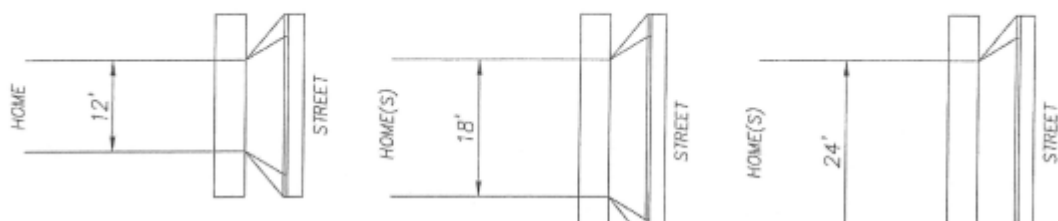
Unit Size	Parking Requirement Per Unit (Add 0.25 for visitor parking per unit to derive the aggregated requirement.)
0-350 square feet	1.50
351-600 square feet	1.75
Above 600 square feet	2.00

- G. Location of off-street parking areas. All off-street parking areas shall be located on the same parcel as the use intended to served thereby, except that for uses other than dwellings, the planning commission may approve the placement of some of the required parking spaces on adjacent lands, upon a finding that:
1. The use is part of a combined parking facility as authorized under subsection I.1 of this section, and
 2. The location of the proposed off-site spaces are reasonable and conveniently accessible to the use they are intended to serve.

- H. Parking space and driveway dimension requirements and parking lot layout requirements. All parking spaces, access driveway and the layout of parking lot areas shall conform to the typical design standards, set forth below.



MINIMUM STANDARDS FOR ACCESS DRIVEWAYS - RESIDENTIAL



TWO-WAY TRAFFIC

2 PARKING SPACES
(1 DWELLING UNIT)

TWO-WAY TRAFFIC

3~7 PARKING SPACES
(3 DWELLING UNITS)

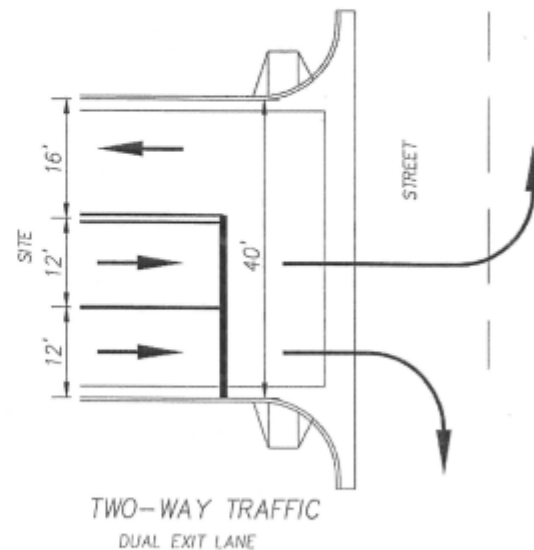
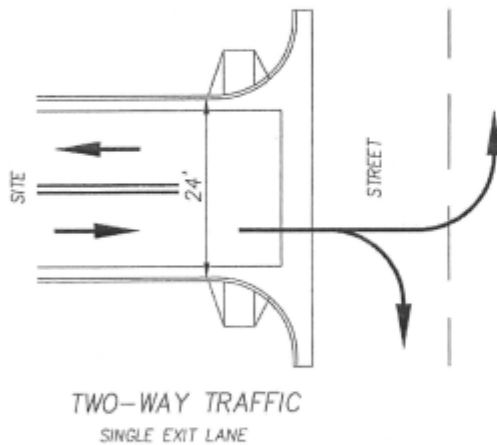
TWO-WAY TRAFFIC

MORE THAN 7 PARKING SPACES
(MORE THAN 3 DWELLING UNITS)

NOTES:

1. WHERE PRIMARY DRIVEWAY SURFACING IS ASPHALT, SOME TYPE OF CONCRETE CURBING OR CONCRETE EDGE TREATMENT IS REQUIRED FOR LANDSCAPE MAINTENANCE PURPOSES.
2. FOR PURPOSES OF "SEALED SURFACE" CALCULATION, DRIVEWAY IS CONSIDERED "SEALED" IN ITS ENTIRETY REGARDLESS OF SURFACING MATERIALS"

MINIMUM STANDARDS FOR ACCESS DRIVEWAYS - COMMERCIAL



NOTES:

1. WHERE PRIMARY DRIVEWAY SURFACING IS ASPHALT, SOME TYPE OF CONCRETE CURBING OR CONCRETE EDGE TREATMENT IS REQUIRED FOR LANDSCAPE MAINTENANCE PURPOSES.
2. FOR PURPOSES OF "SEALED SURFACE" CALCULATION, DRIVEWAY IS CONSIDERED "SEALED" IN ITS ENTIRETY REGARDLESS OF SURFACING MATERIALS"

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DATE: NOV. 7, 2007



1. Parking areas to be located in the same zone district as primary use. Off-street parking and loading space which is required in connection with a particular use shall constitute a portion of the use and shall not be permitted to extend into an adjacent zone district unless specifically permitted within the adjacent zone district.

J. Combined parking areas and shared parking arrangements authorized—Conditions.

1. Combined parking authorized. The off-street parking for a project containing two or more adjacent buildings or uses may be combined, provided that the total number of spaces shall be not less than the sum of the requirements for each of the individual uses and that the area devoted to off-street parking area is part of the common amenities of the project and/or the right of use and access to the combined parking area by all uses within the project is assured through reciprocal cross-easements and agreements and/or other legal documents which prohibit the reservation of a portion of the off-street parking area to a specific owner or tenant and which establish responsibility for maintenance thereof.
2. Shared parking arrangements authorized. The off-street parking for a development project containing a variety of uses having different parking demand characteristics and time-of-day demand may be combined, subject to the following:
 - a. The total number of spaces shall be sufficient to meet the maximum time-of-day requirement for the project (as determined by the city).
 - b. The area devoted to off-street parking shall be part of the common amenities of the project and/or the right of use and access to the combined parking area by all uses within the project is assured through reciprocal cross-easements and agreements and/or other legal documents which prohibit the reservation of a portion of the off-street parking area by a specific owner or tenant and which establish responsibility for maintenance thereof.
 - c. The location and design of the parking areas within the project area shall provide an adequate number of spaces in the proximity of the use intended to be served.

(Ord. No. 2015-10-67, pts. I (§§ 1—3), II, 10-27-2015)

HISTORY

Amended by Ord. [2020-07-35](#) on 7/14/2020

Amended by Ord. [2021-12-61](#) on 12/14/2021

Amended by Ord. [2022-04-18](#) on 4/26/2022

Sec 17.5.134 Accessory Apartments

Accessory apartments are permitted within the city subject to compliance with the conditions and criteria hereinafter set forth.

- A. Intent. The intent of this section is to recognize the residential character of American Fork City, while providing for supplementary living accommodations in the community. These provisions are intended to provide additional opportunities for affordable housing, with limitations, to minimize the impact on neighboring properties and neighborhoods.

B. Conditions and criteria.

1. A maximum of one accessory apartment may be allowed in a single-family home within all single-family residential zones. Accessory apartments shall not be calculated as additional density. No accessory apartment may be allowed in any multi-family dwelling unit, or on any lot or parcel that cannot satisfy the parking requirements.
2. Owner occupied. No accessory apartment shall be created or occupied in a single-family home unless the owner of the property occupies either the main dwelling or the accessory apartment. For the purpose of this section, the term "owner occupied" shall be defined as full time residency within the home by the bona fide property owner(s) as shown on the Utah County tax assessment rolls.
3. Occupancy. The occupants of an accessory apartment shall be limited by one of the following family categories:
 - a. One person living alone; or
 - b. Two or more persons related by blood, marriage, or adoption, and not more than two unrelated persons; or
 - c. Up to four unrelated individuals.
4. Parking. Two off-street parking spaces, in addition to the two spaces required for a single-family home, are required for an accessory apartment. No parking spaces may be located within a front or side yard; except within an approved driveway. Tandem parking within a driveway is allowed to meet the parking requirement.
5. Utility meters. A single family home with an accessory apartment may have separate meters for each water, gas, and electricity utility service. Each utility meter shall be in the property owner's name and the property owner shall be responsible for payment of all utilities.
6. Address. The principal dwelling unit and the accessory apartment shall have the same address number, but shall refer to the principal dwelling as unit "A" and the accessory apartment as unit "B". Address must be located in a visible location on the street frontage side of the home.
7. Appearance. The outside appearance of a single family home with an accessory apartment shall not be changed from that of a single family home.
8. Entrances. An accessory apartment shall have a dedicated entrance located on any side or rear of the single family home or at the front of the home if it is below grade and maintains the characteristics of a single family home.
9. Separate living areas. An accessory apartment must provide living areas for eating, sleeping and sanitation facilities separate from the principal dwelling unit.
10. Interior access. An interior access between the main living area and an accessory apartment must be maintained.
11. Building code. All construction and remodeling shall comply with building codes and ordinance requirements in effect at the time of construction or remodeling, in accordance with Utah State Code Section 10-9a-511.5, Changes to dwellings - Egress windows.
12. Not intended for sale. The accessory apartment shall not be intended for sale or detached by deed and shall only be rented.

Editor's note—Ord. No. 2016-06-31, pt. I, § 1, adopted June 14, 2016, set out provisions intended for use as § 17.5.132. Inasmuch as there were already provisions so designated, said provisions have been included herein as § 17.5.134 at the discretion of the editor.

HISTORY

Amended by Ord. [2019-05-29](#) on 5/28/2019

Sec 17.5.135 Installation Of Communication Infrastructure Design Standards

The publication known as the [American Fork City Developer Installed Communications Infrastructure Design Standards](#), adopted October 25, 2022, and as amended by motion of the city council, one copy of which is filed in the office of the city recorder, is adopted by reference, in its entirety, as presently constituted and shall be known as Section 17.5.135 of the American Fork Municipal Code.

HISTORY

Adopted by Ord. [2022-10-52](#) on 10/25/2022

FLOOD MAP



LEGAL DESCRIPTION

13:056:0088

COM S 727.19 FT & W 764.23 FT FR N 1/4 COR. SEC. 24, T5S, R1E, SLB&M.; S 89 DEG 11' 41" E 168.1 FT; S 1 DEG 37' 15" W 75.5 FT; N 85 DEG 8' 41" W 167.99 FT; N 1 DEG 17' 39" E 63.63 FT TO BEG. AREA 0.268 AC.

13:056:0089

COM S 727.17 FT & W 764.21 FT FR N 1/4 COR. SEC. 24, T5S, R1E, SLB&M.; N 1 DEG 17' 38" E 115.37 FT; S 88 DEG 47' 30" E 100.22 FT; N 0 DEG 13' 50" E 75.09 FT; S 87 DEG 27' 27" E 6.18 FT; S 48 DEG 31' 26" E 305.62 FT; S 1 DEG 30' 12" W 77.94 FT; N 85 DEG 8' 41" W 170.88 FT; N 1 DEG 37' 16" E 75.5 FT; N 89 DEG 11' 43" W 168.09 FT TO BEG. AREA 1.088 AC.